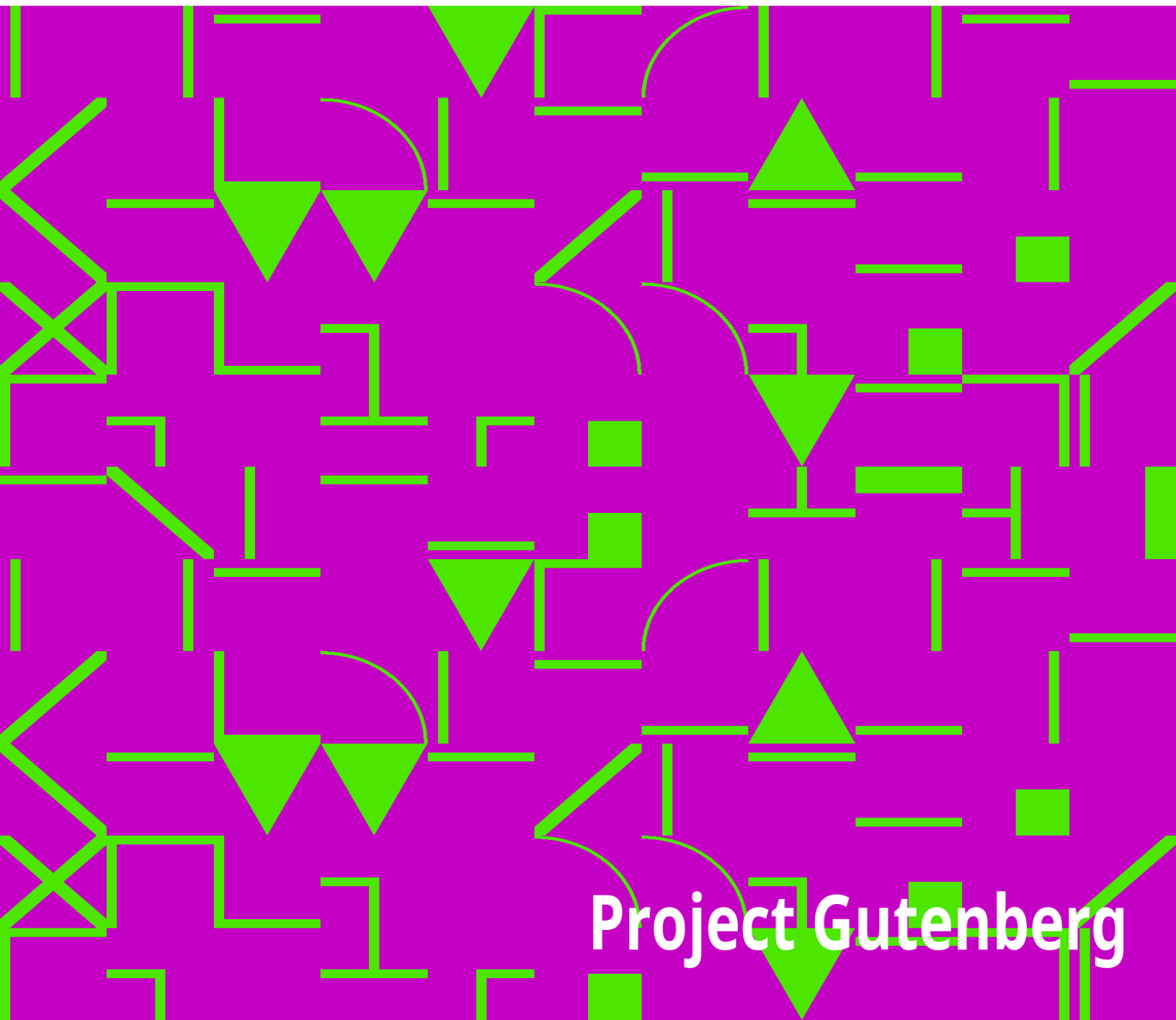


The Southern Literary Messenger, Vol. II., No. 10, September, 1836

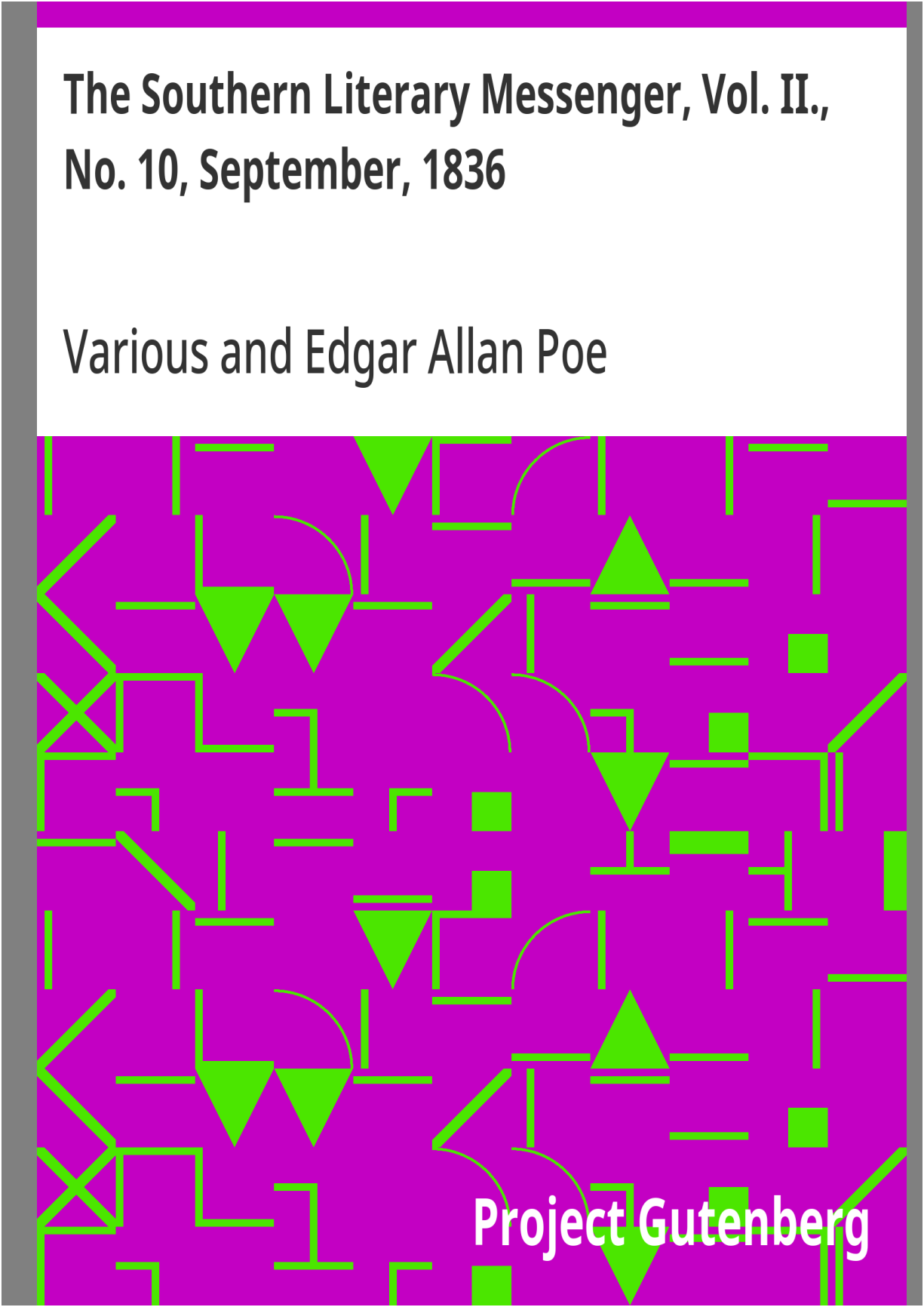
Various and Edgar Allan Poe



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**The Southern Literary Messenger, Vol. II.,
No. 10, September, 1836**

Various and Edgar Allan Poe



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SOUTHERN LITERARY MESSENGER, VOL. II., NO. 10,
SEPTEMBER, 1836 ***

THE

SOUTHERN LITERARY MESSENGER:
DEVOTED TO
EVERY DEPARTMENT OF
**LITERATURE AND THE FINE
ARTS.**

Au gré de nos desirs bien plus qu'au gré des vents.

Crebillon's Electre.

As we will, and not as the winds will.

RICHMOND:

T. W. WHITE, PUBLISHER AND PROPRIETOR.

1835-6.

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SOUTHERN LITERARY MESSENGER.

VOL. II.

RICHMOND, SEPTEMBER, 1836.

No. X.

T. W. WHITE, PROPRIETOR.

FIVE DOLLARS PER ANNUM.

CROMWELL.

BY EDWARD LYTTON BULWER.¹

¹ This Tragedy is now in the press of Messieurs Saunders and Otley, (with whom Mr. Bulwer has made an exclusive arrangement for the issuing of his works here simultaneously with their appearance in England,) and will be published forthwith. We are indebted to the attention of these gentlemen for Act I, in anticipation, copied from the original MS.

ACT I.

SCENE I.—A Room in Whitehall. At the back, folding doors hung with black crape. Henry Martin—Harrison—Ireton.

IRETON. Does the crowd gather still?

HARRISON. Ay! Round the door
The godless idle cluster; nor with ease
Can our good guards—the tried men of the Lord—
Ward off the gapers, that, with thirsty mouths,
Would drink, as something sacred, the mute air
Circling the dust of him that *was* a king.

MARTIN. Ev'n as I passed the porch, a goodly cit,
Round and tun-bellied, plucked me by the robe:
'Sir, can I see the king?' quoth he. I frowned:—
'There is no king!' said I. 'The man called Charles
Is the same clay as yours and mine. Lo! yonder
Lies, yet unburied, a brave draper's corpse;
Go ye and gaze on that!' And so I passed.
Still the crowd murmured—'We would see the king!'

IRETON. Ay, round the vulgar forms of royalty,
Or dead or quick, the unthinking millions press;
They love the very mummerly of their chains,
And graceless walks unsceptred Liberty
To their coarse gaze. 'Twas a bold deed, that death!

HARRISON. A deed we ne'er had had the souls to do,
But for the audible mandates of the Lord.
I did not sleep seven nights before my hand
Signed that red warrant; and e'en now, methinks
Midnight seems darker and more sternly still
Than it was wont to do!

IRETON. A truce with this.
When saw ye last the General?

MARTIN. Scarce an hour
Hath joined the Past, since I did leave him praying.

IRETON. The pious Cromwell!—"Tis a blessed thing
To have a lodge above, and, when the air
Grows dim and rank on earth, to change the scene,
And brace the soul in thoughts that breathe of Heaven.
He bears him bravely then, that virtuous man?

MARTIN. Bravely; but with a graver, soberer mien
Than when we councilled on the deed now done.

IRETON. Yea, when he signed the warrant, dost thou mind
How, with the pen yet wet, he crossed thy face,
My honest Harry! ('twas a scurvy trick!)
And laughed till merry tears coursed down his cheek,
To see thy ruddy hues so streaked with black?
Ha! Ha!—and yet it was a scurvy trick!
And thou didst give him back the boon again,
And both laughed loud, like mad-caps at a school,
When the grim master is not by. I was
The man who, next to Cromwell, planned the act

Which sealed old England's freedom; yet that laugh
Made me look back—and start—and shudder!

MARTIN. Tush!
Thou know'st thy kinsman's merry vein what time
The humor's on him. I'll be sworn, nor he
Nor I thought lightlier of the solemn deed
For that unseemly moment;—'twas the vent
Of an excited pulse; and if our own,
The scaffold we were dooming to the Stuart,
We should have toyed the same.

HARRISON. Why prate ye thus—
Lukewarm and chill of heart? When Barak broke
The hosts of Sisera, after twice ten years
Of bondage, did the sons of Israel weep?
Or did they seek excuses for just mirth?
No; they sang out in honest joy—“Awake!
Captivity is captive! and the stars
Fought from their courses against Sisera.”
Our Sisera is no more—we will rejoice!

IRETON. (*aside to Martin*) Humor him Harry, or we 'scape not so
This saintly porcupine of homilies
Bristling with all the missiles of quotation:
Provoke him,—and he pricks you with a text.
(*aloud*) Right, holy comrade, thou hast well rebuked us.
But to return to earth. The General feels,
My Harry, how the eyes of the dumb world
Are fixed on us—how all of England's weal
Weighs on our shoulders, and with serious thought
Inclines him to the study of the HOUR:
For every moment now should womb designs,
And in the air we breathe the thundercloud
Hangs mute:—may Heaven disperse it on our foes!

MARTIN. Ireton, his soul foresees, and is prepared.
He will not patch new fortune with old fears,

Nor halt 'twixt doubt and daring. We have done
That which continued boldness can but bless;
And on the awful head we have discrowned
Must found our Capitol of Liberty!

HARRISON. *(who has been walking to and fro, muttering to himself,
suddenly turns round)*
Who comes? thou hast ill omen on thy brow.
Art thou—nay, pardon!—soldier of the Lord!

SCENE II.—To them Sir Hubert Cecil.

CECIL. Where is the General? Where the lofty Cromwell?

IRETON. Young Cecil! Welcome, comrade! Just from Spain?
What news I pray? The dust upon thy garb
Betokens weary speed.

CECIL. False heart, away!
Where is thy master, bloodhound?

IRETON. Art thou mad?
Is it to me these words?—Or that my sword
Were vowed to holier fields, this hand——

CECIL. *(fiercely)* That hand!
Look on it well. What stain hath marred its white
Since last we met? And you, most learned Martin,
And you, text-mouthing Harrison—what saws
Plucked from the rotten tombs of buried codes,
What devilish garblings from the holy writ,
Gave ye one shade of sanction for that deed
Which murdered England's honor in her king?

HARRISON. *(interrupting Martin and Ireton, as they are about to reply)*
Peace! peace, my brethren! Leave to me the word:

Lo, my soul longs to wrestle with the youth.
I will expound to him. Thus saith the Lord——

CECIL. Blaspheme not! keep thy dark hypocrisies
To shroud thee from thyself! But peace, my heart!
I will not waste my wrath on such as these.
Most honest Ireton, did they tell me false,
Or is thy leader here? thy kinsman, Ireton?—
Oh God! hath stout-armed Cromwell come to this!—
The master deathsman of your gory crew?

IRETON. I would he were, young madman, to requite
Thy courteous quoting of his reverent name.
Go seek our England's David at his hearth,
And chide the arm that struck Goliath down.

HARRISON. I will wend with thee, rash idolator!
So newly turned to the false gods of Horeb;
My soul shall wrestle with thee by the way.

CECIL. *(to Harrison, who is about to follow him)*
Butcher, fall back!—there is a ghost behind thee,
That, with a hueless cheek and lifeless eye,
Forbids thee henceforth and for aye to herd
With men who murder not. And so farewell!
(exit Cecil)

HARRISON. *(looking fearfully around)*
A ghost! said he, a ghost?

MARTIN. Ay, General, ay;
And he who stands upon the deadly brink
Of Cromwell's ire, may well behold the ghosts
He goes so soon to join.
(Enter a Puritan Soldier)

SOLDIER. Worshipful Sirs,
The council of the faithful is assembled,

And the Lord President entreats your presence.

IRETON. Come, Martin; come, bold-hearted Harrison,
Bradshaw awaits.

HARRISON. Get thee behind me, Satan!
I fear thee not! thou canst not harm the righteous.
Ghost, quoth he! ghost! Seest thou a ghost, good Ireton?

IRETON. What, in broad day? Fie, General!

HARRISON. Satan walks
Daily and nightly tempting; but no more!
We'll to the council. Verily, my soul
Darkens at times the noon! The fiend is strong.
(*exeunt*)

SCENE III.—A Room in Cromwell's House. The Lady Claypole. Edith.

LADY CLAYPOLE. So leave we, then, the Past! The angry sky
Is cleared by that same thunderstroke which cleaves
The roof of kings; the dark time's crowning evil
Is o'er; the solemn deed, that stern men call
Necessity, is done;—now let us hope
A brighter day for England!

EDITH. Who knows Cromwell,
Knows him as one inflexibly austere
In what his head deems justice; but his heart
Is mild, and shrinks from the uncalled-for shedding
Ev'n of the meanest blood: yet would to Heaven,
For his own peace, that he had been less great,
Nor sate as judge in that most fearful court,
Where either voice was peril. What the world
Will deem his choice, lies doubtful in the clouds
That shade the time. Thank God that we are women!

LADY CLAYPOLE. Yea! in these hours of civil strife, when men
Know not which way lies conscience, and the night
Scares the soft slumbers from their haggard eyes
By schemes of what the morrow shall bring forth,
'Tis sweet to feel our weakness, and to glide
Adown the stream of our inactive thought!—
While, on the bank, towers crash and temples fall,
We sail unscath'd; and watch the unvex'd life
Mirror that peaceful heaven, earth cannot mar!

(after a pause, with a smile)

Yet scarce indeed unvex'd, while one wild power
Can rouse the tide at will, and wake the heart
To tempest with a sigh;—nay, blush not, Edith.

EDITH. I have no cause for blushes; and my cheek
Did wrong my thought, if it did speak of shame.
To love!—ah! 'tis a proud, a boastful joy,
If he we love is worthy of our love!

LADY CLAYPOLE. And that, in truth, is Cecil: with his name
Honor walks spotless, and this stormy world
Grows fair before his presence; in his tongue
Lurks no deceit; his smile conceals no frown:
Ev'n in his very faults, his lofty pride
And the hot frankness of his hasty mood,
There seems a heavenly virtue, by the side
Of men who stalk around, and, if they win
Truth to the soul, wear falsehood on the brow.

EDITH. Speak thus forever, dearest! for his praise
Makes thy voice music. Yes, he is all this;
And I, whose soul is but one thought of him,
Feel thought itself can compass not the girth
Of his wide merit. Was I not right to say
I could not blush to love him? Yet, methinks,
Well might I blush to feel that one like Cecil
Has love for Edith!

LADY CLAYPOLE. If, sweet coz, I cease
To praise him, it shall be for sweeter words
Ev'n than his praise!

EDITH. Impossible!

LADY CLAYPOLE. And yet,
Were I a maid that loved as Edith loves,
Tidings of him I loved were sweeter words
Ev'n than his praise.

EDITH. Tidings!—Oh, pardon, coz!—
Tidings from Spain?

LADY CLAYPOLE. No, Edith, not from Spain;
Tidings from London. Cecil is returned.
Just ere we met, his courier's jaded steed
Halted below. Sir Hubert had arrived,
And, on the instant, sought my father.

EDITH. Come!
And I to hear it from another's lips!

LADY CLAYPOLE. Nay, coz, be just: with matters of great weight—
Matters that crave at once my father's ear—
Be sure that he is laden.

(Enter a Servant)

SERVANT. Pardon, Madam!
Methought the General here!

LADY CLAYPOLE. Who asks my father?

SERVANT. Sir Hubert Cecil, just arrived from Spain,
Craves audience with his honor.

LADY CLAYPOLE. Pray his entrance.
Myself will seek the General. *(exit servant)*

Thank me, Edith!
If now I quit thee, wilt thou thank me less?

EDITH. I prithee stay!

LADY CLAYPOLE. Nay, Friendship is a star
Fading before the presence of Love's sun.
Farewell! Again, those blushes!—Edith, fie!
(*exit Lady Claypole*)

SCENE IV.—Cecil and Edith.

CECIL. Where is the General?—Where—Oh, Heaven! my Edith?

EDITH. Is there no welcome in that word? Am I
Unlooked for at thy coming?

CECIL. Pardon, Madam!
I—I—(*aside*) Oh, God! how bitter is this trial!
Why do I love her less? Why fall I not
At her dear feet? Why stand I thus amazed?
Is this not Edith? No! 'tis Cromwell's niece;
And Cromwell is the murtherer of my king!

EDITH. 'Pardon' and 'madam!'—do I hear aright?
Art thou so cold? Do I offend thine eyes?
Thou turn'st away thy face! Well, Sir, 'tis well!
Hubert! still silent! (*In a softer voice*) Hubert!

CECIL. Oh, for grace!
For heaven's dear grace! speak not in that sweet tone!
Be not so like that shape that was my Edith!

EDITH. (*Gazing upon him with surprise and anger, turns as if to
quit the stage, and then aside*)
Sure he is ill! Keen travail and the cares
Of these unhappy times have touched the string

Of the o'erlabored brain. And shall I chide him?
I who should soothe? (*Approaches and aloud*) Art thou not well, dear
Hubert?

CECIL. Well! well! the leaping and exultant health
Which makes wild youth unconscious of its clay,
Deeming itself all soul; the golden chain
Which link'd that earth, our passions—with that heaven,
Our hopes—why *this* was to be *well*! But now
One black thought from the fountain of the heart
Gushes eternally, till all the streams
Of all the world are poisoned,—and the Past
Hath grown one death, whose grim and giant shadow
Makes that chill darkness which we call '*the Future!*'
Where are my dreams of glory? Where the fame
Unsullied by one stain of factious crime?
And where—oh where!—the ever dulcet voice
That murmured, in the star-lit nights of war,
When the loud camp lay hushed, *thy* holy name?
Edith is mine no more! (*taking her hand*) Yet let me gaze
Again upon thee! No! thou art not changed
Ah! would thou wert! In that translucent cheek
The roses tremble, stirr'd as by an air,
With the pure impulse of thy summer soul—
On thy white brow chaste conscience sits serene—
There is no mark of blood on this fair hand—
Yet Cromwell is thy kinsman!

EDITH. By the vows
That we have plighted, look not on me thus!
Speak not so wildly! Hubert, I am Edith!
Edith!—thine own! oh! am I not thine own?

CECIL. My own!—my Edith! Yes, the evil deeds
Of that bold man cast forth no shade on thee,
Albeit they gloom the world as an eclipse
Whose darkness is the prophecy of doom!

EDITH. Hush! hush! What! know'st thou not these walls have ears?
Speak'st thou of Cromwell thus, upon whose nod
Hang life and death?

CECIL. But not the *fear* of death!

EDITH. What change hath chanc'd, since last we met, to blot
Thy champion and thy captain from thy grace?
Why, when we parted, was not thy last word
In praise of Cromwell? Was he not the star
By which thy course was lighted? Nay, so glowed
His name upon thy lips, that I—ev'n I—
Was vexed to think thou'dst so much love to spare!

CECIL. Ah, there's the thought—the bitter, biting thought!
Boy that I was, I pinned my faith to Cromwell;
For him forsook my kin; renounced my home,
My father's blessing, and my mother's love;
Gave up my heart to him, my thoughts, my deeds,—
Reduced the fire and freedom of my youth
Into a mere machine—a thing to act
Or to be passive as its master wills;
On his broad banner I affixed my name—
My heritage of honor; blindly bound
My mark and station in the world's sharp eye
To the unequal chances of his sword!
But then methought it was a freeman's blade,
Drawn, but with sorrow, for a nation's weal!

EDITH. And was it not so, Hubert?

CECIL. Was it? What!
When (with no precedent, from all the Past—
That solemn armory for decorous Murther!)
Some two score men assumed a people's voice,
And sullied all the labors of long years,
The laurels of a war for equal laws,
By one most tragic outrage of all law!

Oh, in that stroke 'twas not the foe that fell!
'Twas we who fought!—the pillar of our cause;
The white unsullied honor of our arms;
The temperate justice that disdains revenge;
The rock of law, from which war's standard waved;—
The certainty of RIGHT;—'twas these that fell!

EDITH. Alas! I half foreboded this, and yet
Would listen not to fear. But, Hubert, I—
If there be sin in that most doubtful deed—
I have not shared the sin.

CECIL. No, Edith, no!
But the sin severs us! Will Cromwell give
The hand of Edith to his foe?

EDITH. His foe!
What madness, Hubert! In the gloomy past
Bury the wrong thy wrath cannot undo;
Think but in what the future can repair it.

CECIL. I do so, Edith; and, upon that thought,
I built the wall 'twixt Cromwell and my soul.
The king is dead—but not the race of kings;
There is a second Charles! Oh, Edith, yet—
Yet may our fates be joined! Beyond the seas
Lives my lost honor—lie my only means
To prove me guiltless of this last bad deed!
Beyond the seas, oh, let our vows be plighted!
Fly with thy Cecil!—quit these gloomy walls,
These whited sepulchres, these hangman saints!
Beyond the seas, oh! let me find my bride,
Regain my honor, and record my love!

EDITH. Alas! thou know'st not what thou say'st. The land
Is lined with Cromwell's favorers. Not a step
But his eye reads the whereabouts. From hence
Thou couldst not 'scape with life, nor I with honor!

CECIL. Ah, Edith, rob not Heaven of every star!
From home, and England, and ambition banished—
Banish me not from *thee*!

EDITH. What shall I say?
How act—where turn? Thy lightest word hath been
My law—my code of right; and now thou askest
That which can never be.

CECIL. Recall the word!
There's but one 'never' for the tongue of Love,
And that should be for parting—*never part*.
Oh, learn no other 'never.'

EDITH. Must thou leave me?
Must thou leave England—thy old friends in arms—
The cause of Freedom—thy brave spirit's hope?
Must thou leave these? Is there no softer choice?

CECIL. None other—none!

EDITH. So honor bids thee act;
So honor conquers love! And is there, then,
No honor but for man? Bethink thee, Hubert,
Could I, unblushing, leave my kinsman's home,
The guardian of my childhood—the kind roof
Where no harsh thought e'er entered? For whate'er
Cromwell to others, he to me hath been
A more than parent. In his rudest hour
For me he wore no frown; no chilling word
Bade me remember that I had no father!
Shall I repay him thus:—desert his hearth
In his most imminent hour; betroth my faith
To one henceforth his foe; make my false home
With those who call him traitor; plight my hand
To him who wields a sword against his heart?—
That heart which sheltered me!—oh, never, Hubert!
If thou lov'st honor, love it then in Edith,

And plead no more.

(enter Servant)

SERVANT. The General hath sent word
That, just released from council, he awaits
Sir Hubert Cecil at Whitehall.

CECIL. I come!

(exit Servant)

So fare thee well!

EDITH. *(passionately)* Farewell!—and is that all?
And part we thus forever? Not unkindly?
Thou dost not love me less? Oh, say so, Hubert!
Turn not away; give me once more thine hand.
We loved each other from our childhood, Hubert;
We grew together; thou wert as my brother,
Till that name grew a dearer. I should seem
More cold—more distant; but I cannot. All
Pride, strength, reserve, desert me at this hour!
My heart will break! Tell me thou lov'st me still!

CECIL. Still, Edith, still!

EDITH. I'm answered—bless thee, Hubert!
One word! one parting word! For my sake, dearest,
Rein thy swift temper when thou speakest to Cromwell.
A word may chafe him from his steady mood
In these wild moments; and behind his wrath
There gleams the headsman's axe. Vex him not, Hubert!

CECIL. Fear not! This meeting hath unmanned my soul,
Swallowed up all the fierceness of my nature
As in a gulf! and he—this man of blood—
He hath been kind to thee! Nay fear not, Edith!
(exit Cecil)

EDITH. He's gone! O God support me! I have done
That which became thy creature. Give me strength!
A mountain crushes down this feeble heart;
Oh, give me strength to bear it, gentle Heaven!
(*exit*)

SCENE V—A Room at Whitehall; (the same as in Scene I) Enter Cromwell, Ireton, and Martin.

CROMWELL. So be it, then! At Windsor, in the vaults
Of his long line, let Charles's ashes sleep.
To Hubert and to Mildmay we consign
The funeral cares; be they with reverence paid.
Whoever of the mourners of the dead,
The friends and whilom followers would assist
In the grave rite, to them be licence given
To grace the funeral with their faithful wo.
We spurn not the dead lion.

MARTIN. Nobly said.
Wouldst thou I have these orders straight conveyed
To the king's friends?

CROMWELL. Forthwith good Martin.
(*exit Martin*)
So

With those sad ashes rest our country's griefs.
Henry, no phoenix from them must spring forth;
No second Charles! Within the self-same vault
That shrouds that harmless dust we must inter
Kingly ambition; and upon that day
Proclaim it treason to declare a king
In the King's son! The crown hath passed away
From Saul, and from the godless house of Saul.

IRETON. The Parliament is fearful, and contains
In its scant remnant many who would halt

Betwixt the deed and that for which 'twas done.

CROMWELL. They must be seen to, Henry! Seek me out
This eve at eight; we must confer alone.
Strong meat is not for babes! But of this youth,
This haughty Cecil! Thou hast seen him then?
Is he, in truth, so hot?

IRETON. By my sword, yea!
That which I told thee of his speech fell short
Of its rash madness.

CROMWELL. 'Tis a goodly youth;
Brave and sound hearted, but of little faith,
Nor suited to the hunger of these times,
Which feeds on no half acts! And for that cause,
And in that knowledge, when we had designed
To bring the King to London, I dismissed him
With letters into Spain. We must not lose him!
He is of noble birth; his house hath wealth;
His name is spotless—he must not be lost!

IRETON. And will not be retained!

CROMWELL. Methinks not so.
He hath the folly of the eyes of flesh,
And loves my niece; by that lure shall we cage him.

IRETON. Yet he is of a race that, in these times,
Have fallen from the righteous.

CROMWELL. Ay, and so
The more his honest courage. In the day
When the king's power o'erflowed, and all true men
Joined in a dyke against the lawless flood,
His sire and I were co-mates—sate with Pym;
On the same benches—gave the self-same votes;
But when we drew God's sword against the king,

And threw away the sheath, his fearful heart
Recoiled before the act it had provoked;
And, halting neuter in the wide extremes,
Forbade his son to join us.

IRETON. But the youth—

CROMWELL. More bravely bent, forsook the inglorious sire,
And made a sire of Cromwell. In my host
There was not one that loved me more than Cecil!
Better in field than prayer, and more at home
Upon his charger than his knee, 'tis true;
But to all men their way to please the Lord!
To heaven are many paths!

IRETON. So near to thee,
And knew not of the end for which we fought?
Dreamt he it was against the man called king,
And not against the thing called kingly?

CROMWELL. So
The young man dreamed; and oft-times he hath said
When after battle he hath wiped his sword,
Oft hath he sighing said, 'These sinful wars—
Brother with brother, father against son,
Strife with her country, victory o'er her children—
How shall they end? If to the hollow word
Of this unhappy king no truth is bound,
Shall the day come when he, worn out with blood,
Will yield his crown to his yet guiltless son,
And we made sure of freedom by firm laws,
Chain the calm'd lion to a peaceful throne?'

IRETON. The father's leaven still! most foolish hope
To plaster with cool prudence jarring atoms,
And reconcile the irreconcilable—
The rushing present with the mouldering past!

CROMWELL. Thou say'st it, Ireton! But the boy was young
And fond of heart; the times that harden us,
Make soft less thoughtful natures.

(enter a Puritan Soldier)

SOLDIER. Lo! your worship,
The youth hight Hubert Cecil waits thy pleasure!

CROMWELL. Friend, let him enter. Henry, leave us now!
At eight, remember!

(exit Ireton)

It hath lamely chanced
That Cecil should return upon the heat
And newness of these fierce events; a month
Had robbed him of their horror! While we breathe
Passion glides on to Memory:—and dread things,
That scared our thoughts but yesterday, take hues,
That smooth their sternness, from the silent morrow.
(Enter Cecil—Cromwell leaning on his sword at the farther end of the stage, regards him with a steadfast look and majestic mien)
Well, sir, good day! What messages from Spain?
(Cecil presents him despatches—Cromwell glances over them, looking, from time to time, at Cecil)

CECIL. *(aside)* What is there in this man that I should fear him?
Hath he some spell to witch us from ourselves,
And make our natures minion to his own?

CROMWELL. Plead they so warm for Stuart? 'tis too late!

CECIL. It is too late!

CROMWELL. Since last we parted, Hubert,
He, the high author of our civil wars,
Hath been their victim. 'Twas an evil, Hubert;
But so is justice ever when it falls
Upon a human life!

CECIL. God's mercy!—justice!
Why justice is a consequence of law—
Founded on law—begotten but by law!
By what law, Cromwell, fell the King?

CROMWELL. By all
The laws he left us! Prithee silence, Cecil!
Sir, I might threaten, but I will not:—hold!
And let us, with a calm and sober eye,
Look on the spectre of this ghastly deed.
Who spills man's blood, his blood by man be shed!
'Tis Heaven's first law—to that law we had come—
None other left us. Who, then, caused the strife,
That crimsoned Naseby's field, and Marston's moor?
It was the Stuart:—so the Stuart fell!
A victim, in the pit himself had digged!
He died not, Sir, as hated kings have died,
In secret and in shade—no eye to trace
The one step from their prison to their pall;
He died i' the eyes of Europe—in the face
Of the broad Heaven—amidst the sons of England,
Whom he had outraged—by a solemn sentence,
Passed by a solemn court. Does this seem guilt?
(It might be error—mortal men will err!)
But *Guilt* not thus unrobes it to the day;
Its deeds are secret, as *our* act was public.
You pity Charles! 'tis well; but pity more
The tens of thousand honest humble men,
Who, by the tyranny of Charles compelled
To draw the sword, fell butchered in the field!
Good Lord—when one man dies who wears a crown,
How the earth trembles—how the nations gape,
Amazed and awed!—but when that one man's victims,
Poor worms uncloth'd in purple, daily die,
In the grim cell, or on the groaning gibbet,
Or on the civil field, ye pitying souls
Drop not one tear from your indifferent eyes:

Ye weep the ravening vulture when he bleeds,
And coldly gaze upon the countless prey
He gorged at one fell meal. Be still young man;
Your time for speech will come. So much for justice;
Now for yet larger duties: to our hands
The peace and weal of England were consigned;
These our first thought and duty. Should we loose
Charles on the world again, 'twere to unleash
Once more the Fiend of Carnage: should we guard
His person in our prison, still his name
Would float, a wizard's standard, in the air,
Rallying fresh war on Freedom; a fit theme
To wake bad pity in the breasts of men;
A focus for all faction here at home,
And in the lewd courts of his brother kings.
So but one choice remained: it was that choice
Which (you are skilled methinks in classic lore,
And prize such precedent,) the elder Brutus
Made when he judged his children: such the choice
Of his descendant—when, within the senate
He sought to crush, the crafty Cæsar fell.

CECIL. Cæsar may find his type amidst the living;
And by that name our sons may christen Cromwell.

CROMWELL. Men's deeds are fair enigmas—let man solve them!
But men's dark motives are i' the Books of God.

(In a milder tone)

Cecil! thou wert as my adopted son.
Hast thou not still fought by my proper person—
Eat'n at my board—slept in my tent—conceived
From me thy rudiments and lore of war—
Hath not my soul yearned to thee—have I not
Brought thee, yet beardless, into mark and fame—
Given thee trust and honor—nay, to bind
Still closer to my sheltering heart thine own—
Have I not smiled upon thy love for Edith,

(For I, too, once was young,) and bid thee find
Thy plighted bride in my familiar kin—
And wilt thou, in this crisis of my fate,
When my good name stands trembling in the balance,
And one friend wanting may abase the scale,
Wilt thou thus judge me harshly—take no count
Of the swift eddies of the whirlpool time,
Which urge us on to any port for peace,
And set the brand of thy austere rebuke
Upon the heart that loved thee so? Fie! fie!

CECIL. Arouse thine anger, Cromwell! rate me, vent
Thy threats on this bare front—thy kindness kills me!

CROMWELL. Bear with me, son, as I would bear with thee!
Add not to these grim cares that press upon me.
Eke thou not out the evils of the time;
They are enow to grind my weary soul.
Restrain the harsher thoughts, that would reprove,
Until a calmer season, when 'tis given
To talk of what hath been with tempered minds;
And part we now in charity.

CECIL. O Cromwell,
If now we part, it is forever. Here
I do resign my office in thy hands;
Lay down my trust and charge,—

CROMWELL. [*hastily*] I'll not receive them;
Another time for this.

CECIL. There is no other.
I came to chide thee, Cromwell; ay, to chide,
Girt as thou art with power: but thou hast ta'en
The sternness from my soul, and made the voice
Of duty sound so grating to my ear,
That, for mine honor, I, who fear thee not,

Do fear my frailty, and will trust no more
My conscience to our meeting.

CROMWELL. Wouldst thou say
That thou wilt leave me?

CECIL. Yes.

CROMWELL. And whither bound?

CECIL. The king's no more; and in his ashes sleep
His faults. His son as yet hath wronged us not:
That son is now our king!

CROMWELL. Do I hear right?
Know'st thou, rash boy, those words are deadly? Know'st thou,
It is proclaimed "whoever names a king
In any man, by Parliament unsanctioned,
Is criminal of treason?"

CECIL. So 'tis said;
And those who said it, were themselves the traitors.

CROMWELL. This, and to me!—beware; on that way lies
My limit of forbearance.

CECIL. Call thy guards;
Ordain the prison; bring me to the bar;
Prepare the scaffold. This, great Cromwell, were
A milder doom than that which I adjudge
Unto myself. 'Tis worse than death to leave
The flag which waved above our dreams of freedom—
The Chief our reverence honored as a god—
The bride whose love rose-colored all the world—
But worse than many deaths—than hell itself,
To sin against what we believe the right.

CROMWELL. [*moved and aside*] And this bold soul I am about to lose!
[*Aloud*] If me thou canst forget, and all my love,
Remember Edith! Is she thy betrothed,
And wilt thou leave her too? Thou hid'st thy face.
Stay, Hubert, stay; I, who could order, stoop
And pray thee stay.

CECIL. No—no!

CROMWELL. [*with coldness and dignity*] Then have thy will.
Desert the cause of freedom at her need,—
False to thy chief, and perjured to thy love.
I do repent me that I have abased
Myself thus humbly. Go, Sir, you have leave;
I would not have one man in honest Israel
Whose soul hath hunger for the flesh of Egypt.

CECIL. [*approaching Cromwell slowly*]
Canst thou yet make the doubtful past appear
Done but in sorrowing justice?—canst thou yet
Cement these jarring factions—join in peace
The friends alike of royalty and freedom,
And give the state, secured by such good laws
As now we may demand, once more a king?

CROMWELL. A king! Why name that word? A head—a chief,
Perchance, the Commonwealth may yet decree!
Speak on!

CECIL. I care not, Cromwell, for the name;
But he who bears the orb and sway of power
Must, if for peace we seek, be chosen from
The Stuarts' lineage. Charles the First is dead:
Wilt thou proclaim his son?

CROMWELL. [*laughing bitterly*] An Exile, yes! A Monarch, never!

CECIL. Cromwell, fare thee well!
As friends we meet no more. May God so judge
As I now judge, believing thee as one
Whom a bold heart, and the dim hope of power,
And the blind wrath of faction, and the spur
Of an o'ermastering Fate, impel to what
The Past foretells already to the Future.
Dread man, farewell.

[*exit Cecil*]

CROMWELL. [*after a pause*] So from my side hath gone
An upright heart; and in that single loss,
Methinks more honesty hath said farewell,
Than if a thousand had abjured my banners.
Charles sleeps, and feels no more the grinding cares,
The perils and the doubts that wait on POWER.
For him, no more the uneasy day,—the night
At war with sleep,—for him are hushed, at last,
Loud Hate and hollow Love. Reverse thy Law,
O blind compassion of the human heart!
And let not death which feels not, sins not—weeps not—
Rob Life of all that Suffering asks from Pity.
[*He paces to and fro the scene, and pauses at last opposite the doors at the back of the stage*]
Lo! what a slender barrier parts in twain
The presence of the breathing and the dead—
The vanquisher and victim—the firm foot
Of lusty strength, and the unmoving mass
Of what all strength must come to. Yet once more,
Ere the grave closes on that solemn dust,
Will I survey what men have feared to look on.
[*He opens the doors—the coffin of the king on the back ground lighted by tapers—Cromwell approaches it slowly, lifts the pall, and gazes, as if on the corpse within*]
'Tis a firm frame; the sinews strongly knit;
The chest deep set and broad; save some grey hairs
Saddening those locks of love, no sign of age.

Had nature been his executioner
He would have outlived me! and to this end—
This narrow empire—this unpeopled kingdom—
This six feet realm—the overlust of sway
Hath been the guide! He would have stretched his will
O'er that unlimited world which men's souls are!
Fettered the earth's pure air—for freedom is
That air to honest lips;—and here he lies,
In dust most eloquent—to after time
A never silent oracle for kings!
Was this the hand that strained within its grasp
So haught a sceptre? this the shape that wore
Majesty like a garment? Spurn that clay—
It can resent not; speak of royal crimes,
And it can frown not: schemeless lies the brain
Whose thoughts were sources of such fearful deeds.
What things are we, O Lord, when at thy will
A worm like this could shake the mighty world!
A few years since, and in the port was moored
A bark to far Columbia's forests bound;
And I was one of those indignant hearts
Panting for exile in the thirst for freedom;
Then, that pale clay (poor clay that was a king!)
Forbade my parting, in the wanton pride
Of vain command, and with a fated sceptre
Waved back the shadow of the death to come.
Here stands that baffled and forbidden wanderer,
Loftiest amid the wrecks of ruined empire,
Beside the coffin of a headless king!
He thrall'd my fate—I have prepared his doom:
He made me captive—lo! his narrow cell!

[*Advancing to the front of the stage*]

So hands unseen do fashion forth the earth
Of our frail schemes into our funeral urns;
So, walking dream-led in life's sleep, our steps
Move blindfold to the scaffold or the throne!—
Ay, to the *Throne!* From that dark thought I strike

The light which cheers me onward to my goal.
Wild though the night, and angry though the winds,
High o'er the billows of the battling sea
My Spirit, like a bark, sweeps on to Fortune!

MEMOIRS OF MRS. HEMANS.¹

¹ From the Memoirs of Mrs. Hemans, by Chorley—now in the press of Messieurs Saunders and Otley, to whom we are indebted for some of the sheets.

It will be yet more clearly seen, from further portions of Mrs. Hemans' correspondence, with what devotion and gratitude she regarded German literature; she spoke of its language as “rich and *affectionate*, in which I take much delight:”—how she gratefully referred to its study as having expanded her mind and opened to her new sources of intellectual delight and exercise. For a while, too, she may have been said to have written under the shadow of its mysticism; but this secondary influence had passed away some time before her death. It is not the lot of high minds, though they may pass through and linger in regions where thought loses itself in obscurity, to terminate their career there. The “Lays of many Lands,” most of which appeared in the *New Monthly Magazine*, then edited by Mr. Campbell, were, we are told by herself, suggested by Herder's “*Stimmen der Völker in Liedern*.” Her next volume was formed of a collection of these, preceded by “The Forest Sanctuary.”

Mrs. Hemans considered this poem as almost, if not altogether, the best of her works. She would sometimes say, that in proportion to the praise which had been bestowed upon others of her less carefully meditated and shorter compositions, she thought it had hardly met with its fair share of success:

for it was the first continuous effort in which she dared to write from the fulness of her own heart—to listen to the promptings of her genius freely and fearlessly. The subject was suggested by a passage in one of the letters of Don Leucadio Doblado, and was wrought upon by her with that eagerness and fervor which almost *command* corresponding results. I have heard Mrs. Hemans say, that the greater part of this poem was written in no more picturesque a retreat than a laundry, to which, as being detached from the house, she resorted for undisturbed quiet and leisure. When she read it, while in progress, to her mother and sister, they were surprised to tears at the increased power displayed in it. She was not prone to speak with self-contentment of her own works; but, perhaps, *the one* favorite descriptive passage was that picture of a sea burial in the second canto.

... She lay a thing for earth's embrace,
To cover with spring-wreaths. For earth's?—the wave
That gives the bier no flowers, makes moan above her grave!

On the mid-seas a knell!—for man was there,—
Anguish and love, the mourner with his dead!
A long, low, tolling knell—a voice of prayer—
Dark glassy waters, like a desert spread,—
And the pale shining Southern Cross on high,
Its faint stars fading from a solemn sky,
Where mighty clouds before the dawn grew red:—
Were these things round me? Such o'er memory sweep
Wildly when aught brings back that burial of the deep.

Then the broad lonely sunrise, and the plash
Into the sounding waves!—around her head
They parted, with a glancing moment's flash,
Then shut—and all was still....

The whole poem, whether in its scenes of superstition—the Auto da Fe—the dungeon—the flight, or in its delineation of the mental conflicts of its hero—or in its forest pictures of the free west, which offer such a delicious repose to the mind, is full of happy thoughts and turns of expression. Four

lines of peculiar delicacy and beauty recur to me as I write, too strongly to be passed by. They are from a character of one of the martyr sisters.

And if she mingled with the festive train,
It was but as some melancholy star
Beholds the dance of shepherds on the plain,
In its bright stillness present, though afar.

But the entire episode of “Queen-like Teresa—radiant Inez”—is wrought up with a nerve and an impulse, which men of renown have failed to reach. The death of the latter, if, perhaps, it be a little too *romantic* for the stern realities of the scene, is so beautifully told, that it cannot be read without strong feeling, nor carelessly remembered. And most beautiful, too, are the sudden out-bursts of thankfulness—of the quick, happy consciousness of liberty with which the narrator of this ghastly sacrifice, interrupts the tale, to reassure himself—

Sport on, my happy child! for thou art free!

The character of the convert's wife, Leonor,—devotedly clinging to his fortunes, without a reproach or a murmur, while her heart trembles before him, as though she were in the presence of a lost spirit,—is one of those, in which Mrs. Hemans' individual mode of thought and manner of expression are most happily impersonated. As a whole, she was hardly wrong in her own estimate of this poem: and on recently returning to it, I have been surprised to find, how well it bears the tests and trials with which it is only either fit or rational to examine works of the highest order of mind. But here, also, would criticism be impertinent.

The next work of Mrs. Hemans, and the one by which she is most universally known, was the “Records of Woman,” published in 1828. In this, to use her own words, “there is more of herself to be found” than in any preceding composition. But even the slightest analysis of these beautiful legends would be superfluous; suffice it to say, that they were not things of meditation, but imagined and uttered in the same breath; like every line that she wrote, as far as possible from being a studied exercise. It is true, that in some lyrics more than others, her individual feelings are eagerly put forth—in those, for instance, wherein aspirations after another

world are expressed, or which breathe the weary pining language of home sickness, or in which she utters her abiding sense of the insufficiency of fame to satisfy a woman's heart, however its possession may gratify her vanity—or wherein she speaks with a passionate self-distrust of her own art, of the impossibility of performance to keep pace with desire. The fervor with which these were poured forth seriously endangered a frame already undermined by too ardent a spirit, whose consuming work had been aided by a personal self-neglect, childish to wilfulness. So perilously, indeed, was she excited by the composition of Mozart's Requiem, that she was prohibited by her physician from any further exercise of her art, for some weeks after it was written. Few more genuine out-bursts of feeling have been ever poured forth than the three following verses of that poem.

“Yet I have known it long:
Too restless and too strong
Within this clay hath been the o'ermastering flame;
Swift thought that came and went,
Like torrents o'er me sent
Have shaken as a reed, my thrilling frame.

Like perfumes on the wind,
Which none may stay or bind,
The beautiful comes floating through my soul;
I strive with yearning vain,
The spirit to detain
Of the deep harmonies that past me roll!

Therefore disturbing dreams
Trouble the secret streams,
And founts of music that o'erflow my breast;
Something far more divine
Than may on earth be mine,
Haunts my worn heart, and will not let it rest.”

Most of the poems above referred to, were written at Rhyllon; the last and most favorite of Mrs. Hemans' residence at Wales. Some of them will be found colored by a shadow which had recently passed over her lot—the

death of her mother. To this, which she always felt as an irreparable loss, will be found not a few touching allusions in many following letters.

A small woodland dingle, near Rhyllon, was her favorite retreat: here she would spend long summer mornings to read, and project, and compose, while her children played about her. "Whenever one of us brought her a new flower," writes one of them, "she was sure to introduce it into her next poem." She has unconsciously described this haunt over and over again with affectionate distinctness; it is the scene referred to in the "Hour of Romance," and in the sonnet which is printed among her "Poetical Remains."

"Still are the cowslips from thy bosom springing,
O far off grassy dell?—And dost thou see,
When southern winds first wake the vernal singing,
The star-gleam of the wood anemone?
Doth the shy ring-dove haunt thee yet—the bee
Hang on thy flowers, as when I breathed farewell
To their wild blooms? and round the beechen tree
Still in green softness, doth the moss bank swell?"

Many of the imaginations which floated through her brain in this retirement, were lost in the more interrupted and responsible life, which followed Mrs. Hemans' departure from Wales; when the breaking up of her household, on the marriage of one of her family, and the removal of another into Ireland, threw her exclusively upon her own resources, and compelled her to make acquaintance with an "eating, drinking, buying, bargaining" world with which, from her disposition and habits, she was ill-fitted to cope. One of these unfinished works was the "Portrait Gallery," of which one episode, "The lady of the Castle," is introduced in the "Records."

CONCLUDING LECTURE

Of the Course on the Obstacles and Hindrances to Education, arising from the peculiar faults of Parents, Teachers and Scholars, and that portion of the Public immediately concerned in directing and controlling our Literary Institutions.

BY JAMES M. GARNETT.

Since the first lecture of the course on the obstacles to all correct education was delivered, so much time has elapsed, and so many of you, probably, have not heard the whole, that some farther recapitulation than was given when I last addressed you, seems necessary fully to understand what I still wish to say in conclusion.

It will be recollected, I hope, that I have endeavored to fix upon parents themselves much the greater portion of the guilt, as well as the folly of creating these obstacles; since *they*, and the *nurses* whom they choose, are unquestionably the first moral and intellectual instructors of their children. I tried to prove that the deadly mischief was accomplished by a process commencing almost with their birth—a process which consists in checking or misdirecting the first dawnings of intellect and feeling in these helpless little beings; in teaching their heads, and neglecting their hearts; in cultivating sensual rather than intellectual appetites; in the irregularity of their moral discipline, which encourages or silently permits, at one time, the outbreaking of certain juvenile propensities, which, at another, they will severely punish; in performing this painful duty much oftener from caprice and wrath than sound judgment; in transferring their authority and their duties to others with far too little consideration; in their frequent changes of schools and teachers; in their reckless attacks upon the characters of both; in suffering their children often to choose for themselves—not only *where*, but *what* and *how* they shall be taught; in confounding the mere going to school and confinement in a school-room, with profitable study; in frequently disgusting their children with books in general, and all scholastic learning in particular, by making application to their lessons a punishment, rather than a pleasurable occupation; in preparing them for insubordination, by treating and speaking of the class of teachers as much inferior to

themselves, and by taking part against the former, upon almost every occasion where complaints are made by either party; in making holidays seasons for feasting, idleness, and dissipation, rather than of rational recreation and agreeable diversity in the mode of intellectual and moral improvement; in educating their offspring for situations which they will probably never fill, and giving them tastes and desires never likely to be gratified, thereby disqualifying them at one and the same time, for attaining any of the real enjoyments of the present life within their reach, or for gaining the promised blessings of the life to come; but what is worse than all, in presenting a continual variance between their own precepts and practice, and substituting worldly motives as inducements to acquire knowledge, rather than the love and practice of wisdom and virtue, as absolutely essential to happiness, both in our present and future state of existence.

In speaking of the obstacles created by teachers as a class, I charged them with deficiency of moral courage in pursuing the course essential to the maintenance of that high station in society to which all well qualified teachers who faithfully discharge their duties are justly entitled. I accused them of making the business of teaching a mere stepping-stone to some other pursuit, rather than a regular profession for life; and, of course, neglecting the necessary means to give it that respectability and influence in society which it ought to have, and certainly would possess, if they took the same care to prepare themselves to become good teachers, that other men take to distinguish themselves in the particular professions which they have finally determined to pursue. Another charge against them was, that instead of always aiding each other as members of the same fraternity, their insane jealousy often operated in such a way, as to bring their whole class into disgrace and contempt; that their grand panacea for stimulating to study, is *emulation*—a nostrum, which may perhaps cure the disease of idleness, but will leave in its place those diabolical passions—jealousy, envy, hatred, malice, and all uncharitableness; that their favorite punishments generally are corporeal ones, which can never do more than effect some temporary amendment of their pupil's conduct, without producing any in their bad principles; that the application of these punishments—these skin-deep remedies—is much oftener a process to work off the teacher's own angry passions, than to cure the pupil's faults—these last being considered rather

as school annoyances, to be put out of the instructor's way with the least possible trouble and delay, than as deep-rooted diseases of the heart, requiring the utmost tenderness and skill in the methods of cure—diseases too, which must utterly destroy the sufferer's happiness, unless radically conquered. I also endeavored to show, that in their modes of teaching as well as in the books taught, they either obstinately follow the course in which they themselves have been taught, thereby precluding themselves from adopting any real improvements which the progress of society may produce; or they run wild in pursuit of every new project which the reckless spirit of innovation is so constantly obtruding on the public. It was likewise alleged against them, that their efforts, even when most zealously made, were too generally directed, solely to stocking the minds of their pupils with words, instead of being applied with still greater assiduity to fortifying their hearts with just principles of thought and action; that they made education to consist simply in what is called school learning, instead of rendering it a development as perfect as possible, of all our faculties, both intellectual and physical; hence the ascendancy given to mere scholastic and scientific acquirements, over those great moral and religious principles, without a thorough knowledge and practice of which, man, although educated, is little better than a beast of prey, furnished with increased powers of doing mischief. But the worst perhaps of all the faults ascribed to teachers, is, that they rarely manifest any particular interest in the moral and religious improvement of their pupils—any strong anxiety for their future happiness—any great solicitude for the correctness of their conduct, farther than the teacher's own ease and reputation are concerned; in a word, any of those kind, affectionate feelings towards them, which will almost invariably secure their warmest attachment, and at the same time establish an influence over them immeasurably more powerful than can possibly be created by any other means.

In illustrating the obstacles to education created by pupils, I endeavored to show, that they too generally look upon learning as physic, rather than food; that they mistake both the nature and extent of their teacher's authority over them, and consequently, of their own obligations to obedience; that they view all holidays or hours stolen from school as positive gains, rather than losses—at least of time, if nothing else; that to thwart their teachers is a proof of independence—to cheat them, an evidence of genius; that their

own tastes and judgments are very soon deemed better guides for them, than their teacher's; that going to school at all, is a business, rather to please their parents than to benefit themselves—a most irksome restraint upon their natural liberty—a bondage which they may break as often as they can; and consequently, that their teachers are jailors, hired to confine, to tease, and to punish, rather than good friends, ever ready to show them the best paths to knowledge, virtue, and happiness. I charged them generally with mistaking, while at school, the mere mechanical process, called “going through their books,” for thoroughly understanding and mastering their contents; hence such pupils always measure their scholarship, solely by the length of time they spend at school, and the number of pages which they there read, instead of estimating it by the amount of really useful acquirement. I likewise attempted to show that pupilage is viewed by vast multitudes of youth, as the period for idleness—for reckless enjoyment, rather than earnest and assiduous preparation for fulfilling faithfully all the important duties of adult life; that the great moral laws made for the government of mankind in general, were not, as they believe, made for boys and girls at school—or that they may break almost any of them with impunity, provided their teachers do not detect them; that no thought nor care for forming their future characters need molest them, until after they leave school, which will be quite soon enough to undertake so troublesome a business; and, of course, that they may offend as often as inclination prompts them—not only against good manners—but truth, justice, and honor, without the least hazard to their reputations. To crown the obstacles to correct education, created by the faults and errors of youth, I will state one omitted in its proper place, which prevails to a most deplorable extent; it is the belief, that the matters usually taught in schools, such as will enable the pupils to get a college diploma, comprehend the whole of what is called *education*; and that these requisites to collegiate honors are to be obtained, if at all, merely for worldly purposes, not as auxiliary means only, towards perfecting, as far as practicable, all those admirable faculties bestowed on us by God himself for the noblest of all uses—that of promoting human happiness, both in time and eternity.

Superadded to all these formidable obstructions to education as it should be, many more arise from other classes of society than parents, teachers, and scholars. The chief of these are, the want of persevering zeal in this vital

cause, and the general neglect of all whose business it should be to inquire minutely and thoroughly into that part of the management of schools, which, very rarely, if ever, is made the subject of newspaper publication or individual scrutiny. Yet is this, beyond all comparison, the most important; I mean the particular methods of instruction, and the conduct of the teachers towards their pupils both *in* and *out* of school.

It is really not enough for the public to be told that at such and such schools, all arts, sciences, languages and accomplishments are taught *dirt cheap, and in the shortest imaginable time*—admitting the possibility of any such incredible promises being fulfilled. The main points—the great, essential groundwork of all right education, are *the moral discipline—the punishments and rewards—but above all, the motives and inducements to study*, which the teachers inculcate; for *if this part of the process be essentially wrong, no other part can well work rightly*. Into all these particulars, continual, earnest, and diligent inquiries should be made by competent judges—not to expose nor to injure individuals, but to supply what is deficient, and to correct what is wrong in all schools. Teachers themselves would not be long in setting about the work with due diligence, when they found public sentiment opposed to any part of their practice; and the community in general more disposed minutely and judiciously to investigate all such particulars relative to the management of schools, as it is always important, should be thoroughly known and understood. Most persons judge of schools by what they hear—not by what they see, or certainly know; and so little concern is usually felt about them, by any but those who have children there, that none else scarcely ever ask any questions on the subject. The consequence is, that although many will occasionally *talk*, as they do about various other matters which they do not understand, yet they rarely ever *judge* correctly. Idle gossip—the spirit of detraction—ignorance, and malice—will do infinitely more harm to these establishments, than the partiality of friendship, which is often equally blind, can ever do good; for the work of *pulling down* is always an easier, and frequently, to many, a much more agreeable task, than *building up*. Another great benefit which would result from so close and accurate a scrutiny as the one recommended, would be, that the investigators, and through them the public, would learn to make somewhat more charitable estimates of the difficulties which all teachers, especially of large schools,

have always to encounter from the faults and vices of their scholars, aggravated by the interference of ignorant, injudicious, and immoral parents. All who would open the eyes of their understanding would certainly discover, that not a few of these difficulties infest even female schools, wherein the common opinion seems to be, at least with most parents in regard to their own daughters, that “nothing can in any wise enter that defileth;” or, in other words, that “the beau ideal” of woman—all innocence, purity and loveliness—is the real character of all her female children, and inseparably attaches to them, wherever found, whether at home or abroad. Such a discovery, possibly, might also lead such all-confiding parents to the painful, but salutary suspicion, that *they themselves* may have been, by early neglect on their part, the real cause of these sore evils. Notwithstanding these parental hallucinations in regard to daughters, all experience proves that girls differ from boys in their faults and vices, only according to the degree of their exposure in early life, to the contraction of bad principles and bad habits. What, in reality, are schools, either of boys or girls, but the world in miniature, annoyed and distracted by nearly all the same faults and vices—in a mitigated form, it is true, yet still operating to the extent of their respective spheres, and in proportion to the power of the peculiar temptations by which the pupils are assailed, as well as of the good and bad principles which they carry with them from home? This is true as the Gospel itself—yet where are the parents who could bear to have any of these follies and vices ascribed by this rule to their own children, especially if they were daughters, or would believe the accusation, if made? What would become of the luckless teachers who would have candor and hardihood enough to venture on such revolting disclosures? In all probability the loss of employment would be the consequence, if nothing worse befel them. Yet, that disclosures of this kind might very frequently and most justly be made in regard to many individuals in all large schools, none can possibly doubt, who will deliberately reflect on the composition of very many of these institutions. What would be the result of such reflection? Why, that many of the scholars have traits of character nearly as bad as could well be expected at so early a period of life, and habits such as inevitably lead to moral degradation and destruction, if not radically cured during the period of pupilage. Children of all grades of capacity, from the highest to the lowest—of all degrees of moral and literary acquirement, from a considerable portion of culture and improvement, to a very

deplorable state of ignorance, idleness, and vice, and of all imaginable varieties of dispositions and tempers, are often found huddled together in these institutions. The unavoidable consequence is, that innumerable obstacles of almost invincible power to obstruct the progress of education, are continually presenting themselves—that numerous acts are committed to deplore, and a thousand things practised for which there can be no cure, unless both parental authority and public sentiment will steadily and most actively co-operate with the teachers, both in devising and applying the proper remedies. But how can this co-operation possibly be made, while the necessity for it is undiscerned—while the obstacles created by each party remain uncorrected, and the current coin between parents and teachers continues to be flattery and deception, instead of full and confidential disclosures by the last, of the children's faults and misdeeds, met by efficient support from the first, in every measure of salutary discipline? A reformation however, in these momentous particulars, is among the last things thought of, in regard to schools, where, in countless instances, the limbs and bodies of the pupils appear to be deemed much better worth training than their hearts and souls. If the first and last lesson taught a child, before it quits its home to be placed under other teachers, be, that the admiration and applause of the world must be the chief objects of pursuit, what success can the subsequent instructors possibly expect, who venture to inculcate a different lesson? What hope can they rationally entertain of substituting the love of wisdom and virtue—the fear of sin, and the holy desire of pleasing our Maker in all things, for the passions of pride, vanity, and ambition, sucked in almost with the mother's milk? Would it do to acquiesce so far in this primary instruction, as to tell the pupils that they must cherish these passions, but beware how they direct them? Would not such prescription be quite on a par in folly with granting a child inclined to drunkenness, liberty to drink every day to the point of intoxication, or with exposing one who had any other vicious propensity, to opportunities of indulging it? The truth is, that if children are turned over immediately from the parent's to the teacher's hands, with passions rarely or never restrained—vicious inclinations and wills unsubdued—stubbornness, idleness, and insubordination habitually indulged, the tutor who attempts their correction has scarcely a possible chance of success. The very first serious effort would probably soon cause the removal of such pupils, who would be almost sure to complain, and would as surely be believed; for parents who

spoil their children, are, most unfortunately, often found to confide in their veracity just in proportion as they should distrust it. But should the teacher's efforts to reform, fail to produce misrepresentations to the parents, they would usually be met by some such remonstrance as the following:—My father and mother never used to care about such things, and why should *you*? What right have *you* to condemn and forbid that which *they* suffered to pass unnoticed, and therefore, probably approved? Is the prospect any better, when there is no chance of appeal from the tutor's authority, nor of improper interference from such parents or guardians as have neither sense nor experience to know what is best for the children? It certainly *ought to be*, provided the instructors were well qualified for their offices. But alas! *they too* are often equally unfit, either from temper, ignorance, or subservience to the prevalent follies, prejudices, or culpable practices of the time present. If those whom it seems their interest to please, happen to be wrong-headed—unsettled in *their* principles, and vicious in *their* conduct, these suppliant teachers permit all *their* abstract notions of right to vanish into thin air, and will frequently abandon, not only their modes of teaching, but the matters to be taught, although confident of their great importance, that they may keep in favor with such really worthless patrons. It may be urged, at least, in mitigation of this, as well as several other faults of teachers, that they have to act both a difficult and most arduous part; for they have many wills, opinions, and principles besides their own to consult; many pernicious whims and wayward caprices to encounter; numerous prejudices to overcome; and not a few practices to oppose, which have either the parental sanction openly avowed in their favor, or that silent acquiescence in them, on which most children rely with equal confidence. Possessing little more than a mere nominal authority, and having always much work expected from them—such, for example, as making models of good conduct and literary acquirement out of all kinds of children—not only the well trained, but those who have been immeasurably petted and indulged—not only the talented, but the stupid—teachers are driven to the expedient of taking what generally appears to them “the shortest cut.” This is, if possible, to produce among their pupils, that anxious struggle for pre-eminence and victory over each other in scholarship, which can neither be excited nor kept alive without calling into action some of the worst passions of the human heart. But such struggle being recommended by the imposing misnomer of “noble, generous emulation,” passes without examination into

its moral tendencies, and is almost every where resorted to, as the only effectual means to secure diligence, ardor, and perseverance in the pursuit of scholastic knowledge. To fulfil, therefore, the unreasonable expectation of such persons as seem to calculate on a child's education being finished with almost as great despatch as a dexterous cooper sets up and turns off his flour barrels—as well as to save themselves trouble, seems to be the chief, if not the only reason why teachers have so generally cultivated the principle of emulation in their schools, as a species of “king-cure-all.” It is a poor excuse however, for instilling into the youthful mind a poison which rarely fails to baffle all the future efforts of moralists and divines who attempt its extirpation. That it is entirely unnecessary, has been again and again demonstrated by some of the most eminent writers, and most successful teachers who have ever lived. All who are concerned in the business of education should make common cause against this fell destroyer of the soundest principles of instruction; and he or they who could succeed in its utter extinction, would deserve the united blessings of every parent and child in the United States.

The following very striking remarks, from “A practical view of Christian Education in its earliest stages,” by T. Babington, member of the British Parliament, are so apposite to my present purpose, that I cannot forbear to quote them. In speaking of the father's duty, this admirable writer says —“He must hold out examples to his child in such a way as *not to excite emulation*. To imitate an example is one thing: to rival any person, and endeavor to obtain a superiority over him, is another. It is very true, as is maintained by the defenders of emulation, that it is impossible to make progress towards excellence without outstripping others. But surely there is a great difference between the attainment of a superiority over others, being a mere consequence of exertions arising from other motives, and a zeal to attain this object, being itself a motive for exertion. Every one must see that the effects produced on the mind in the two cases will be extremely dissimilar. Emulation is a desire of surpassing others, for the sake of superiority, and is a very powerful motive to exertion. As such, it is employed in most public schools; but in none, I believe, ancient or modern, has it been so fully and systematically brought into action, as in the schools of Dr. Bell and Mr. Lancaster. Whatever may be the merits of the schools of either of these gentlemen in other respects, (a question which it is

unnecessary to enter,) in *this* they appear to me to commit such an offence against christian morals, that no merits could atone for it. I cannot but think emulation an unhallowed principle of action, as scarcely, if at all, to be disjoined from jealousy and envy, from pride and contention—incompatible with loving our neighbor as ourselves—and a principle of such potency, as to be likely to engross the mind, and turn it habitually and violently from the motives which it should be the great business of education to cherish and render predominant—namely, a sense of duty, and gratitude, and love to God.” Instead of enlarging on this subject, I beg leave to refer to Mr. Gisborne's remarks upon it, in his “Duties of Women.” “If emulation (says he) is an unhallowed motive, it cannot innocently be employed, whatever good effects may be expected from it. *We must not do evil that good may come.* But if any christian should deem it not absolutely unhallowed, few will deny, I think, that it is questionable and dangerous. Even then, in this more favorable view of emulation, ought it to be used, unless it can be shown to be necessary for the infusion of vigor into the youthful mind, and for securing a respectable progress in literature? I can say, from experience, that it *is not necessary* for the attainment of those ends. In a numerous family with which I am well acquainted, emulation has been carefully and successfully excluded; and yet the acquirements of the different children have been very satisfactory. I can bear the same testimony with respect to a large Sunday School with which I have been connected for many years. I have often heard of *virtuous* emulation—but can emulation ever be so characterized in a christian sense? Whether it may in that loose sense of virtue which those adopt who take the worldly principle of honor for their rule, I will not stop to inquire.

“*But it is not sufficient not to excite and employ emulation on plan and system, as a stimulus in education—great care ought to be taken to exclude it.* And great care will be necessary, for it will be continually ready to show itself; and if not checked, it will soon attain strength, strike its roots deep in the heart, and produce bitter fruits, which, in the eyes of a christian, will be ill-compensated by the extraordinary vigor and energy it will give to scholastic studies. When examples are held out for imitation, (a very different thing, be it remembered, from emulation,) or *as warnings*, the child must be made sensible that its state in the sight of God is rendered neither better nor worse by the virtues or the faults of others, except so far

as they may have influenced, or may have failed to influence, its own conduct—that it ought to love its neighbor as itself, and to rejoice in every advance made by another in what is good, and to lament over all his faults and defects, without one selfish thought being suffered to check the joy or the concern—that it ought therefore to wish all its companions all success in their common studies, with the same sincerity with which it wishes its own success—and to be affected by their faults and failures in the same manner it would be by its own. It should be made sensible, in proportion as it may give way to feelings the reverse of these, that its ‘eye will be evil because others are good’—and it will act in opposition to the injunction, ‘mind not every one his own things, but every one also the things of others,’ and to a whole host of Scriptural precepts and examples. These things must be inculcated, not by lectures in general terms, but by applying such views to all the little incidents which call for them as they successively arise. The child must also be made sensible, how much better it is for himself that his companions should be eminent for laudable attainments and good qualities; for that, in proportion to their excellences in these respects, they will be useful and estimable companions, and ought to be objects of his affection. All little boasts of having done better than this or that brother or sister, and every disposition to disappointment when *they* succeed best, should be most carefully checked, and the lesson of ‘rejoicing with them that do rejoice, and of weeping with them that weep,’ must be very diligently inculcated.”

To these authorities of Babington and Gisborne, I believe might be added that of every writer of any eminence on the subject of education, from the first who denounced emulation as an unchristian and most pernicious principle of action, to the most distinguished of our own times. Yet, strange to say, it continues to be made the master-wheel of the whole machinery of instruction in almost all the schools of the United States. Very few exceptions can any where be found. The deleterious nostrum is administered far more extensively than any quack medicine ever yet invented—nay, than all of them put together; and common sense and christian morality interpose their warning cries in vain. Parents, teachers, and scholars are all playing into each others hands, (if I may so express myself,) to perpetuate this fatal quackery; but the sin lies principally at the doors of the first. *They* influence and direct, mediately or immediately, the whole system of education; and if *they* will not commence the Herculean

work of reformation, it must remain an utterly hopeless undertaking, since none else have either the authority or the power to make it. Self-amendment therefore in *them*, must necessarily precede amendment in others. But how is *this* to be brought about, when the leaders themselves, or rather those who should be so, in this vital work, are just as blind generally to their own faults, as so many insane persons; while the few who can see them, have not enough moral courage even to attempt their extirpation. The great popularity of emulation is easily explained: it saves parents the difficulty and trouble of explaining and enforcing the duty, demonstrating the advantages, and portraying the pleasures of literary, scientific, and moral acquirements; for teachers also, it is the same labor-saving process; while it imparts to the pupils themselves a stimulus to mental effort, similar to that which alcohol produces on bodily exertion—a stimulus that excites feeling, while it deadens judgment, and irresistibly transforms benevolence into the most unqualified selfishness. And thus it is, that instead of genuine christian morality and true religion being made the only basis of all education, a spurious principle of most pernicious tendency, fatal alike to both, is substituted for them. *Such a principle is emulation*, however sophistry may disguise, or our own bad passions recommend it. The victory for which it constantly goads us to struggle, *must be obtained*, cost what it may to the peace, the fame, or the happiness of others.

It may perhaps be objected, that if the moral and religious instruction of children were as much and as closely attended to as I seem to require, no time would be left for any thing else; and consequently, that on the principles here recommended, the mind would soon be miserably contracted by bigotry and fanaticism. Very far should I be, even if I had the privilege, from restraining the powers of the understanding, or limiting their exercise only to moral and religious subjects; although these, if prosecuted to their full extent, embrace quite enough for man's happiness in both worlds. No, God forbid; let these powers be carried to their highest point of attainable perfection—let them be most assiduously, most unceasingly cultivated to the latest period of human life, for such is the divine will of Him who bestowed them all. But I would invariably have it done in perfect accordance *with His will*, and solely for the promotion of human happiness—our own, of course, as well as that of others. *It never should be done*, for the wretchedly selfish, contemptible purpose of surpassing each other, and

obtaining the applause of beings equally frail, imperfect, and sinful with ourselves.—Shall I be asked, if I would exclude the love of praise from human motives? Assuredly I would, if it cannot be used without being made a paramount principle. For however pure it may appear, at first, there is always so much impurity mixed with it, especially when it results in active emulation, that almost all who are nurtured upon such diet, soon learn to feed upon the garbage of indiscriminate applause, when they cannot procure the nicer dishes of this species of mental aliment. The taste for it is perpetually becoming more and more depraved by indulgence—whereas the love of God, and of wisdom and virtue as *his* requirements, can never run to excess, nor can ever operate in any other way than to enrich, improve, and exalt the soul for all the great purposes, both temporal and eternal, to which it was originally destined. Shall we be told that the first motive is so much easier to inculcate than the last, as to produce a necessity for resorting to it? I shall continue to deny the fact until the experiment can fairly be made. This has never yet been done in a sufficient number either of families or schools, to furnish the necessary proof, to say nothing of the utter incompatibility of the two kinds of motive as controlling principles of conduct. Let us endeavor to illustrate this by numbers. If a hundred children under the process of education, are constantly urged on in their course by the stimulants of emulation and ambition, for one who is taught that these are not proper motives of action, (and I believe the proportion is still greater,) ought we to wonder that ninety-nine should be found *both emulous and ambitious*—should be found preferring the *lesser* to the *greater* good? Ought we to feel any surprise if human praise, present, palpable, and certain—held up too as the most desirable thing *in this world*, should be much more highly esteemed, than the remote, and with very many, the doubtful prospect of gaining something, they know not what, in a world to come—by acting as if human praise, however delightful, should *not be* the mainspring of our conduct in the present life? Yet where shall we turn our eyes or ears, and not find it so? Where shall we search without finding this cancer shooting its fatal roots into the very centre even of the youngest hearts? The process begins with the nursery slang of—“dear, sweet, precious little darling!—ar'n't you the most beautifullest, the best, the smartest little child in the whole world? and sha'n't you be far before them all?” This inordinate, immeasurable excitation is continued in all possible forms and modifications, until the well grown son or daughter is transferred

to some distant school with the valedictory dose of—"Farewell, my dearest child—be sure never to let any of your schoolmates get before you in your studies; you must outdo them all, or you will disgrace yourself and family." With such food, thus seasoned by nurses, parents, teachers, companions and all, from the first dawnings of intellect to its maturity, when the youth of our country issue forth from their schools, academies, and colleges, "with all their blushing honors thick upon them," where will the young brain be found that will not be turned with pride, vanity, and ambition? Where will be the young lady whose heart will not sicken at the thought of a rival in beauty or accomplishments?—where the young gentleman who would not be ready, should he deem it necessary, to assert his imaginary supremacy with sword and pistol, against all who might appear likely to cross his path, or mount the ladder of worldly honors and distinctions faster than he could? The driest tinder will not sooner blaze from contact with a lighted match, than will the passions of all young men, thus educated, take fire, and consume both others and themselves, if their selfish views of any kind are likely to be disappointed by conflicting claims to selfish gratifications. Can any persons, in their senses, believe it will be enough to save their sons and daughters from pride, vanity, and ambition, occasionally to tell them, "take care, my good children, you must not be either proud, vain, or ambitious," although they themselves are continually sowing the seed of these vices, and using all suitable means to make them vegetate and ripen. Would it not be stark madness in parents to expect that their sons should obey their injunctions to sobriety, if they placed them under continual temptations to get drunk; or, that their daughters could long remain innocent, if exposed constantly to all the allurements of vice in its most seductive forms? Yet equally mad are all parents who first subject their children to all the corrupting influences of merely worldly morals, and then expect from them such uniform examples of virtuous conduct as can flow from no other imaginable source but the morality and religion of the Gospel of Christ Jesus himself. For the immoral propensities and vices of children, there is no other radical cure under heaven than christianity; but alas! in many, even of the most popular schools in the United States, both christian morals and the christian religion, if not actually a species of contraband, are yet *untaught* as an essential part of the regular scholastic course.

Human happiness being acknowledged on all hands to be the only legitimate object of all education—happiness both here and hereafter—it has always seemed to me passing strange, that we should act in regard to the vegetable kingdom, where mere abundant fructification is the only object, on much more rational principles than we do in relation to that to which we ourselves belong. For example, from *the tops* of such plants as man has subjected to his culture, we never expect even *leaves*, still less *fruit*, until we have first taken good care to give *their roots* all the appliances which we believe necessary and proper. But a course nearly opposite is generally pursued with the human subject. We go to work most laboriously upon the *head*, before we so much as think of the *heart*, which may well be called the root of all our actions. Teachers themselves too frequently take it for granted, that every thing which ought to be done in this behalf has already been done at home, and is therefore no part of *their* business. But the deplorable fact is, that in very many cases, nothing, or worse than nothing, has there been done. In every such instance, the all-essential duty, however often neglected, of teachers, is to exert every faculty they possess for remedying so deadly an evil, since no great and permanent good can ever be imparted to the pupil without it. But *is this done generally*, or even in many instances? To prove that *it has not been done*, an appeal has been made to the experience of all who have well examined this subject, and I challenge a denial. It has been affirmed that our schools in general, from the lowest to the highest, do not sufficiently attend to the inculcation of moral and religious principles—do not make them, as it were, the foundation, cement, and finishing of all the various materials which contribute to form the superstructure called *Education*. The charge is certainly a very serious one; but fortunately, if it be unjust, the difficulty of disproving it will not be very great. It may be done, first, by the various public notices of what the conductors of our schools generally promise to do for those confided to their care; and second, by an exposition, fully and faithfully made, how far and in what manner these promises are fulfilled. Shall we find, in a majority of these notices, any thing more than a brief, general declaration, “to attend strictly to the manners and morals of the pupils?” If we can, then are they acquitted so far as *public pledges* can go. Have we yet been informed, that in a majority of these schools a regular and constant course of moral instruction is given, and that religious principle, not only in the abstract, but in practice, is earnestly and most assiduously

inculcated by every means in the power of the teachers? Then ought they to be acquitted also, on the score of *performance*. But let the appeal be made to these two tests when it may, and the melancholy truth of my assertion will flash conviction on the most incredulous minds. We shall find very many schools where languages, sciences, arts and accomplishments are well taught; while few, very few will be discovered, in which *that alone* which makes all these things of any permanent value, is taught *at all*, or taught in such a manner as to enable young people correctly to discriminate between the various species of knowledge, and to assign to each its just measure of real, intrinsic worth. For proof of this assertion, I would ask what body of trustees or visitors (call them what you please,) of our schools, do we ever hear of, making inquiries into any thing more than the literary qualifications and decent characters of those who either have, or offer to take charge of them? Would this be the case?—could it possibly happen, if religious and moral instruction held the rank which it ought to do, in their estimates of the comparative value of the matters to be taught? If the christian code of morals, the christian system of faith, have any advantage whatever over the faith and practice of those who think that they can do very well *without* christianity, or at least with a mere nominal belief in it, *ought such inquiries ever to be neglected?*—nay, should it not be considered an imperative duty always to make them? How many of our schools of any kind do we hear of, wherein even the formality of daily prayers, and regular attendance at places of public worship, are either insisted upon or recommended? Is this done in a majority of them? If not, how can the neglect be explained, but on the ground of disbelief in the duty and utility of these practices? And yet we are said to live *in a christian community!* and much offence, I presume, would be taken, were any person to address the public as if the contrary were the fact. But as trees must be judged by their *fruit*—not by their *names*, so must communities as well as individuals be characterized, rather by their practices than their professions.

There is still another and far stronger proof of our assertion, that moral and religious instruction is much and very generally neglected in our schools. Let any one who chooses to make the experiment, take, indiscriminately, any number of young persons, of both sexes, who have just left school, and ask them—“are you members of any particular christian church? If you are not, have you formed any distinct, settled religious opinions in consequence

of the course of religious instruction received from your teachers? Has any regular, earnest, unremitting effort been made to instil into your minds the general principles of christianity?" I verily believe that the multitude answering in the negative would shock any one who had the least particle of true religion in him. To this opinion I have been led, not by vague conjecture, but by much inquiry and observation.

It may perhaps be urged, that even theological schools—schools exclusively devoted to moral and religious instruction, sometimes turn out infidels, hypocrites, and profligates upon society. I admit the fact, but deny that any inference can fairly be drawn from it which could, in the slightest degree, invalidate the assertion that moral and religious instruction should ever be made the basis of all education. But one method indeed, occurs to me, by which this vital truth (as I firmly believe it to be) could be rendered even doubtful. It would be fairly to compare, if practicable, the numbers of worthless young persons from all our schools of every kind. Then, if the proportion from theological institutions was greater than from any other, or even should it prove as great, the peculiar kind of instruction there given might well be deemed worthless. But if this proportion really be smaller, almost beyond calculation smaller, as I verily believe it will be found, it must be as clear as a cloudless sun that the religious and moral principles taught in theological schools, are infinitely more available in making good and virtuous men, than all the other principles put together which are taught in other schools, and are consequently greatly superior to them, even *for this world's use*. Shall I be asked by the scoffers at religion, if I would educate all our boys for parsons? I will reply by another question—will not the scoffers themselves be willing to educate their children for heaven, if there *be such a place*? If there *be not*, what could they possibly lose, even in the present life, by having them taught to believe that truth, justice, mercy, and charity in its broadest sense, with all other good qualities that exalt man to his highest state of moral and intellectual excellence, have no other sure foundation, no other permanent sanction, but christianity? As a mere matter of worldly calculation, and upon the supposition that there is error, or at least *the risk of it* on both sides, any rational man would think that the point should be settled forever, even by so simple an argument as the one used by Cramb  with his master Martinus Scriblerus, when invited to join a society of free-thinkers. Cramb 's advice was, "by no means to

enter into their society unless they would give him sufficient security to bear him harmless from any thing that might happen after this life.” This is a kind of calculation which must always have some weight even with the most reckless, hardened sinner. As here presented in the identical words of Dean Swift, it may possibly have the appearance to some, of unbecoming levity on so momentous a subject. But I trust not, as nothing is more remote from my own intentions. No matter which can possibly engage our attention, can bear the smallest comparison with this in importance; and in this respect, the reformation of our schools throughout the country, is a subject of the deepest—the most vital interest. In many, very many of them, no religious instruction whatever is given; nor indeed, is there any regular, systematic course of moral study pursued as the most essential of the whole course; but (as I have before remarked) languages and sciences—sciences and languages, alternated in all imaginable modes and forms, constitute nearly the whole process of education for our sons; while our daughters, to compensate for their not being allowed to go quite so deep into such matters, have their feet and fingers taught to execute many truly marvellous tricks—and moreover, are instructed in the grand art of getting husbands by “dress and address,” as the quintessence of female education.

The sum and substance of all my remarks on this, as on former occasions, will prove, I hope, that many great and radical obstacles exist to the adoption and practice of a correct system of education, which are far from being necessary evils, although the various mischiefs done by them may be considered as working most fatally on the very vitals of society. Many of these obstacles have been, most justly, as I believe, ascribed to parents—many to teachers, numerous others to scholars, and not a few to the public in general. Whether these last will find any parents willing to acknowledge them, is more than I can tell. But believing that their existence cannot be denied—for they are seen and deeply felt every where—the conclusions to be drawn from such facts remain in their full force.

These are, that the teaching of *the heart* must always precede that of *the head*; that *right motives* must be inspired before *good conduct* can be expected, and that the Logadian plan of building houses from the tops downwards, must not be so closely imitated in rearing our edifices of education, if we wish them to answer any other than a very temporary and

comparatively contemptible purpose. In other words, we must take care always to commence with *the foundations*, and have *them* exactly as they should be, or the superstructures can never be either useful or durable to the extent they might be made. These foundations are—*not the alphabet, nor the arithmetical characters, nor grammars, nor dictionaries, nor foreign languages, nor sciences—but the love of God and man to be displayed in overt acts rather than by empty professions, and to govern, in fact, the whole life.* To make our entire work indestructible *hereafter*, as well as estimable in the highest degree *here*, the main pillars, as well as the corner stones and whole groundwork must be—aye, *must necessarily, absolutely, unconditionally be*, such as will pass inspection in the next life, as well as in the present. This brings us back to what has heretofore been so much and so earnestly insisted upon—the unqualified, the sacred obligation of all who have any thing to do, from first to last, with educating the youth of our country, to make, as far as practicable, not only *their motives*, but *the ultimate ends* of their whole course of study, such as may bear examination at the last great and awful day of our final account before the Almighty Judge of heaven and earth. This most momentous truth of a final judgment in another state of existence, for all “our deeds done in the body,” instead of being the first thing taught to our children as soon as their minds are capable of receiving truth at all, is generally left to find its way into them as it may—to be forced upon them in after life, as it rarely fails to be, by the terrors, the remorse of a guilty conscience, reproaching them for the commission of deeds against which early moral and religious instruction might effectually have guarded them. Yes, my friends, if there be any truth in God's word, such instruction *would guard—would save them* from these terrors and this remorse. What awful responsibility then attaches to all those who neglect to give it! What an appalling consideration should it be, that thousands upon thousands of our youth are taught—so far as parental example *can teach*, to smother all thoughts of a final judgment in feasting; to drown them in intoxication; to forget them in the long and deadly sleep of a bestial debauch; or to banish them from the heart by the various pursuits of vanity, pride, avarice and ambition! Yet most of these very parents themselves well know, that all such sensualities and indulgences together are utterly unavailing always, to ward off the dark, solemn hour of serious reflection and agonizing remorse, which *will* come, soon or late, to all offenders against the laws of God. Then rushes on the startling

remembrance of all their misspent hours—their vicious pursuits—their criminal deeds, to haunt their guilty imaginations with ceaseless terrors, and to leave them no rest but in the temporary oblivion procured by a repetition of some long practised debauchery or other. Such must inevitably be the fate, in a greater or less degree, of all who act as if no future accountability attached to them for present conduct; unless indeed, their profligacy has been so great, so incessant, as to have silenced entirely “the still, small voice of conscience;” and *then*, the sooner death sweeps them from the face of the earth the better—certainly for society, and none the worse probably for themselves. But what, my dear friends, does all this prove? Is it not demonstration strong as proof from holy writ, that religious and moral principle should invariably be made the basis of *all education*, and that nothing which is called education should be suffered to be carried on, unless in close connection with, and subordination to this all-absorbing truth of final and eternal punishment for sin—of final and eternal happiness for a life of holiness and virtue in the present world?

If this reasoning be just, why is it that a course of moral and religious instruction is either entirely omitted, or so little regarded in nearly all our schools, except such as are theological? Could it possibly be the case, if religious and moral principles were deemed just as essential among all orders of men, as in the clerical order? Yet if these principles be equally necessary to all, why is a matter so highly important—so indispensable to the well being and happiness of society—left in a great measure, to chance? Why are young persons at school, suffered to infer from the silence of their instructors, that no particular attention to this subject need be given, unless by those who design to become professional teachers of religion? Is it denied, even by infidels, that the principles and motives of conduct, so far as they can possibly be imparted by human means, are matters of infinitely more importance among the things to be taught, than any others which can be imagined under the name of knowledge? So far then, both believers and unbelievers agree. Both concur in the necessity of first instructing every child in that system of ethics which is to serve them through life as a rule of action; because all other information without this must be stock that they know not how to apply. Yet, neither infidels nor christians generally, if at all, give this vital instruction in any such manner, as to prove to their children, that they estimate it very far above all other, in the scale of real

value. The necessity of imparting it being equally admitted by the adherents of the worldly system of morals, and by the believers in that system left to us by our blessed Saviour himself, as the only sure guide to happiness, either here or hereafter, neither party can find any justification for their most shameful neglect. By this, they leave those whom it is their sacred duty to guide, without either chart or compass to steer their course through all the difficulties and dangers of life. Some religious parents and teachers there are, who express such a mortal dread of what they please to call *sectarianism*, that they will not venture to teach even the great fundamental truths of religion, in which all christians, at least, entirely agree; and thus, religious instruction of every kind is excluded from the course of these marvellously scrupulous persons. Others again, who, without believing one word of the Holy Scriptures, are yet willing, as a matter of prudence, to treat both them and their doctrines with external respect—say, that *they* teach nothing which is *contrary* to christian morality and religion. Although it would be easy to prove that silence in such a cause is little, if any better than open hostility, I will meet the assertion in a more direct way, by denying its truth. The fact is, that in every school in the United States, wherein moral and religious instruction is neglected, many things are taught which *are contrary* to the principles of christianity. To prove this, look at the direction given to the conduct of the pupils—the motives by which they are actuated, and the objects at which they are taught to aim. Are not these *all worldly*? Are not many of them *absolutely forbid* by the plainest precepts of christianity? And what more need be asked to demonstrate the truth of my accusation? Numerous exemplifications have already been given of the false morality, and consequently false religion imbibed, if not actually taught, both under the parental roof, and in our schools. In fact, the instances are so abundant, that I have scarcely ever attempted to trace the immoral and irreligious opinions of any persons whatever to their primitive source, without discovering that these opinions were derived chiefly from the precepts and examples of their early instructors. Motives being the source of all actions, and principles their regulators, both *must be made* what they *ought to be*, or the actions themselves can never be morally good: yet most teachers appear to think that the principles and motives of their pupils are matters with which they have little or no concern. If their heads be filled with what is called scholastic learning—if they can be made punctually to obey scholastic rules, the instructors generally deem their part

of the business of teaching accomplished, and the hearts of their scholars are left to form themselves. But what, in reality, can avail all the scholastic learning in the world, unless the possessors are first inspired with the only true and proper motive for acquiring it, at the same time that they are taught its only justifiable use? This motive is social, philanthropic, heavenly; it is the love of God and his creatures. It impels to unceasing beneficence on earth, and leads us to look to heaven for our final reward. But the motives encouraged at least, if not openly taught in a great majority of schools, as well as by most parents, are essentially selfish and exclusive: for their objects are personal fame and personal aggrandizement, to be gained at any expense whatever, of mortification and suffering to others, which successful rivalry can inflict, or eager, insatiate competition can procure. Such motives and such morality interpose no effectual bar to the indulgence of any strong passion which happens to seize upon the individual governed by them, provided only such indulgence be openly tolerated by fashion, or silently permitted. For example, they never prevent our sons from drunkenness, gambling, or blowing out each other's brains for the most trivial causes imaginable, while they almost encourage, by failing to mark with utter reprobation, a species of profligacy too revolting to be mentioned. In regard to our daughters, the prevalent system of instruction cherishes a passion for dress—for public amusements of all kinds in which females are permitted to join—for company keeping—for general admiration—which unfits them for domestic life, and leaves their hearts a prey to all the tormenting distractions of envy, jealousy, and disappointed pride and vanity. Against these vices so destructive to the happiness of both sexes, I know of no regular course whatever of religious and moral instruction in our schools generally, especially of the preparatory kind. Recitations in languages, and elementary books of science, with a little writing and cyphering, comprise the sum total of the matters taught; and whether the children are Mohammedans, heathens, infidels or christians, is an affair which seems to be thought not properly cognizable by teachers at all. Here let me once more repeat, that I never would make, even had I the power, any alteration whatever in our systems of instruction, which would tend, in the slightest degree, to prevent the youth of our country from reaching the highest attainable excellence in all the justifiable pursuits of life. But I would have it thoroughly and deeply impressed on their hearts, under all circumstances—at every period of their pupilage, and at all times, *that truly moral*

conduct resulting from genuine religious principles, is “the one thing needful,” first and far above all, both for time and eternity. Nothing should ever be taught in *any* school, high or low, great or small, but in complete subordination to this most momentous, most vital truth: nor should any teacher whatever be suffered to neglect making *this* the chief object of pursuit for every scholar under his or her care.

This plan alone, with God's blessing to aid it, can ever achieve the so much needed scholastic reforms and amendments in the modes and general scope of parental instruction. This alone can ever materially diminish that enormous mass of vice and crime, with all their soul-sickening consequences, which renders this world a scene of such constant, indescribable wretchedness in so many of its aspects. And who are *they*, my friends, that make it so? Who are the poor, forlorn, outcast wretches, that have brought disgrace upon their sex, shame on their families, and endless woe upon themselves? Are they not, in almost every case, the miserable victims of infidel opinions imbibed in early youth, under parents and teachers who have incurred the deep and deadly guilt of neglecting to take care of their precious souls, until the critical hours for correcting their evil propensities had forever passed away? Who compose that motley, most pitiable group of both sexes, and of almost all ages, with which our jails and penitentiaries are filled? Who are the shedders of their brother's blood? Who the robbers and murderers for gold, for revenge, for lust? Who the hellish destroyers of female honor, purity and peace—the perpetrators of crimes that carry ruin, misery and death into the peaceful abodes of domestic life, tearing asunder the nearest and dearest ties of our existence, and outraging alike all laws, both human and divine? Are they persons who have been morally and religiously educated from infancy, or such as have been most shamefully, most guiltily neglected in these all important respects—such as have hardly so much as heard of any other bonds—any other fetters to restrain their criminal passions—to prevent their atrocious deeds, than the gossamer filaments of a mere worldly morality? Alas! my friends, the bare contemplation of such heart-rending results, from the neglect or perversion of education, is enough to make every mother of an infant yet guiltless of actual sin, press the little innocent still closer to her bosom than she would do from the ordinary impulse of maternal love, in shuddering apprehension of what may be its future fate. It is enough to

make every father tremble in considering the future destiny of his child, lest some neglect of duty, some false instruction, some vicious example on his part, should bring this child of his heart to misery and destruction. Will *you* then, my dear hearers, do nothing to prevent such consummation, either as regards your own offspring or that of others? Can *you*, who have so much power—so deep an interest too in this momentous matter—can *you* deliberately and seriously contemplate these crying evils, this enormous aggregate of human guilt and woe, without ascribing it principally to our defective systems of education, and without some secret dread lest *you yourselves individually* may have, in some way or other, either directly or indirectly, contributed to augment it? Will you not add to your power of establishing, patronizing and regulating schools, the still more effectual influence of *your example* in the early instruction of your children, to make education what it should be, in all its branches? Can there be any thing that concerns us in the present life—is there any thing in the whole compass of thought, which should excite half such deep, heart-felt, all absorbing anxiety, as to remove this deadly curse of ignorance and vice from our land and nation? That it *is removable*—at least in a degree beyond all calculation, greater than we can judge from beholding its present widely spread mischief, none can doubt who believe in the scripture assurance, that if we train up our children in the way they shall go, they will not depart from it; or who confide in the extent to which, by the blessing of God, all human beings may be improved, both in knowledge and virtue, by means of education. Not only our own happiness, but that of our children and children's children, to the latest generation, are at stake; and it depends upon *you*, my friends, *you*, who, in full proportion to your numbers, can direct and control the education of the present race, whether this happiness shall be increased or destroyed to a degree which it has never yet reached. Upon *your* precepts and examples, while your children are under your own care, and upon *your* choice of preceptors, when you confide them to the care of others, it depends—whether these children shall prove curses or blessings to themselves, to their parents, and to their country. Let *all our resources then*, both mental and physical—*all* our available means, both of talent and wealth, be applied to the requisite extent, for the attainment of so glorious a purpose. The individuals who achieve it—if it ever is to be achieved, will merit the highest honors—the richest rewards that this world can bestow,

and will enjoy all the happiness promised in the next, to the greatest benefactors of the human race.

And now, my friends, in bidding you farewell, permit me freely, but respectfully, to address my few concluding remarks still more personally to yourselves. *Ye parents*, who are conscious of faults that obstruct the education of your own offspring and are anxious to mend them—ye who still have children to be instructed, and cherish that deep solicitude for their continual improvement in knowledge and virtue, which it is your most sacred duty to cherish—*ye teachers*, who justly estimate the nature and extent of the momentous trusts confided to your honor, and the fatal consequences of neglecting to fulfil them—*ye young men and maidens*, who are still under pupilage—behold, I beseech you, the moral mirror which I have held up to your view. Search it again and again, and if you discern therein any similitude to your own defects, let it not be seen in vain. Oh! suffer it not to pass away “like the morning cloud or the early dew,” but set *instantly, earnestly, perseveringly*, about the vital work of extirpation, as your only hope for happiness either here or hereafter. Learn to consider—nay, *never for a moment to forget*, that nothing called education can have a shadow of pretence to be pronounced complete, but that which has for its basis the Gospel of Christ as well as its divine morality—that to act on every occasion as *this* directs, is true wisdom—and that to gain the power of doing so, you must cherish in your hearts, through all the vicissitudes of life, the same heavenly dispositions and sentiments which the pious Cowper has so feelingly expressed in the following admirable lines.

*Thou art the source and centre of all minds,
Their only point of rest, Eternal Word!
From thee departing they are lost, and rove
At random, without honor, hope, or peace.
From thee is all that soothes the life of man,
His high endeavor and his glad success,
His strength to suffer, and his will to serve.
But oh! thou bounteous giver of all good,
Thou art of all thy gifts—thyself the crown.
Give what thou canst, without thee we are poor,
And with thee rich, take what thou wilt away.*

THE RAINBOW.

“The Rainbow,” by Campbell, “Triumphal Arch,” &c. is indeed a glorious piece, and worthy at once of the subject and the poet. Nor does it derogate much from his genius, though it does a little perhaps from his honesty, that he has borrowed (without acknowledgment) two or three of the finest thoughts and phrases in it from an older bard, a certain Henry Vaughan, who flourished about two centuries ago, and whose poems, says Montgomery, “amidst much harshness and obscurity, show gleams of rare excellence.” Thus these lines of Vaughan,

How bright wert thou when Shem's admiring eye,
Thy burning, flaming arch did first descry;
When Zerah, Nahor, Haram, Abram, Lot,
The youthful *world's gray fathers*, in one knot,
Did, with intentive looks, watch every hour
For thy new light, and trembled at each shower

evidently suggested that fine stanza of Campbell—

When o'er the green undeluged earth
Heaven's covenant thou didst shine,
How came the *world's gray fathers* forth
To watch thy sacred sign.

But the verse which follows is an admirable addition of his own.

And when its yellow lustre smiled,
O'er mountains yet untrod,
Each mother held aloft her child,
To bless the bow of God.

This finishes the picture, and makes it perfect. And Vaughan's two first lines,

Still young and fine, but what is still in view,
We slight as old and soil'd, though *fresh* and new,

together with his two last,

Who looks upon thee from his glorious throne,
And minds the covenant betwixt ALL and ONE,

obviously kindled Campbell's two closing stanzas—

As *fresh* in yon horizon dark,
As *young* thy beauties seem,
As when the eagle from the ark
First sported in thy beam.

For faithful to its sacred page,
Heaven still rebuilds thy span,
Nor lets the type grow pale with age
That first spoke peace to man.

A splendid improvement indeed! In short, Campbell's Rainbow (or the best part of it, from the fifth verse to the end,) is but a sort of *secondary* of Vaughan's, though it is not in this case, as in nature, fainter, but *triumphantly* brighter and more beautiful than the first.¹

¹ Perhaps the reader may like to see Vaughan's piece entire. Here it is.

Still young and fine! but what is still in view
We slight as old and soil'd, though fresh and new;
How bright wert thou when Shem's admiring eye,
Thy burning, flaming arch did first descry;
When Zerah, Nahor, Haram, Abram, Lot,
The youthful world's gray fathers, in one knot,
Did, with intente looks, watch every hour
For thy new light, and trembled at each shower.
When thou dost shine, darkness looks white and fair;
Storms turn to music, clouds to smiles and air;
Rain gently spends his honey-drops, and pours
Balm on the cleft earth, milk on grass and flowers.
Bright pledge of peace and sunshine! the sure tie
Of thy Lord's hand, the object of his eye!
When I behold thee, though *my* light be dim,
Distant and low, I can in *thine* see Him,
Who looks upon thee from his glorious throne,
And minds the covenant betwixt *All* and *One*.

RIGHT OF INSTRUCTION.

Quare quoniam de re publica quærimus, hoc primum videamus quid sit id ipsum quod quærimus.

* * * * *

Est igitur, inquit Africanus, res publica *res populi*; populus autem non omnis hominum coetus quoquo modo congregatus, sed coetus multitudinis juris consensu et utilitatis communione sociatus.

* * * * *

Quare cum *penes unum* est omnium summa rerum, *regem* illum unum vocamus, et *regnum* eius rei publicae statum.

* * * * *

Itaque si Cyrus ille Perses *iustissimus fuit sapientissimusque rex*, tamen mihi populi res; ea enim est, ut dixi antea, publica; non maxime expetenda fuisse illa videtur, cum regeretur *unius nutu*. Ac modo si Massilienses nostri clientes per delectos et principes cives *summa iusticia* reguntur, inest tamen in ea condicione populi *similitudo quædam servitutis*.

* * * * *

Cur enim regem appellem Jovis optimi nomine hominem dominandi cupidum aut *imperii singularis*, populo oppresso dominantem, non *tyrannum* potius?

De Re Publica.

For the Literary Messenger to contain temperate articles upon general politics, and political economy, is in the humble opinion of the individual now writing, as manifestly proper, as it would be obviously the reverse for it to embark in the slightest degree in party strife. He was therefore decidedly pleased with the appearance of an article of the temper and tone of the letter in the last number upon the RIGHT OF INSTRUCTION. That article has so universally been attributed to the pen of the amiable and learned JUDGE HOPKINSON, that it would be affectation not to consider him as its author. This avowal, whilst it renders the boldness of an attempt at reply the more fearfully conspicuous, also renders more glaringly manifest the impropriety of suffering the gauntlet so gallantly thrown by so able and courteous a champion into the teeth of all Virginia's chivalry, to remain unaccepted. The fear that business, or inertness, or a belief that the question is settled, should prevent our distinguished men from entering the lists, and thus leave the impression that the cause of the Honorable Judge was deemed too righteous for our knights to risk the fate of the combat, has induced one little fitted for the controversy, with no little trepidation, to enter the lists. To drop a stale metaphor, I will venture to suggest a few plain reasons for thinking the argument of the Judge not entirely conclusive.

The Virginia doctrine of instructions is thus laid down by the Judge. "I understand that doctrine to be, that the instructions of a State Legislature to a Senator of the United States, are an authoritative lawful *command*, which he is bound implicitly to obey, and which he cannot disobey without a violation of his official duty as a Senator, imposing upon him the obligation to resign his place if he cannot, or will not, conform to the will of his Legislature." There is but one fault to be found with this definition, which is the insertion of the word "*official*" instead of the word "*moral*." We hold the obligation to obey instructions or resign to be a moral duty of the man, incident to the acceptance of the office, rather than the *official* duty of the

Senator. The latter duties are prescribed by the constitution, the former are established by general principles of political ethics. This distinction may seem to be rather nice than important, since the establishment of either would lead to the same practical result. But as we are now discussing the propriety of that result, it is important to know precisely upon what principles the right is based, lest we lose our cause by a mistake in terms. If we contended for the official duty of the Senator, we could look *only* to the constitution for the establishment of the right, but contending for the moral duty as an honorable man and an honest politician, we may look to any source not incompatible with the provisions of that instrument. The learned Judge proceeds, after laying down his definition to state his objections. The doctrine appears to him “to be absolutely incompatible with the cardinal principles of our constitution, as a representative government; to break up the foundations which were intended to give it strength and stability, and to impart to it a consistent, uniform, and harmonious action; and virtually, to bring us back to a simple, turbulent democracy, the worst of all governments—or rather, no government at all.” We Virginians must be permitted to join issue with the Judge upon each of these conclusions, and I for one must confess that my mind is not satisfied either by the ingenuity or learning displayed by him. But as his reasons for his conclusions are developed in the progress of his argument, perhaps it will be better to unfold our objections to his conclusions whilst following his reasoning.

The Judge sustains his views in the first place, by combatting the arguments of some writer in the *Richmond Enquirer*, who had endeavored, it appears, to sustain the republican doctrine by the federal authority of MESSRS. KING, JAY and HAMILTON, and for this purpose quotes their speeches in the New York Convention, which adopted the federal constitution. The Judge also sustains his opinions upon general principles. He labored under the disadvantage of not having the debates of the New York Convention before him, and was therefore compelled to reason upon the isolated extracts quoted in the *Enquirer*, without examining the context of the speeches for modifications or explanations of the particular expressions quoted. The present writer having neither the debates in the New York Convention or the *Enquirer* before him, cannot enter into this branch of the subject. This he regrets, because, although the question is one which must be decided upon its merits, and not upon authority, yet to prove that the federal doctrines of

the present day are contrary to those entertained by the founders of their own party, who were eminent and patriotic men, and largely concerned in the foundation of our government, would divest their doctrine of all the respect and sanctity which great names and great antiquity will sometimes give even to principles intrinsically wrong. The Judge then wisely endeavored to defend the federal patriarchs from our republican heresies, and made an effort to carry the war into Africa by showing, that even some of our republican fathers had repudiated our cherished doctrine. But has he succeeded in either? Without entering into that branch of the subject, we may be permitted to glance at his reasoning.

“Let us see. Mr. King is represented to have said, that ‘the Senators will have a *powerful check* in those *who wish for their seats*.’ This is most true—and in fact it is to this struggle for place that we owe much of the zeal for doctrines calculated to create vacancies. Mr. King proceeds—‘And the State Legislatures, if they find their delegates erring, can and will *instruct them*. Will this be no check?’ The two checks proposed, in the same sentence, and put upon the same footing, are the vigilance of those who want the places of the Senators, and the instructions which the State Legislatures can and will give to them. They are said to be, as they truly are, *powerful checks*, operating with a strong influence on the will and discretion of the Senator, but not as subjecting him, *as a matter of duty*, either to the reproaches of his rivals or the opinions of the Legislature. To do this, a check must be something more than powerful; it must be irresistible, or, at least, attended by some means of carrying it out to submission—some penalty or remedy for disobedience. I consider the term *instruct*, as here used, to mean no more than counsel, advise, recommend—because Mr. King does not intimate that any right or power is vested in the Legislature to compel obedience to their instructions, or to punish a refractory Senator as an official delinquent. It is left to his option to obey or not, which is altogether inconsistent with every idea of a *right to command*. Such a right is at once met and nullified by a right to refuse. They are equal and contrary rights.”

Here were two checks proposed by Mr. King to prevent misconduct in a Senator. The first was a continuing check, and would always operate upon his conduct, unless he was willing to give his rivals a great advantage, and would control him if he wished a re-election. The other was a check in the hands of the Legislature, ready to be applied to the *prevention* of any *specific* act of mischievous tendency by the Senator, and seems to have no connection in Mr. King's mind with the first check mentioned. The question put by him seems to imply that his mind considered this check as positively

and inevitably effectual in any case in which it might be applied. We must remember that he was arguing in favor of adopting the constitution, and offered a second check by which honor and duty would control the Senators, upon whom the fear suggested in the other check would have no effect. But let us consider them with Judge H. in connection, and suppose that Mr. King meant to consider the two checks as parts of one whole, and that the instructions would be a check *because* others wished for the seat. This construction would make it very clear that Mr. K. thought the Senator would be obliged to obey or *resign*, because unless such was his duty, his competitors for the seat could not possibly accomplish their wishes by means of instructions. Mr. K. only called the first a *powerful check*, and not *both*, as the Judge inadvertently says. With regard to the last, Mr. K. triumphantly asks, “*will this be no check?*”—as if he considered that as conclusive, and this check certainly operative in cases to which the first would not extend. It is true Mr. K. says nothing about the power of the Legislature to enforce obedience, because they have no such power, but he puts an interrogatory, which he clearly thinks cannot be answered in the negative, and leaves the question as if the duty of obedience was too clear for dispute. If this was not his idea, whence his triumphant manner? Did any body ever doubt the power of a Legislature to advise or petition their Senators? Then why parade so paltry and worthless a right with so much pomp, and as a valuable security to the States? What good was this right to do those who wished for the seats?

What if the State Legislatures do not have power to punish? They have no power to punish any official delinquences in the Senator, however gross and palpable, or any other violation of moral duty. They have no right, if they enjoyed the gift of divination, to prescribe the course of the Senator by law, providing for all contingences, nor can they order punishment by an *ex post facto* law, or cause punishments to be inflicted without a regular judicial trial, for any offence, except an immediate violation of their own order. Even if a Senator violates his positive pledge, the Legislature cannot punish him. They appear to be in this respect like all other constituencies, at the mercy of their representatives. Whether he acts morally or officially wrong, they cannot as constituents punish him. Impeachment seems to be the only remedy provided by any constitution, for any delinquency of any Legislator acting in his official capacity; and this being in the hands of the body to

which he belongs, is generally inefficient. It seems to be a sufficient answer to all arguments founded upon the incapacity of the Legislature to punish for a violation of this particular duty, to say that it cannot punish for a violation of any duty. Can it be hence inferred that the Senator has no duties? Unless it can, our adversary's argument is defective. Suppose it had the power to punish generally for what it deemed offences? Can any one doubt that it would punish this as one of the highest? But the power of *subsequent* punishment, or its absence, can neither create or extinguish a *previous* moral or official duty.

The Judge, in my humble judgment, begs the question, when he says, “it is left to his *option* to obey or not”—“a right to command is at once met and nullified by a right to refuse.” Our doctrine contends that he has no right to refuse, but we grant that he has the physical *power* to disobey, without the moral right. The only option which we allow him is that of resigning or obeying. If he resigns, of course, in ceasing to be our representative or servant, our commands cease to be of any force with regard to him.

The verbal criticisms entered into by the Judge, do not appear to me to sustain his case. To instruct is doubtless in its primitive meaning to *teach*, but the question is, when applied to the Senator,—teach what? Not certainly to give general information. Is it to impart superior knowledge upon the specific question to the Senator? This militates against the federal doctrine of the superior wisdom of the Senator; it supposes the legislative wisdom to be greater than his, and of course, as such, it ought to prevail. For what purpose would they enlighten him, if he was not bound to pursue the proper course thus pointed out? It must be remembered that *teach* does not mean to advise or request. If this legislative teaching, is not to give general information, or impart superior wisdom in particular cases, or request, or advise a particular course, only one thing remains to which the word teach can be applied, and that is the *will* or *wishes* of the Legislature; and the fact of teaching would seem to imply that he was to do their will if he knew what it was. They never teach unless they believe he intends to act contrary to their wishes, and their instructions are to inform him that he the servant has mistaken the will of his principal, and thus instruction given in cases of misapprehension or mistake of the will of the constituent, becomes the polite term for a command in other cases. This signification of command, is

also one of the regular meanings of the word. Johnson gives “Authoritative mandate” as one of its significations. To give less force than this to the word, would make the Legislatures mere petitioners, and their *instructions* to Senators have precisely the force of their *requests* to the members of the House of Representatives. But none of our writers, old or modern, ever considered these *requests* as any sort of check upon the House of Representatives; but all look to the Senate as a check upon that body, and to check the Senate they say the State Legislatures may instruct. If requests will be of any avail as a check, why go around Robin Hood's barn, to bring them to bear?—why not have said at once, the State Legislatures may instruct their members in the House of Representatives? “Will this be no check?” Since an example has been set by such high authority, of investigating valuable rights by the light of the verbal critic's lamp, let us see if Dr. Johnson will not extend a hand to save the people as well as to prop their masters. He defines a representative to be “One exercising the vicarious power given by another”—and vicarious is “*Deputed,—Delegated,—Acting in place of another.*” We can find no authority here for one who acts in a representative capacity, to act according to his own will, and in direct opposition to the will of those in whose place he acts.

The idea advanced by JUDGE HOPKINSON, of the impropriety of the Senator's acting upon the *dictation* of others, and his *own responsibility*, seems a little disingenuous. The agent must be considered as released from all responsibility, when he is ordered by his principal to do a particular act. If he thinks that act illegal, or dishonorable, he need not do it, but he ought to resign. And all the responsibility rests upon the instructing Legislature. He has no right to set up his opinion or conscience as supreme law for any one but himself, and he is bound to presume that his constituents honestly differed in opinion with him. If he disobeys, he will find that the people will think it quite as probable that one man was wrong from corruption, as that a majority of their immediate representatives were corrupt. We do not maintain that “it is the official duty of the Senator to obey *in all cases*,” but it is his moral duty in all cases in which he is instructed to do a possible act, to obey or resign. But says, Judge H., he may by his resignation defeat his constituents. Be it so—the responsibility is upon them; but they cannot be defeated in as great a degree, by having no representative, as by being misrepresented. No vote is better than a vote against ourselves. Admit the

reverse to be true, and can an involuntary, accidental defeat of the people's wishes, by a conformity to principle, be any excuse for a wilful and predetermined defeat of their will? Can the Senator say, if I had resigned, my successor might not have arrived in time to vote for you, and so I held to my place, and voted against you? When Judge H. contends that the will of the people may be defeated by the resignation of the Senator, and that he ought therefore not *to resign*, he admits that the will of the constituent ought to prevail, and of course that instructions ought to be obeyed.

The argument which contends that a Senator should not resign when he receives instructions which he cannot conscientiously obey, because his successor may obey, and thus perhaps violate the constitution, seems the most fallacious of all. It seems that because he has sworn as Senator to support the constitution, he must not resign. This oath surely only applies to his Senatorial career, and when his place is resigned his oath is expunged. If construed with the strictness required by the Judge, it would prevent his ever leaving his seat, or resigning, or declining a re-election. He would be bound always to be a Senator, if he possibly could, for fear his successor should violate the constitution. He has no more right to believe that his successor of the next month will violate the constitution, than his successor ten years hence. And if his oath requires him to hold on to defeat the one, it is equally obligatory with regard to the other, as far as any exertions on his part can effect the object. Thus Senators would be bound by their oaths to continue in office for life, if they could.

I have been a little surprised at seeing such language as the following from the pen of JUDGE HOPKINSON. "The people may instruct and the Legislatures may enjoin, and both will always, doubtless, be attended to with a deep respect and a powerful influence; but if with all this respect and under this influence, the representative or the Senator cannot, in his honest and conscientious judgment, submit himself to them, does he violate his official duty, and is he bound to relinquish his office? This is the question, and no affirmative answer to it, or any thing that implies it, can be found in any of the writings or speeches of any of the distinguished men at that time. The doctrine is of a later date; it is not coeval with the constitution, nor with the men who formed it."

The Judge seems to me here to shift his ground in some degree. He evidently considers the instructions as doing something more than giving information, for the Senator could not *be convinced* either by *respect* or *influence*. To instruct a representative, generally supposes a difference of opinion between the agent and principal. If this difference does not exist, the instructions will of course be obeyed, and no question arises. If it does exist, the Senator is bound to obey or resign, or he is not. If the latter is the correct doctrine, he must disobey, because his conscientious conviction requires him not to obey. Instructions then must either convince his reason, or be entirely inoperative. It is mockery to talk of respect and influence. It would be criminal in a Senator to be swerved from the conscientious conviction of his mind as to his duty, by respect for any men or their influence, however exalted they might be. To say that a Senator is not bound to obey or resign, because his conscience requires him to retain his seat and disobey—but that he will in fact sometimes obey from respect or influence, is reasoning about as correctly as it would be to say, “That he ought not to be held responsible because he is honest, but that he may be trusted because he is corrupt, or will at least stretch his conscience from respect to us.”

But it was not for the purpose of noticing this little discrepancy that the passage was quoted. It was for the purpose of noticing the charge, that our “doctrine is of a later date; not coeval with the constitution or the men who formed it,” which is indeed a startling opinion to come from a gentleman of the acknowledged candor and learning of JUDGE HOPKINSON. The opinion was expressed in the haste of private correspondence, and upon investigation will not be adhered to. The doctrine was not only existing and well understood prior to our constitution, but was coeval with representation. That the agent should conform to the express will of his principal, is so natural, that we cannot doubt its establishment at once, wherever the valuable representative principle has been introduced into government. It is one of its chief recommendations. We have recorded evidence of the exercise of this power many times, and from remote periods, in the British Parliament. Many of these instances of command and obedience are collected by MR. LEIGH in his Report to the Virginia Legislature in 1812. The British Parliament was the great model upon which our statesmen framed our constitutions, and with its principles and

history they always evinced an astonishing familiarity. We cannot suppose them ignorant of this great and obvious principle—a principle, beyond all question, of much more doubtful propriety in England then, and even now, than it can ever be in this country; because in England a few places elect representatives for the whole body of the people. But even there the true theory prevails, and the wisdom to which the constitution looks as governing the whole country, is that of the electors, and not the delegates. However small, ignorant, or obscure the place may be which sends a member, in that place the constitution supposes the wisdom to reside which is necessary to give one vote in Parliament, and not in the *individual* through whom the vote is given. If the constitution is in error, reform that, but do not usurp powers for the representatives. Hence the fate of the eloquent Burke before the electors of Bristol. In distributing more equally the elective power, our ancestors evinced both their justice and their wisdom. They saw no reason for supposing one portion of the country possessed of much more wisdom than another, whilst all alike required protection. The power of instructions and short terms they supposed a sufficient check to enable the people to protect themselves. Abundant evidence may be adduced to show that those great men were familiar with the importance, and obligation, and frequent exercise of this right. To prove this, we need go no farther than the Debates of the Virginia Convention which adopted the federal constitution. That constitution was no where more thoroughly discussed, or more warmly opposed, or opposed by men of more ability, than in that convention. Yet in their debates we find the right asserted both by opponents and advocates of the constitution; the one party contending that the right was not sufficiently secured by power to enforce its obligation—the other that the nature of the office, and the character of the men, would be a sufficient guarantee of their obedience. Instructions are frequently mentioned as a regular, legitimate, unquestionable mode of *controlling* the will of the representative. And the idea of disobedience is never suggested except in connection with other possible gross moral and official misconduct. Disobedience seemed to be considered as treachery to the constituent. As my authority is not accessible to all of your readers, you must allow me to quote liberally to sustain my opinions, at the hazard of encumbering your pages.

At page 69, MR. JOHN MARSHALL, so happily characterized by JUDGE HOPKINSON as “that great and pure man, that true and fearless patriot,” in answer to an argument of PATRICK HENRY, founded on the asserted rejection of the constitution by certain states, says, “New Hampshire and Rhode Island have rejected it, he tells us. New Hampshire, if my information be right, will certainly adopt it. The report spread in this country, of which I have heard, is that the representatives of that state having, on meeting, found they were INSTRUCTED TO VOTE AGAINST IT, RETURNED TO THEIR CONSTITUENTS, without determining the question, to convince them of their being mistaken, and of the propriety of adopting it.” This was a matter of overwhelming importance to the people of New Hampshire, in which their representatives were convinced that they ought to decide in a particular way, but being instructed differently, they would not carry out their own views, though in fact correct; but the whole convention resigned, to endeavor to convince them of their error. MR. MARSHALL quotes this instance of a whole body being prevented by instructions from doing the only work which they assembled to do, as a matter by no means astonishing or culpable, though he himself was of the same opinion with the representatives of New Hampshire. It was an example of good principle worthy of all imitation.

There are a few more remarks in the same speech which we cannot forbear from quoting. PATRICK HENRY was afraid to trust the power over both the sword and the purse to Congress, and was very jealous of the clause allowing Congress the power to keep secret certain matters, supposing that under the mantle of public necessity they would conceal their votes, and would violate the rights and instructions of their constituents without being detected. To this MR. MARSHALL says, “The honorable gentleman has asked, if there be any safety or freedom when we give away the sword and the purse? Shall the people at large hold the sword and the purse, without the *interposition* of their representatives? I apprehend that every gentleman will see the impossibility of this. Must they then not trust them to others? To whom are they to trust them but to representatives who are *accountable* for their conduct?” He then shows that secrecy is allowed in the British government, and proceeds thus. “We are threatened with the loss of our liberties by the possible abuse of power, notwithstanding the maxim, that *those who give may take away*. It is the people who give power and can take

it back. What shall restrain them? They are the *masters* who gave it, and of whom their *servants* hold it.” We cannot doubt that one holding these sound republican principles, then at least, approved the noble example of resignation on account of instructions, which he had just before quoted.

PATRICK HENRY was the great champion of the opposition in that convention, and so decidedly federal in his construction of its terms after its adoption, that he was afterwards elected to oppose MR. MADISON'S celebrated resolutions of '98. Yet we find him admitting the *right* of instruction in its fullest extent throughout the state and federal governments, and never seeming to suppose that the obligation would be doubted, but at the same time contending with a wonderful forecaste that the responsibility of our representatives would be no protection to us, because though instructed, they would be out-voted by other delegates who could not be instructed by us. He says at page 230, “He tells us responsibility is secured by direct taxation. *Responsibility*, instead of being increased, *will be lost* forever by it. *In our state governments our representatives may be severally instructed by their constituents.* There are no persons to *counteract their operations.* *They can have no excuse for deviating from our instructions.* In the general government other men have power over the business. When oppressions may take place, our representatives may tell us we contended for your interest, but we could not carry our point, because the representatives from Massachusetts, New Hampshire, Connecticut, &c. were against us. Thus, sir, you may see there is no real responsibility.” Here are instructions referred to as a complete security in the state government against *any* legislation objected to by the people, and as completely obligatory upon our representatives from the state in Congress, and only failing to be a complete protection there too, because *we cannot instruct* the representatives of New Hampshire, &c. He places the representative in the attitude of apologizing, not for disobedience, but failure in accomplishing the wishes of the people. Disobedience did not seem to enter his imagination, much less the right to disobey.

In another place we find the same great orator plainly referring to the exercise of this right, as one of the greatest bulwarks of freedom; and inveighing against the constitution because it gives the Senators the *power* (not the *right*) to disobey with impunity. He would have the legislature to

possess the power to *recall* in cases of disobedience. Look to his remarks at pages 252 and 253. He says, speaking of the project to barter away the navigation of the Mississippi to Spain, and the right of the United States to that navigation—"American interest was fully understood—New Jersey *called* her delegates for having voted against this right. Delegates may be called and *instructed* under the present system, but not by the new constitution. The measure of the Jersey delegates was averse to the interest of the state, and they were recalled for their conduct." In this paragraph he did not mean to say that instructions would not be given, or ought not to be obligatory, but that bad men would have it in their *power* to disobey without fear, *because* they could not be *recalled*. This at least is the only construction which will make his language consistent with that previously quoted, and that which now follows, from the same speech and the same page. "At present you may appeal to the voice of the people, and send men to Congress *positively instructed* to obey your direction. You can recall them if their system of policy be ruinous. But can you, in this government, recall your Senators? or can you *instruct* them? YOU MAY INSTRUCT THEM, and offer your opinions; but if they think them improper, *they may* disregard them." Here he thinks it would be a breach of duty to disregard them, and he objects to leave the *power* of disobedience in the hands of Senators, without the power to recall them, which he thinks made the control over them complete under the confederation, and would make it so under the constitution. But surely the power of subsequent punishment, or of providing against future mischief, from the hands of the same individual, does not create an antecedent duty either moral or official. The suggestion of punishment or prevention, implies the previous or possible violation of an existing duty. And the absence of a power to punish or prevent, cannot diminish the obligation of such duty, if admitted to exist. HENRY considered the force of instructions complete, by the mere power to recall, which certainly could not undo or invalidate the act done in violation of instructions; he therefore considered this recalling power necessary to make bad men perform the duty of obedience. He was satisfied with the articles of confederation, yet those articles do not mention a power to instruct, or a punishment for disobedience, any more than the present constitution. The subsequent power to punish by recall is the only difference. If we continue the same sentence, we shall find that he has coupled disobedience with bribery, and complains equally of absence of power to punish either. "If

they give away, or sacrifice your most valuable rights, can you *impeach* or *punish* them? If you should see the Spanish ambassador bribing one of your Senators with gold, can you punish him? Yes—you can *impeach* him before the Senate. A majority of the Senate may be sharers in the bribe—will they pronounce him guilty who is in the same predicament with themselves? Where, then, is the security? I ask not this out of triumph, but anxiously to know if there be any real security.” It would seem from this that the old patriarch was not thoroughly convinced of the incorruptibility of Senators, and wished to provide some mode of punishment for their offences, from the high moral crime of disobedience, to the petit larceny business of taking a bribe—and he even supposed a majority of the Senate might be guilty of the latter offence!

The views of this illustrious man, and zealous champion of freedom, are still further developed at page 283. He is there again expressing his fears that the transactions in the Houses of Congress will be kept secret, and clearly thinks there would be no danger, if our representatives were all good men and would obey instructions, except that of being overruled by a majority. “But it will be told that I am suspicious. I am answered to every question, that they will be *good men*. In England they see daily what is going on in Parliament. They will hear from their Parliament in one thirty-ninth part of the time that we will hear from Congress in this scattered country. Let it be proposed in England to lay a poll tax, or enter into any measure that will *injure one part and produce emoluments to another*; intelligence will fly quickly as the rays of light to the people. They will INSTRUCT their representatives to oppose it, *and* will petition against it, *and* get it prevented or redressed instantly. *Impeachment* follows quickly a violation of *duty*. Will it be so here? You must *detect* the offence and punish the *defaulter*. How will this be done when you know not the *offender*, even though he had a previous design to commit the *misdemeanor*? Your Parliament will consist of sixty-five. Your share will be ten out of the sixty-five. Will they not *take shelter* by saying they were *in the minority*—that the men from New Hampshire and Kentucky *out-voted* them? Thus will *responsibility*, that great pillar of free government, be taken away.” He thus thinks the clause of secrecy will be used as a shield to conceal the *offenders* who violate instructions, or otherwise betray their constituents.

MR. NICHOLAS, in reply to some of these remarks by HENRY, says at page 257, "But we are not to calculate any thing on New Jersey. You are told she gave INSTRUCTION to her delegates to vote against the cession of that right (the navigation of the Mississippi.) Will not the *same principles* continue to operate upon the minds of the people of that state?

"We cannot recall our Senators. *We can give them instructions*, and if they manifestly neglect *our* interest, we have sufficient security against them. The dread of being *recalled* would impair their independence and firmness."

MR. NICHOLAS thinks the *dread* of being *recalled* would impair independence and firmness; not the dread of being instructed, as contended for at the present day. He considers instructions as an efficient mode of insuring the desired course upon any specific question, on which it might be necessary to resort to them, but that a power of recall would produce a vacillation and weakness in the course of the Senator, which might be highly mischievous. He clearly thinks the Senator *must* follow the wishes of his constituents, when specially instructed as to their will; but when not instructed, that he ought firmly and independently to act as he thinks best, and not as if he was in perpetual dread of losing his seat. He wishes a preventive remedy and not a punishment. No Senator ought to *fear* instructions, because they do not punish or injure him; on the contrary, they remove a fearful responsibility from his shoulders—a responsibility so great as to make the power of *recall* a constant source of terror: because a recall would disgrace him as far as the Legislature could produce that effect by its displeasure. But if a Senator either obeys instructions or resigns from conscientious scruples, he reaps honor instead of disgrace. A Legislature might recall, from caprice, or faction, or the envy of influential men, and the stigma could not be avoided by any good conduct on the part of the Senator; but if he is instructed, whether from any improper cause, or from the best, he cannot be injured or disgraced unless he wilfully disobeys. If the instructions are bad, and he either obeys or resigns, all the odium must fall upon the instructing Legislature, and not upon him. He will be sustained by their common ultimate masters, the people, and the Legislature will not.

Can it now be said that this doctrine is a new one, conjured up long since the formation of the constitution? When we find that instrument sustained in the convention by one party, on the ground that this very right existed in sufficient force in the State Legislatures, and would be regarded by men of sufficiently high standing and integrity to be elected Senators—and opposed by the other party, at one time, because the Legislature had no power to punish a violation of the right admitted to exist, and at another, because though complied with, it would not afford adequate protection, because our instructed delegates might be defeated and overruled by a majority coming from other States. In these debates MR. MADISON had so many objections of a graver import to answer, that he never seems to have thought it worth while to answer, specially, arguments based upon the mere possibility of the violation of an admitted duty by representatives of as high character as the Senators were likely to be—because all such arguments were answered specially by his coadjutors, (as in the instance of Mr. Nicholas) and generally by himself, in frequent asseverations that objections of that character, founded on the frailty of human nature, struck at the root of representation, and sapped the foundation of republican government. If his silence upon this particular subject was not a direct sanction of the arguments of his coadjutors, it certainly cannot be construed into disapprobation of their doctrine.

Since we cannot find this illustrious statesman opposed to us in the debates of the Virginia Convention, let us follow him to the pages of “The Federalist,” so triumphantly quoted by JUDGE HOPKINSON, and see if he is there opposed to this sacred principle.

A right so important, so often asserted in his presence as existing, so frequently exercised in those times, if disapproved, should have been directly denounced in the letters of Publius. That great work left little to conjecture in the thorough examination which it gave of the rights reserved or the powers conferred by the constitution. Every objection which the talent of its opposers, or the ingenuity of its friends could imagine, was ably discussed. This right is no where denied or objected to. The passages on which Judge H. relies, do not in my opinion sustain him. Nothing can be found in the numbers 62 and 63, specially quoted, unfavorable to the exercise of this right, or the force of the obligation of instructions. In those

numbers, Mr. Madison is meeting two objections, of a similar character, to the constitution of the Senate. The one founded on the impossibility of recall, and the other the protracted duration of the term. The objections to the power of recall, we have already partially considered, and shown the wide difference which exists between that power and the right to instruct, as they affect the course of the Senator—the one being a power which may benefit a Senator, and cannot injure him, the other placing him and his character in a great measure at the mercy of jealous rivals, or the caprice of the factious. To have a very short term, would manifestly have an effect upon the Senator analagous to that produced by the power to recall. The fear of being turned out would operate as injuriously upon his firmness and independence as the fear of being recalled. Indeed it would be a source of greater terror, as the Legislatures could be more easily induced not to re-elect an officer whose term had expired, than to resort to the harsh measure of recalling one in the midst of his career. Both these objections were then of a similar character. Either of the powers demanded, would diminish the firmness and impair the independence of the Senator—prevent a sufficient continuation in office to ensure an adequate amount of information in public affairs to enable him to regulate foreign matters with skill, or pursue any uniform course of enlightened policy—and either would at the same time deprive the Senate of one of its principal badges of usefulness, as a check to the House of Representatives, with which it would have been too similar in its character and term of office to resist effectually its impulses to yield to popular opinion, or, as the Judge perhaps more properly expresses it, popular feeling. But none of these objections apply to instructions. They do not eject the Senator from office, unless he differs with his constituents upon some important question of constitutional law which is about to be practically acted upon; or unless he has in some manner committed his honor in opposition to his constituents. In either of these cases, the mischiefs of ejection sink to insignificance compared with the mischiefs of continuance. Upon the constitutional point he ought to presume the united wisdom of the two branches of his Legislature to be more capable of judging than his own; and if he has committed his honor, he ought to suffer, and not his constituents. In either case, the resignation is the privilege of the Senator, to enable him to remove himself from a delicate situation. It is not produced by the Legislature—it is no punishment—it is not a legal or official ejection from office—it carries no stigma with it—it is an

obedience to the requisitions of delicacy, and lofty honor, and not a compliance with the mandates of the Legislature. We instruct, and propriety, reason, and authority say *he* must obey; but justice says he may resign, if he cannot obey with honor. As well might it be objected to us, that we do not compel a Senator never to resign. Resignations for instructions no more shorten the term than other resignations; and as long as any are allowed, we must allow those made to save the conscience or honor. This is the only refuge; for duty requires obedience, and it would be dishonorable to disobey. The Senator, who is called a representative, has no right to save his conscience at the expense of his constituents, and throw their whole political weight in a direction precisely opposite to their express wishes. Instructions then neither vary or shorten the term of office. If they are obeyed, what harm is done? The will of the constituent has prevailed, as it ought to do, by the theory of our government. What if he resigns? The State is without a Senator, by his voluntary act to save his honor, and his successor perhaps carries into effect the will of his constituents. Where is the breach in the constitution? The same result might happen, because the Senator did not like his colleagues, or was in ill health, or embarrassed in circumstances, or accepted a federal office, or wished to travel, or engage in agriculture. If it is unconstitutional for a Senator to resign because his conscience or honor require him not to obey instructions, then is it equally unconstitutional for him to resign for any of these reasons, or any others which might occur to him. His failure to resign, or the want of power to compel resignation, cannot absolve him from the duty of obedience.

Instructions to Senators are always given by a solemn, deliberate, recorded act, passed by an organized body of representatives, responsible themselves to the people. Every delegate must account for the principles involved in his vote; but this responsibility is not generally held over him so rigidly when he votes for a Senator, unless he votes under express instructions, or the candidates represent opposite political principles. Many excuses may be given for voting for A in preference to B, though the latter may be most popular with the immediate constituents of the delegate; but the principles in the instructions must be fairly met and fully justified, to satisfy the people. Hence a greater responsibility is secured by instructions than by frequent elections.

A Senator who loves his country more than his place, can never *fear* instructions. They cannot, of course, then impair his independence or his firmness. The most which the fear of them ever could effect, would be to make him do the will of his constituents, which could surely do him no special harm. It was never supposed that the duration of office was to make a Senator firm against his constituents, and independent of their expressed will. But he was to be firm against his own fears, and independent of the House of Representatives or popular commotion. He is surely sufficiently far removed from the latter, when it can only affect him through the deliberate voice of two separate houses of the State Legislature. And then in truth it cannot affect *him*—*he* has nothing to dread: it only affects *the vote* of which he is the depository, and cannot remove him from his place. Is there no difference between a disposition to cater to every temporary whim or caprice which may sweep over the multitude, for *fear* of not being re-elected at the end of a short term, and a voluntary obedience to their deliberate will, expressed through two branches of their representatives? The House of Representatives will be sensitive at once to any commotion among the people. A temporary and dangerous excitement might lead them into improper acts, for *fear* of being turned out at the end of their short term. This house was expected to be thus sensitive, but the Senator's tenure of six years was given as a check to prevent this tendency from carrying the other house too far. That cannot be called a popular commotion which reaches him by the deliberate voice of two separate legislative bodies, acting under responsibility; but must be assumed by the Senator to be the deliberate judgment of all the people: it is, at all events, the deliberate judgment of all to whom he has a right to look. The Legislature has power by the constitution to elect him, and this carries with it the right to instruct him. But they exercise both these powers vicariously, and if they mistake the will of the people, they are responsible for their instructions, not the Senator for his obedience. His responsibility is removed by obedience or resignation. If he is “the anchor against popular fluctuations,” it is proper that like all other anchors, he should be hauled up when a favorable and permanent breeze enables the ship to proceed; and of this—not the anchor, but—those above it must judge. And if he hooks his fluke too deeply in the moorings, it is clear that unless there is a “capstan and cable” somewhere, he transcends the sphere of his utility, and does more harm than good by making a temporary stay a permanent fixture. PATRICK HENRY wanted to

give the Legislature power in such cases to *cut* the cable; and I think it would be well if such a power could be lodged with the *people* in cases of disobedience, or other flagitious offences on the part of Senators.

But to meet the argument of the Judge fully, it is only fair to quote it:

“Mr. Madison's second reason for having a Senate, or second branch of the Legislative Assembly, is thus stated: ‘The necessity of a Senate is not less indicated by the propensity of all single and numerous assemblies to yield to the impulse of sudden and violent passions, and to be seduced by factious leaders into intemperate and pernicious resolutions.’ If this is true of the House of Representatives of the United States; if their intemperate and pernicious resolutions are to be guarded against and controlled by the more sedate and permanent power of the Senate, how much stronger is the reason when applied to the Legislatures of the States? Having their narrow views of national questions, and their local designs and interests as the first objects of their attention, it seems to me to be a strange absurdity to put the Senate as a guard and control over the House of Representatives, and then to have that Senate under the direction and control of the Legislatures of the States—or it may be, on a vital question, under the direction of the Legislature of the smallest State in the Union. Are there no local impulses and passions to agitate these Legislatures? no factious leaders to seduce them into intemperate and pernicious resolutions—and to induce them to prefer some little, local advantage, to ‘the general welfare?’ To give to the Senate the power, the will, and the courage to oppose and control these sudden and violent passions in the more popular branch of our national legislature, Mr. Madison says, ‘It ought moreover to possess *great firmness*, and consequently ought to hold *its authority* by a tenure of considerable duration.’ But what can that firmness avail, how will it be shaken, of what possible use will it be, if the Senator is bound to follow the dictates of a changing body, subject, emphatically to sudden impulses and seductions, at a distance from the scene of his deliberations, and deprived of the sources of information which he possesses, and acting in a *different sphere of duty* from that he moves in? Firmness in an agent who has no will of his own, no right to act but on the dictation of another, would not only be superfluous, but a positive evil and disqualification. It would produce struggles and perhaps refusal, where his duty was to submit. The more pliable the instrument in such a case, the better would it answer the purposes it was designed for. To be firm, says Mr. Madison, the Senator must hold his authority by a tenure of considerable duration. But how can this be, if he is to hold it from year to year as the Legislature of his State may change its opinion on the same subject, and require him to follow these changes or to resign his place? The tenure of the Constitution, as Mr. Madison understood it, is essentially changed by this doctrine. These changes of opinions and measures are, in the opinion of Mr. Madison, a great and dangerous

evil in any government, and show ‘the necessity of some stable institution’ such as our Senate was intended to be—but such as it cannot be on this doctrine of instructions.”

I must admit my inability to perceive the propriety of the Judge's conclusions from Mr. Madison's premises. He is afraid of instructions, because *single* and numerous bodies are apt to yield to passion and faction, and he hence thinks it absurd to place the Senate as a check upon the House of Representatives, if the State Legislatures are to remain as a check upon the Senate. There seems to be a double fallacy in this. Does the Senate possess an exclusive patent of exemption from faction and passion, and the other frailties of human nature, to which the House of Representatives and *both* branches of the State Legislature, are to be held peculiarly liable? The Senate, as a body, would not be *checked* by the State Legislatures, unless a *majority* was instructed; and if this was the case, we must suppose instructions sanctioned by so many bodies to be the dictates of true wisdom, and not the offspring of faction and passion. If only a few Senators are instructed, we must suppose the object to be deemed important by the instructing States; and so far from the likelihood of sudden or violent passion, or the seductions of factious leaders thus affecting Legislation, we find the securities proposed by Mr. Madison quadrupled in numbers, increased by the distance of the bodies, and doubled by the difference in their constitution. If two federal legislative bodies are likely to ensure the defeat of faction and passion, when both belong to the same government—the members of both are members of the same political parties, and both meet at the same place, how much less likely is passion or faction to succeed *by means of instructions*, when it has first to encounter the federal House of Representatives, and then in succession a State House of Delegates, and a State Senate, and lastly the chance of an uninstructed, or differently instructed majority in the federal Senate. Surely Judge H. forgot the dignity and candor of the philosophical inquirer, and in vindication of a favorite theory, assumed the armor of a partizan, when he contended, that the faction and passion intended to be defeated by the constitution of the Senate, would be promoted by adding additional checks—checks, too, which we cannot doubt were contemplated as one of the principal means of rendering the check afforded by the Senate effective. So far from promoting hasty, passionate, or factious legislation, do not these numerous checks present almost too many difficulties to the execution of the deliberate will

of the people, which the Judge admits ought to govern? In doubtful questions, when parties are nicely balanced, a few recreant representatives, in either of the *four* bodies, can easily defeat any measure, however necessary, or earnestly desired by their constituents. If we suppose with the Judge, that the Senate is to be entirely controlled by the State Legislatures, then we should have *fifty-three* different deliberative bodies, representing the people in different capacities, and by different ratios, acting upon *one subject*. No measure could be carried through this ordeal by faction or passion, and instead of bringing us “back to a simple turbulent democracy,” we should have the best and the greatest quantity of checks upon turbulent legislation, of which any country could boast. If measures thus passed were not wise, it must be because the intelligence of the country is defective, and not because it is blinded by passion. The same reasoning applies to the instructions of any less number than the whole, because the uninstructed Senators must be presumed to act in accordance with the opinions of their constituents, and thus whether the instructed members carry their point, or are overruled by a majority, the deliberate sense of the community governs. But upon the theory of Judge H., not the sense of the community, whether deliberate or vacillating, but the arbitrary and adverse will of the *individuals* who happen to be Senators, disposes of every thing which we hold dear—not only the lives and fortunes of our people, but the very constitution of our country. If a *State* may have “narrow views,” so may an *individual*. If a State may not wish to be taxed to cut a little inland canal, two thousand miles off, a Senator may wish an embassy, or a department, or a bank accommodation, or a federal judgeship. But if the States do have local views and interests, are they not bound to protect them, and have they not *equal votes* in the Senate for this very purpose? Mr. Jay says, “enlightened policy will soon teach that the interests of the whole can only be promoted by a proper regard for the interests of the parts.” If the States wish to oppress others, or advance themselves at the expense of all, they will be certainly overruled by the majority. If they wish to protect themselves from oppression, they ought to have weight, and no human being should have power to throw their own weight against them.

The people of the states would be peculiarly destitute of protection, if they could not instruct their Senators, because from the size of the districts and number of the constituents, it would be extremely difficult, if not

impossible, to instruct a member of the House of Representatives, and hence PATRICK HENRY'S uneasiness for fear the Senator should disobey. What if the Senate should be “on a vital question under the control of the smallest state in the Union?”—Are the two houses of the Legislature of the smallest state less honest or less intelligent, than the individual Senator, who by supposition is about to oppose his own constituents and at least half of his co-Senators? Where is the evil? The will of the Legislature, which is responsible, prevails over that of the Senator, who is not responsible, unless he is for disobedience. Which adjustment of the question ought, by the theory of our government, to be most satisfactory? We cannot hold instructions to be an evidence of *passion* or *faction* in the Legislature, but disobedience we must hold to be a ground for suspecting the Senate. If neither of these operated, I can conceive no reason for not resigning, when obedience would be wicked or disgraceful. If Mr. Madison required firmness and independence in the Senator, against the instructions of his own constituents, as well as against the acts of the House of Representatives, as Judge H. supposes, then it is clear that he knew and understood the right, and its obligation, *and feared it*, and wished to provide against it, by protecting the Senator from its force. If such was his purpose, how egregiously has he failed—how bungling has been his work—how disingenuous his course—how unlike in all respects, is this to the other works of that great man? The length of term did not protect from instructions, because a Senator of one year may be instructed as well as one of six years. Where is the protection against this awful right? Mr. M. knew that it existed under the articles of confederation, and was exercised, yet he did not prohibit it in the constitution. He feared the power to recall, and he took away that; but it seems he feared this right, and left it. It is true that he provided no punishment for disobedience, but none existed under the confederation, and none had ever been found necessary in the British Parliament, the Convention of New Hampshire, the Congress, or the State Legislatures. If he feared the right, he must have wished it uprooted, yet he left it precisely as he found it. He was particularly cautious in concealing his antipathy in the Virginia Convention and the Federalist. In the latter he speaks of firmness necessary to resist the House of Representatives, and transient popular commotions which might affect that body, and I doubt not he meant to require firmness in obedience to instructions against the wishes of the House of Representatives as much as in any thing else. In the Virginia

Convention he heard loud calls for the protection of the right, yet never denied its existence.

Suppose a question arises in the House of Representatives dangerous to a state. It is carried in that body by passion or faction against such manifestations of popular will as can be given. It is believed the Senators will go the same way. The people have no resource left, but instructions through their State Legislature. If this has no effect, our servants are our masters, and we are ruled by an oligarchy the more odious, because it presents us with a mockery of representation.

But it seems that Mr. Madison thinks the Senate “may be sometimes necessary as a defence *to the people* against *their own temporary errors and delusions*; he justly applauds the *salutary interference* in critical moments, of some respectable and temperate body of citizens, to check the misguided career, and to suspend the blow mediated by *the people against themselves*, until reason, justice, and truth can regain their authority over the public mind.” This is correct reasoning, but it cannot apply to the States or their Legislatures, but must allude to the people of the Union and the House of Representatives. The Senate cannot defend the people of any state from their *own temporary delusions*, or afford a *salutary interference* with the proceedings of a State Legislature. The latter body is supposed competent to act for itself, and not to require the *protection* of the United States Senate, and still less of an *individual Senator*. This argument might be urged *in favor* of a Senator instructing a State Legislature, with more propriety than *against* the reverse operation, because under the present system the State Legislatures have no connection with the United States Senators unless they instruct them, and thus if they choose to be wilful and refuse to instruct them, which by this new construction would be to ask his advice, they may ruin the people by their temporary errors and delusions, without ever giving their Senator the power to save them by the salutary interference of his “respectable and temperate” mandate.

But it is admitted that a *temporary* delusion may possibly exist among the people, which may induce the House of Representatives to pass acts so dangerous that it may be necessary for the Senate to “*suspend*” them. “But the *deliberate* sense of the community, ought and ultimately will prevail.”

And yet a Senator has *power* to defeat this deliberate sense, as well as the *temporary* errors and delusions. He may *suspend* a good act, or he may fail to *suspend* a bad act. He may not only not concur with the House of Representatives when he ought, but he may concur with it when he ought not. Shall we have no “capstan and cable” to draw up our anchor in the one case, and no power to throw it out in the other? Must the temporary delusion prevail over the people's rights for six years, or the deliberate sense be delayed its healthy action for six years? Either question may be of vital and immediate importance. The single vote may saddle us with an enormous bank, with a controlling capital and an unlimited charter, or an oppressive tariff, which could not be repealed without ruin to many, or continued without ruin to ourselves. The temporary delusion may be a spirit of fanaticism, which may annihilate at a single blow, and forever, political peace and domestic happiness in half the Union, and yet the Senator may be infected with the contagion. A judgeship for life, or boundless wealth, may warp honest opinions, or buy up bankrupt profligacy. In short, a Senator may be sometimes wrong as well as the House of Representatives and the two branches of a State Legislature, and if he is a despot for the time of his election, he may do infinite mischief:—if he can be controlled by his State Legislature in particular votes by special instructions, he cannot do much harm, and may do as much good as the wisdom of his state, which is wiser than he is, will permit. Mr. Madison, when he spoke of the *interference* of the Senate, never could have meant to characterize the solemn and deliberate acts of a *State Legislature*, as the *temporary errors and delusions of the people*. Besides being too accurate in his language for this construction, he could not but believe that instructions would convey at least the best judgment of a majority of the Legislature. And he could not suppose it necessary for the United States Senator to protect the people against the best judgment of their own Legislature. The State Legislatures, in practice, possess the sovereign authority of the State; they make laws, and dispose of our persons and property; shall we appeal from them to their creature, the Senator, for *protection*?

If MR. MADISON had meant this he would certainly not only have prohibited State instructions to the Senator, but enforced Senatorial instructions to the Legislature. Why were we left without this protection from our temporary errors and delusions in so many important cases, and only provided with it

in those cases in which we venture to instruct Senators? This doctrine proves too much. Why was Mr. Madison silent in our Convention, when his coadjutors asserted this right? When HENRY so often objected a want of power to enforce it, why did Mr. M. not say at once it did not exist, and end the objection? If he had said so, and contended for the correctness of his position on the ground that the Senator must be firm against his own masters, and independent of his own constituents, to protect the people of the States from themselves, would this constitution have been ratified by Virginia? Never. One blast of HENRY'S soul-stirring bugle would have called all his kindred spirits around him—he whose keen scent could snuff tyranny in the tainted gale, would have spurned an elective as haughtily as he had an hereditary tyrant—the debates would have ended there—the friends of the constitution and of Madison would have deserted him—the deceptive parchment would have been trodden under foot, and its noble champion left its only advocate. No one can read HENRY'S anxious searching after the responsibility of Senators, and his earnest calls for the power of enforcing obedience, and believe it would have been otherwise. He laughs to scorn the argument that they will be good men, from which MR. MADISON wishes him to infer that they would obey. With what withering contempt then would he have received a proposition to make them *constitutionally* independent, as he feared they would be actually? And to have told him that this was necessary to make them *firm against us*, would have been only an aggravation of the insult.

It is surprising to hear JUDGE HOPKINSON say, that the hundreds of individuals who compose the State Legislatures, from all parts of their respective states, “have no means of knowing the public sentiments which are not equally open to the Senators; nor are their inducements to conform to them more persuasive and strong.” If this was not an error, it would be perhaps best for the legislatures to delegate their powers to several individuals, and go home. Those wise men, whose judgment is capable of protecting the state from its own errors, and at the same time, know so well public sentiment, and have every inducement to conform to it, would constitute the best legislature. But so much of an error is the first part of the proposition deemed, that the usual and most accurate method of examining into popular sentiment, is by the sentiments of the representatives. Each is supposed best to know and to represent the opinions of his own county or

district, and their united will is thought to be as accurate an approximation to the will of the people as human ingenuity can make. There is nothing else which affords us even data for estimating that will. The individual Senator has not probably a better knowledge of the wishes of the people than many of the single individuals who compose the legislature, especially if he is sent from a remote state, and has been long absent.

The inducements which the Senator may have to conform to the will of the people, may be as persuasive and strong as those of the members of the state legislature; and if they are, he will obey, unless his inducements to conform to the will of some one else are more persuasive and stronger. A Senator is a great man, and may expect executive promotion if this or that man is President, or this or that measure carried. We must suppose the latter inducements to preponderate, when he frustrates the will of the people, expressed in the only form in which it can reach him.

The Judge again quotes MR. MADISON. "MR. MADISON goes so far as to say, that as our governments are entirely *representative*, there is a total exclusion of the people, in their collective capacity, *from any share* in them." This is true, and makes it the more iniquitous to deprive them of any share through their representatives. If they can neither act themselves, or act by their representatives, they only elect masters, and it is nonsense to say the will of the people prevails. Mr. M. could only have meant that no act of the people, in their collective capacity, was a governmental act; he did not mean to say that they were slaves, who periodically elected masters, but that they should never act in person, and only by their servants. The inference drawn from this remark, viz: that the Senator ought not to be bound by the will of all the people in his state, must be fallacious. If all the people of a state came to the Senate chamber, and wished to give a vote, they could not vote except through their Senator. It is so ordained in the constitution; but how can it be thence inferred that the Senator is not bound to obey them? This however is impracticable, and the Senator can only know the will of his state through the legislature. That body constitute his constituency. Whether it properly represents the people or not, is a question between its members and the people. No Senator would have thought of looking beyond his own constituents, but from the fact that *they* happen to act vicariously. If the same number of individuals, not being representatives, were selected by the

constitution to elect Senators in the several states, it is clear that the Senators could not look to the public opinion of any persons except the electors. We must presume that the constitution meant to place the full power of instruction (if the right exists) exclusively in that body in which it had sufficient confidence to place the power of selection, and which only could practically exercise it. If the Senator does doubt, or is even sure that the legislature does not conform to the will of its own constituents, it will afford him no excuse for a similar violation. If a representative can look at all beyond the opinions of those who have a right to vote, then there is no limit. Where there are high freehold qualifications to suffrage, and instructions are given by every voter, a delegate may say, "The unqualified individuals outnumber you, and I will assume that they think differently"—nay, he may say, "the women, the children, the free blacks, paupers, Indians and slaves think differently, and they are a majority of my constituents." What then becomes of those guards and checks in the constitutions, which presume superior wisdom in a particular class of persons, or that certain rights require especial protection, if the delegate may thus, by creating a new and fancied constituency for himself, and one too which can never act upon him, and the opinions of which can never be known either by instructions or elections, set aside the sovereignty vested by the constitutions? This would establish a government of petty tyrants, under ideal responsibility to a fancied constituency. Why was the election of Senators not given at once to the people of the states? I have no doubt one of the principal reasons was the impossibility of instructing. I do not believe Virginia would have adopted the constitution, with no means of instructing Senators. If the people of the states had elected, the legislature would then have only had power to request them, as it now has over the members of the House of Representatives. The legislature possessed the double advantage of facility of action, and a comparison and a discussion of views from all quarters, in selection and instruction, neither of which could be possessed by the people. The members of the legislature are Senatorial electors, chosen for that purpose by the federal government, and cannot strip themselves of the power and give it to the people of their state—nor could a state convention take it away from them. What right, then, has a federal Senator to say the people of Ohio do not sanction instructions given by her legislature, any more than to say the people of Maine or Louisiana do not

sanction the same instructions. He has as much to do with the people of one state as of another.

Let us hear the Judge again.

“Instruction and resignation are not the means proposed by Mr. Madison to protect us from the corruption or tyranny of the Senate. He suggests no interference, in any way, on the part of the State Legislatures with their Senators, nor any control over them, during their continuance in office; but finds all the safety he thought necessary, and all that the constitution gives, in the ‘periodical change of its members.’ In addition to this, much reliance, no doubt, was placed, and ought to be so, on the expectation that the State Legislatures would appoint to this high and responsible office, only men of known and tried character and patriotism, having themselves a deep stake in the liberties of their country, and bound by all the ties of integrity and honor to a faithful discharge of their trust.”

Mr. Madison is here again providing against a rottenness in the Senate, which would not only set instructions at defiance, but every moral and political duty. He says, in effect, “you are afraid of a six years tenure, but you need not fear that, because at any given period only one third can have that duration, one third will hold for four, and one only for two years. Fear of not being re-elected, or a decreasing interest in the usurped power, will prevent them from corruption, tyranny, disobedience, and other iniquities. If all were at the same time tyrants of six years duration, you would be in danger; but the shortening term of some, and the hope that others will stay honest, is your protection. The honest ones will obey you from principle, the corrupt from fear.” This I conceive to be his opinion written out. For, says Mr. Nicholas in his presence, “we can instruct them”—and Patrick Henry says, in effect, “If they are bad men they will not obey—we ought to have a power of impeachment or recall, to make them obey; the rotation is not in my opinion sufficient surety of their obedience.” In those days goodness was thought to ensure obedience, but now it is thought if they are good men, “bound by all the ties of integrity and honor to a faithful discharge of their duty,” they will not obey, or need not, because so intelligent and so good—as if obedience was not the highest duty, or misrepresentation was the part of a faithful representative.

But let us look to the Federalist as we did to Dr. Johnson, in behalf of the other party. We find MR. MADISON, as well as his great coadjutors,

HAMILTON and JAY, speaking of the Senate, not as a little oligarchy, or Holy Alliance of absolute sovereigns for six years, but as an assembly of the *States*. Measures, says he, will have to be approved first by a majority of the people, and then by a majority of the *States*. The States will be interested in preventing this, or carrying that. Thus again indicating the necessity of giving the *States* an influence over the *people of the Union*. Among the reasons for giving the elections to the State Legislatures, he says it not only favored a select appointment, “but gives to the State *governments* such an agency in the formation of the federal government, as *must secure the authority of the former*, and may form a convenient link between the two systems.” The link is formed by the election, but if the Senators then become independent and firm against their constituents, what *secures the authority*? The federal argument supposes the Senator at the moment of his election, to lose all connection with his State, and become entirely a federal officer, representing all the United States. If this is true, how is State authority secured by his election? Mr. Madison's argument in favor of the Senate, based upon the assertion that every resolution or law will have to pass first a majority of the people, and then a majority of States, is a gross fallacy, if the States have nothing to do with the matter. He says, this “complicated check on government may prove injurious,” &c.; but how is it more *complicated*, if the Senators are independent, than the British Parliament is rendered by the House of Lords, or any State government by its Senate? He also speaks of the power of the larger *States* to defeat small *States* when unreasonable, by power over the supplies.

But there is yet better evidence of Mr. Madison's opinion upon this subject than all this. He has himself as a legislator, exercised the right. I have not the instructing resolutions before me, but I discover the fact from my copy of the resolutions of '98, '99, and the debate of 1800.¹

¹ *House of Delegates, Monday, January 20, 1800.*

Resolved, That five thousand copies of the Report of the Select Committee, to whom were referred the answers of several States upon the Resolutions of the last Legislature, the said answers [and also the *instructions to the Senators* of this State in the Congress of the United States, together with the names of those who voted on each of these subjects,] be printed without delay; and that the Executive be requested, as soon as may be, to distribute them

equally, in such manner as they shall think best, among the good people of this Commonwealth.

Attest,

WILLIAM WIRT, C. H. D.

H. BROOKE, C. S.

Note by the Publisher.—The part contained in brackets is not embraced in the present publication.

We approach now the last ground taken by the Judge, and that on which we should have supposed ourselves most impregnable—I mean the *Constitution*. I should have said there is nothing in that instrument to forbid, or which is inconsistent with the right to instruct, and therefore it exists. And for this, with many other authorities, we might have quoted JOHN MARSHALL, (Virginia Debates, 297-8.) “MR. JOHN MARSHALL asked if gentlemen were serious, when they asserted that if the State governments had power to interfere with the militia, it was by implication? If they were, he asked the committee whether the least attention would not show that they were mistaken? The State governments had not derived their powers from the general government. But each government derived its powers from the people; and each was to act according to the powers given it. Would any gentleman deny this? He demanded if powers not given were retained by implication? Could any man say so? Could any man say that this power was not retained by the States, as they had not given it away? For, says he, does not a power remain till it is given away? The *State Legislatures had power to command and govern their militia before, and have it still, undoubtedly, unless there be something in this Constitution that takes it away.*”

This power, like that of regulating the militia, was claimed and exercised by the State Legislatures before this Constitution, and is not taken away; therefore, by the reasoning of MR. MARSHALL, in whose presence this right was frequently asserted, it still exists, not *by implication*, but as an original power not given away. But JUDGE HOPKINSON pursues a reverse mode of reasoning, and thinks the right does not exist—first, because not expressly granted by the Constitution—and secondly, because no form of proceeding is prescribed by which a refractory Senator could be compelled to obey. We must answer to the first, that the power is not granted but reserved, and is

always understood to exist where representation exists, unless expressly prohibited. For the second, we must say, that no human ingenuity could devise a mode of compelling a refractory Senator to obey, because he may keep his purpose concealed until he votes; and that a power of subsequent punishment has never been given to *constituents* over their delegates in any representative government, and would be more objectionable and dangerous in this case than any other, on account of the peculiar relative situation of the two governments. The *power* of disobedience, of giving bad votes, and voting from corruption instead of conviction, is in the hands of all representatives, without power of punishment in the hands of constituents—can it thence be inferred that they have the *right* thus to act? The Constitution requires, for wise purposes, an indefinite and absolute power of attorney irrevocable for six years, and any form of punishment, to be effective, must interfere with this requisition. There are legal powers, which it would be a gross violation of moral duty to execute, and we must hope for some principles of virtue to actuate our Senators as well as other fiduciaries, without keeping their limbs always bound in cords, and their necks under the axe. There was no power to punish for this offence under the confederation. The power to recall was distinct from it, and though it might punish offences, could not create duties. Our instructions are private. The Senate has nothing to do with them. Our Senator may burn them. The Senate cannot punish him, and we could not, if he took a bribe. Suppose a legislator is always intoxicated, or spends his nights in riot, or gaming, and is thus rendered stupid and inefficient, or careless. This will be admitted to be a violation of duty, but his constituents cannot prevent it, or punish him. Constituents have no power even to compel attendance, nor can they recall for non-attendance, whether produced by wickedness or misfortune; and yet MR. JAY says—“All the States will have an equal influence in the Senate, *especially* while they continue to be careful in appointing proper persons, and *insist* on their punctual attendance.” There is no such power given in the Constitution. If they cannot instruct they cannot insist upon attendance. The word “*especially*” here shows that the writers of the Federalist did not consider the influence of the States and of their Senators as by any means synonymous, but looked to the former to control the latter, by appointing proper persons, or such as would obey.

The Judge thinks this power cannot flow, from the circumstance of the Senators receiving their *appointment* from the State Legislatures. He says, the President and Senate *appoint* Judges—“but are they to obey them?” Surely not. The Judges do not, either in fact or in theory, *represent* the President and Senate. Nor are they appointed to attend to their interests or *legislate* for them. The power does not flow from the faculty of appointing, but from the relation of constituent and representative. The Judge is elected for the soundness of his judgment, his knowledge of law, and his nice powers of discrimination in deciding controversies between the parties before him. He is the agent of nobody, and represents only the justice of the country, which requires him to be free from any extraneous influence. The Senator is elected for the skill and ability and faithfulness with which he will *represent* our interests and wishes. He is our attorney, not our judge. He is under our control, and we are not subject to his jurisdiction.

Let us suppose with the Judge, the case of a number of attornies, with powers irrevocable for six years, and indefinite within certain limits—the acts of a majority of attornies to be binding on all the principals, but the power of choosing any individual as attorney left open to the principals. Could they not be instructed? Could not the principals require a valid bond and security to obey or resign? If the attornies could judge exclusively of the limitations, and could bind their principals, might they not be tyrants and absorb all the fortunes of their principals. If selected to attend to the foreign trade of a set of merchants, they might control their domestic trade and interfere in their household matters. What injustice is done to any principal when the same right is extended to all? Is there not reciprocity? Is the right not a necessary protection? If a minority instructs for bad purposes it is overruled; if a majority instructs, its will ought to prevail. The advocate of the opposite doctrine supposes a right of the co-principals in the will of the delegate in opposition to that of his master, to be violated by our doctrine. Is this a part of the bargain?—a legitimate advantage?—Is the association not for mutual advantage, but to enable the cunning man to overreach his copartner by the ignorance or treachery of his agent? What may be a gain to-day may be a source of ruin to-morrow. Unless this game of overreaching is played, where is the loss by instructions? They must be either out-voted, or accord with the will of a majority. Do not proxies in joint stock companies always vote as directed by their principals? Would it

be thought honorable to hold a proxy and disobey the will of the principal? What have the co-principals to do with the reason for the agent's acts? Whether he obeys the will of his principal, or his own will, they are equally bound, and the question is between him and his employer. They have still less right to object to his resignation, because the agent is nothing in the contract, but the *act* is every thing. Whether the agent is bound by oaths and bonds and security to obey, or is left free, he is equally a legal agent.

But is it fair to judge of rights which appertain to the structure of our government, and are necessary for its proper administration, and the safety of the people, by analogy to a private association of individuals, whose rights, if not regulated by express contract, are regulated by the arbitrary dictates of positive law? You may suppose a private association to be regulated by any principles which you may please to fancy, and hence may suppose the right of instruction to exist or not at your pleasure. But you cannot infer from what you suppose to exist in this fancied compact, that an analogous right does or does not exist in the great positive governmental compact. That must be tried by its positive terms, and not by fanciful analogies.

Wherever a Constitution rests the power to elect *a representative*, there lies the power to instruct. A Senator is responsible only for his own conduct, not that of his constituents; if their instructions are not approved by the people, they are responsible. Shifting responsibility destroys responsibility. If a Senator may defeat the will of his constituents in any case, he may in all, however unanimous the people and the legislature may be, and however important and permanent the consequences of his vote. If his firmness and independence may defeat his constituents, and he call solemn acts of the legislature temporary delusions, so may he under a delusion, defeat the deliberate wisdom of the people. Persons now living have seen Senators disobey and defeat the deliberate judgment of the people, expressed by several successive legislatures, sanctioned by repeated State elections, and sustained by the concurrent opinions of a majority of the States, the House of Representatives, and a vast majority of the American people. If this is right, then our government is under the control of a despicable and vexatious aristocracy.

The Judge contends that we must extend our doctrine to cases of impeachment, or give it up. It must embrace every thing or nothing. If the State Legislature has the power of exception, it may instruct in some cases of impeachment, and forbear in others. It may instruct to condemn or acquit. If the Senator can make the exceptions, then says the Judge, this power is an *empty name*. This is too true. The Senator can have no power to make exceptions, and yet under this assumed right nine-tenths of the disobedience which has ever been committed has been cloaked. The Judge has never heard whether impeachments were included in the doctrine, because he is the first person who ever broached that doctrine. When the Senate sits as a court of impeachment, or upon executive appointments, they cease to be our *representatives*, they become ex officio jurors or councillors of State, and in either capacity we have no more right to instruct them than we have to instruct the Chief Justice, or the President. They cease to be Legislators, and belong for the time to the Executive, or Judicial departments. In both cases private rights are concerned, character and opinion is involved, and evidence may be taken. Judgment is to be given and not a law passed. We can instruct to do an act, but not to form an opinion—to vote, but not to give judgment as to fitness for office, or the propriety of rejecting an officer. We do not see the force of the Judge's reasoning which forces our doctrine to apply to impeachments. The Senator acts in two capacities, as distinct as if they were held by two individuals. They are held up in the Federalist as judicious exceptions to the maxims which require the legislative, executive, and judicial departments to be separate. The Senator takes a new oath in trying impeachments. We have no more right to instruct our Senators when made judges or councillors by the constitution, than when made permanent judges or ministers or heads of department by the President. And the inability to instruct in the latter cases, had as well be brought up against us as in the former, as a reason for not instructing them when acting as *our representatives*. We can *will* an act to be done, *but not* that the innocent are guilty, or the reverse. The Judge's definition ought to have exceptions for these cases, unless he holds them as all others do, as excluded *of course* by their nature from the controversy.

In fine, this is a right which the Legislatures can, will and ought to exercise. They can and ought to demand pledges, which no honorable man could disregard. Is there not always an implied pledge from the nature of the

office and the understanding upon the subject? Nay, is there not in Virginia at least a tacit pledge given by all Senators elected since the adoption of MR. LEIGH'S report and resolutions in 1812?—The last of those resolutions is in these words—“*Resolved, That after this solemn expression of the opinion of the General Assembly, on the right of instruction, and duty of obedience thereto, no man ought henceforth to accept the appointment of a Senator of the United States from Virginia, who doth not hold himself bound to obey such instructions.*” Is not acceptance of office under this resolution a tacit pledge, as binding as express words could make it?

I must conclude, having already occupied too much space in your valuable magazine, but the subject was too interesting and important to justify one in attempting to vindicate our cherished doctrines from the attack of so able a champion as JUDGE HOPKINSON, in too cursory an examination of his views. In conclusion, I must remark, that although we have to lament the misfortune of differing with that able and learned gentleman, and the lamented and illustrious MARSHALL, we feel no doubt of the support of HENRY, JEFFERSON, and

ROANE.²

² One word more. This article was written in great haste for the August number. Instead of this an addition to his letter was published by *Judge Hopkinson*, under his own name, in that number. It requires notice as imperiously as his letter. It *must* be noticed in the October Messenger. But *briefly*, very *briefly*. Subsequent investigation has satisfied the writer, that the Judge's opinions, both as to the *novelty* and *weakness* of our doctrines, are much less supported, either by *authority* or *reason*, than he had supposed, when he was writing this article. He thinks even the Judge himself may be convinced that “politicians of a later date” than the adoption of the constitution, are not the “authors of the doctrine of instructions.”

R.

DEATH OF THE PATRIOT.

BY W. GILMORE SIMMS.

Unembitter'd by hate, and untroubled by strife,
Shall the Patriot we loved, to the dark grave descend,
Whilst the foes of his well-spent, political life,
Have forgot each distinction in the wide term of friend.

Each doubt that had whisper'd against him before,
Each feeling of Envy, of Jealousy, Hate—
Now awed into silence and sorrow, deplore,
Nor seek to detract from the fame of the great!

And great may we call *him*, whose mind in its scope,
No barrier could limit, no danger could tame;
Whose love for his country kept pace with the hope
That prompted her efforts and led her to fame—

Whose eye overlooking the clouds and the coil
That grow with the darkness and din of the hour,
Beheld from afar the reward of his toil,
And hailed the bright promise that told of her power—

Whose soul to its purpose and attributes true,
Sublimed far beyond mere humanity's scan,
Toiled fearlessly still for the glory in view,
The rights, and the triumph, and freedom of man!—

No voice in that cause was more potent or free,—
No spirit more fearless, no feeling more strong,
And its eloquence bold, like a stream from the sea,
Bore down, all resistless, each bulwark of wrong.

Oppression grew humbled—the tyrant grew pale,—
Ancient Error, in fear for her temple and tower,
Arrayed her foul agents, and strove to assail,
But in vain—the brave spirit that grappled her power.

And down went her bulwarks, and snapp'd was her chain,
Her subtle pretences like webs, torn apart,
Left man, as creation first snapp'd him—again

Let man, as Creation first spake him,—again,
Unshackled by Error, by Power, by Art!

And this was his triumph! The first of that band,
The high, the unshaken, unselfish and true,
Who dared in the front of the danger to stand,
Defying its force, and defeating it too.

Make his grave in the rock which the pilgrim may see,
And seek, o'er the fathomless waves of the deep;
But his monument build in the hearts of the free,
The treasure most dear that a freeman can keep.

And shed not a tear when ye think on his name,
And mourn not his loss, who, in dying, has given,
A record of triumphs, the proudest in fame,
A charter of freedom as lovely as Heaven.

BRITISH PARLIAMENT IN 1835.

NO. III.

THE HOUSE OF LORDS.

Exalted as is the situation of the presiding officer of the House of Lords, particularly when he is at the same time high-chancellor of England, he has not, as speaker, the authority of the same officer in the lower House. The Peers address themselves to the House, and not to the presiding officer, when they rise to speak; this officer has not the power to decide to whom

the floor belongs, or to call a member to his seat; the House itself regulates all its internal police.

The mode of their election is the evident cause of this difference in the power of the two speakers; the one is chosen by the Throne, a power unconnected with the Lords; while the House of Commons elects its own speaker.

At five o'clock the presiding officer of the House of Lords appears on the woolsack, escorted by the usher of the black-rod and the mace-bearer. If three Peers be present the speaker can open the session; so that three individuals may form a House of Lords. The votes of two of them may reject a bill that has been passed unanimously by the six hundred and fifty-four delegates of the people!

It is not very unusual to see the House of Lords reduced to this legislative trinity. But let us suppose some important question to be the order of the day—no matter what. The hall will then be full—the majority of the Peers will be in their seats.

Glancing over the numerous heads of the compact crowd below, your attention will be attracted by many even in the centre of the Hall, as it would be by the principal steeples of a great city, of which you caught a birds-eye-view from some neighboring eminence.

The three round wigs of the three clerks of the House, are among the first objects that will catch your eye, seated as they are, at their official table, with their backs turned towards you. Opposite to these, their faces turned to you, are the three uncovered heads of Lord Rolle, the Marquis of Wellesley and Lord Holland; farther on, the two long wigs of the masters in chancery; and beyond, under the golden hangings of the throne, the official and huge wig of the speaker, which raises itself up with all the dignity of the tower of a cathedral, among the belfries of a city.

Let this principal wig, then, be our point of departure; starting from it we will run over the different quarters of the chambers, as in exploring London, we would guide ourselves by the dome of St. Paul. At the present time, the weight of this huge presidential head-dress is not supported by a

Chancellor. The great seal is in commission. The individual who sits with that air of noble ease on the woolsack is Lord Denman, the temporary speaker of the chamber, since the overthrow of the whig ministry preceding that of Sir Robert Peel. His manner would quickly inform you that the situation is not a novel one to him. In fact, he has been for many years Chief Justice of England. It was at the very bar of the House of Lords that he began to play an important political part; in 1820, he defended, with Lord Brougham, Caroline, the queen of George IV, against the heavy charges then brought against her by her royal husband. Could he have flattered himself at that period with the hope that he should one day become a Peer himself, and President of that chamber, before which he appeared as an humble advocate? It was not every ambitious lawyer who dared at that day to dream of the 400,000 of francs of salary that appertains to that lordly perruque.

Distinguished as he has been in his profession, it is neither the profound knowledge, nor the great eloquence of Lord Denman that has secured his extraordinary good fortune. It should rather be attributed to an indescribable but harmonious dignity of language, of person, and manner. You would think the senatorial throne had need of just such a man; M. Ravez himself was not more formed by nature for the presiding officer of a deliberative body. But this excellence, a little theatrical, of a majestic carriage and appearance, is not the chief merit of the noble Lord; his highest praise is that he remains the same man under the purple, that he was when dressed in the simple black gown of an advocate. A supreme magistrate, seated on the steps of the throne, he is still the affable and liberal counsellor of the court of chancery.

To the right of the speaker, and on your left, in a recess into which the glass of those folding doors permits but a doubtful light to enter, do you not see a confused mass of wax and ruddy faces, of white robes and black surplices? These are the three crowded benches of bishops and archbishops. Formerly they were not so eager to make use of their legislative privileges. At the present time every man is at his post; the church is supported by all its pillars. The Catholic emancipation has wakened up these *millionnaire* prebendaries from the lethargic sleep into which the gold with which they are stuffed, had plunged them. They keep strict watch around their heaps of

wealth. It will not be their fault if some crumbs from their splendid banquet be thrown to starving Ireland.

If you have only seen these prelates in the House of Lords or in the pulpit in full dress, you have examined but half the picture. You must observe them in private, in their foppish and gallant city dress. Do you ask what dashing personage that is, in a frock of the finest black cloth, his head covered with a hat of the longest beaver fur, with broad brims fastened up by cords of silk, galloping along the pavements of Regent street? A singular cavalier, in fact; and one who will still more astonish you when he leaps from his horse, and enters his club-house, his riding whip in his hand, affording you a better opportunity for observing his masonic-like costume, his high black *guetres* and black apron. Behold a very noble and very reverend Bishop of England.

And this other person dressed, after the same fashion, who is leaping from that open carriage, filled with young women, whose fair skins and rosy cheeks cannot fail to catch your eye, as we are crossing Westminster place? This, too, is a bishop, whose wife and daughters have just accompanied him to the parliament house.

But let us follow these noble Lords spiritual to their seats in the hall of legislation.

Figure to yourself an old woman with a face yellow and lank; let her bend under the weight of fourscore years; wrinkle her forehead with as many furrows as you can; let her voice be sharp and broken; let her eyes be uncertain, restless and suspicious: would this creature not be a faithful picture of his grace the Archbishop of Canterbury, the first prelate of England, now seated alone on the highest bench of the church? Is it not the very image of superstition itself? Decrepid, crouching, shivering!

This venerable Archbishop, superannuated and unfit for all service as he appears to you, has strength enough to speak the moment that any question in the least touches the revenues of the church. Upon such occasions his speeches invariably commence with many laudable reflections on the advantages of tolerance, and as certainly end by wishing damnation to popery both on earth and in heaven. This is at least the object of these discourses, for it is no very easy matter to seize their exact signification. His

grace, who holds his archbishopric of providence, has not however received from the same divine source, the gift of expressing his religious rancor with much ease or elegance. It always costs him a world of labor to put together his anti-Catholic homilies, incoherent and broken as they are. One would not say that gall flows from the lips of this mild prelate; he rather spits it out.

Do you not observe behind his grace, that little yellowish man with the eye of a caged tiger, constantly moving himself about, now leaning forward, now appearing so impatient, playing and jumping about on his bench: it is the bishop of Exeter, one of the sturdy pillars of the fanatic church militant. This man is the most cunning and dangerous foe to liberty; his evil nature clothes itself with all the seduction of the most amiable manners. No one among these noble and holy hypocrites has such exquisite politeness; or such gentle and insinuating address. Never did a cat better conceal its claws under the velvet of its feet.

The bishop of Exeter is not distinguished by the same quickness in replying to an adversary, that he is in attacking him; perhaps, I should rather say, that in his gentle warfare he never permits himself to act on the defensive. Listen to him, as he rises with the greatest humility, his little square black cap in his joined hands; his wallet is filled with denunciations—it must be emptied. Doubtless it grieves him, a man of peace, to have to war against temporal power! But why does temporal power presume to pare down the luxuriant dimensions of spiritual power? Oh! the charitable prelate, hear him! How his treachery smiles upon the lips! how ingenuously it scratches! Never had taunting so much *onction*—never was aggression so timid. Who is there that would have this trembling modesty in throwing discord in the midst of such an assembly? So soon as they are once struggling together, nothing remains for him to say. Whigs and tories tear yourselves to pieces, the good bishop will not interrupt you; he has discharged his duty as a protestant pastor. Tear yourselves to pieces. He sits down quietly, and contemplates the *melée*; tranquilly and at his ease, he laughs in his sleeve as he counts the blows that fall upon the minister. God forgive him! I believe his foot keeps time with the blows!

If I were to describe the thirty Protestant Bishops crowded together in this place, I would show you perhaps three or four almost whigs, and who rather more resemble christians, and among these particularly the brother of Lord Grey, the chief of this almost imperceptible spiritual minority; but enough of these specimens of the surplice. We will leave the bishops to our right. The first bench that we encounter after theirs, going towards the bar of the house, is that of the ministers. Here we will pause awhile.

Let us stop before this person in a gray hat, and dark brown riding-coat, carelessly supporting himself on his cane. The heat of the weather is extreme. To be more at his ease, he has, rather unceremoniously, taken off his cravat. If you were to meet him in St. James' Park, his favorite promenade, cantering on horseback, or walking on foot, his large nostrils snuffing the breeze, his head thrown back, his eyes sparkling and full of disdain, with his tall figure, and robust and soldierly appearance, you would take him for some old colonel on half pay, certainly not for the first Lord of the Treasury. Nevertheless this person is Lord Melbourne, the leader of the government.

But examine a little closer and more attentively this physiognomy; the expression of it is complex; it is a mixture of pride, indolence, and irritability. In this you have the whole secret of the talent and the fortune of this minister. It is almost a miracle that his natural indolence should have allowed him the ambition to aspire to the first office of the state; at least, I do not believe that he would have had the energy to have maintained himself long in that position, if it had not been disputed. It is because he had been once thrown out, that he is in office now. In throwing him down, they struck the mainspring of his strength; so he has rebounded, and in consequence has again raised himself to power, and re-established himself more solidly and more obstinately than ever. Such are those natures whose dormant energies require to be awakened by the lash of insult. In 1834, Lord Melbourne was but an inert and powerless whig; in 1835 he is a radical whig; he has made the throne capitulate, he has wounded the church, he threatens the peerage—why is this? Because you have offended him, because you have chased him from office. You alone can diminish his power. His eloquence has no other moving power than that which he derives from obstacles thrown in his way. Suffer him to go on, to speak as

he pleases—his words will grow feeble, and his speech drag itself laboriously along; cross his path, throw any thing in his way, he rebels, he is hurried along, he grows heated, he drags you with him, he is eloquent! His whole person, his whole soul is wrapped in his discourse. There is nothing studied, nothing solemn; all is sudden, involuntary. He, who but a moment since, was so grave, so subdued, now clinches his hands, now throws his arms out with violence, now leaps almost from the very floor; his angry declamation, his accents of indignant contempt proceed from the bottom of his entrails. Now his passion suffocates him: he no longer breathes; his discourse is interrupted; a profound silence ensues. At this moment he exhibits the trembling and magnificently impassioned air of Casimir Perier.

Lord Melbourne is the most original speaker, and the most peculiar in either house of parliament; perhaps the most impassioned, if not the greatest and the most perfect. As a statesman I have great respect for his moderate character; he is a progressive, bold, and thorough whig; but he is not a whig—an improvident aristocrat, who never inquires to what extremities the principles which he has inscribed on his banner may lead.

The member on the left of Lord Melbourne, of smaller stature than the noble premier, fat, all his limbs well rounded, yet not over large, with a frank and open countenance, is the Marquis of Lansdowne, the president of the council. You know that in England this office does not entitle the person who fills it to any pre-eminence over his colleagues; he is their speaker, and only presides over their deliberations. Their true leader and chief is the first lord of the treasury. The Marquis of Lansdowne plays his part with honor to himself in the House of Lords, and usefully in the cabinet. In a discussion he generally follows Lord Melbourne; his language is masculine and studied, his voice firm and sonorous, but his utterance is heavy and monotonous; he has evidently more words than ideas; he says trifling things, *les riens*, with too much solemnity; this regular and invariable emphasis destroys the effect of his best efforts. I could wish that he would spare a few of those thundering gesticulations, during which he strikes the clerks' table with such furious violence. It is a vulgar practice that should be left to Lord Londonderry, who sits before him across the table. This style of argument is much more becoming in a pugilist than an orator. I have been present, occasionally, when the noble Marquisses replied to each other with

the air of two people trying the strength of their arms, or hammering together on an anvil.

Those who recollect Mr. Pitt, observe a good deal of resemblance between the argument of that great statesman and the style of Lord Lansdowne's speeches. It is from Mr. Pitt that the President of the Council has acquired the habit of embodying a whole argument in one immense period, cut up into a thousand parts; but the supreme tact of Mr. Pitt always enabled him to lead his hearers, with infallible certainty, to the point he had in view, by cross and apparently opposite ways. The Marquis of Lansdowne is but too happy if he can extricate himself in safety from the labyrinths of his own parentheses.

That other angular figure, hipped, with a long stiff neck buried in a thick white cravat, not unlike a French provincial notary, is Lord Duncannon, the first Commissioner of Woods and Forests, and of the Privy Seal. He sits on the right of Lord Melbourne, and is one of the most useful members of the cabinet. Stammerer as he is, he speaks often, and always willingly; he wants words more than thoughts; his *sang froid* often serves him in the stead of wit, though he occasionally strikes an adversary very happily, and gives double effect to his hits by the air—the most innocent and candid in the world—with which he administers them.

The other Ministers in the House of Lords hardly deserve any particular notice; if of any service in council, they certainly are not on the floor of the House. The long, dark, impassible figure of Lord Auckland is rarely drawn from its retreat; it is only when some question touches the affairs of the admiralty, of which he is the first Lord, that a few bashful words escape him. Lord Glenelg, recently elevated to the Peerage, as rarely suffers himself to be drawn into a debate, if the colonies have nothing at stake. Lord Glenelg has had his days of eloquence, and was much more distinguished in the Commons when simple Mr. Grant. Assuredly he is no longer a young man, for his head is covered with gray hairs, though he looks to be older than he really is. He is completely worn out, both in soul and body, and is one of those mystic sensualists who sacrifice real existence to the mysterious dreams of an opium-eater.

An enormous, round, pale bald head, with great black eyes, and huge white whiskers, resting on broad shoulders, is every thing that remains of Lord Holland, the nephew of Fox, and once an accomplished orator of his uncle's school, and a tolerable writer. Of the rest of his body nothing can be said; the gout has eat him up by little and little, and he ends, absolutely, like a fish. It is only after much time and exertion that his two crutches transport him to the end of the bench on which he sits, opposite Lord Melbourne. Moreover, his chancellorship of the Duchy of Lancaster is not such a sinecure as people have said; he supports his colleagues at least with all the vigor of his lungs, if with no great strength of argument. He assumes the responsibility of applauding their speeches, and acquits himself conscientiously of the duty, for he makes more noise with his cheers and 'hears' alone, than all the rest of the Whig party put together. It is quite an amusing spectacle to see this stump of a man, bawling out his applauses, looking for all the world like one of those Chinese toys representing a great fat buffoon, which, loaded at the bottom, and without legs, constantly resumes its upright position, however often it may be thrown to one side or the other.

Literary history will remember Lord Holland, on account of his biography of Lope de Vega. I am reminded by this work of an anecdote of the noble lord, which does much more honor to his politeness than to his generosity. In 1832, a poor refugee Spaniard, whose only property in the world consisted of three unpublished manuscript comedies of the celebrated Castilian poet, determined to go to London for the purpose of selling them to the illustrious whig commentator, whom he thought would naturally give more for them than any other person. However, in the presence of so great a nobleman, the timid emigrant did not dare to speak of any price for them; he simply offered him his three valuable manuscripts. The visit and the present were very graciously received, and in exchange for the one and the other, the stranger received the next morning Lord Holland's card and a copy of the life of Lope de Vega. There are some occasions on which the English are magnificent; but their liberality never exercises itself to any great extent but in public. For example, they would glory in throwing a set of diamonds to an Italian *chanteur* in a crowded theatre.

Clearing the table of the ushers, at one leap, we find ourselves in the very head quarters of the tory opposition. Here are the ministers, belonging to the House of Lords, of the late conservative administration. All of them are past middle age, and (like the present whig ministers) are between fifty and seventy, the greater part being over sixty.

Let us proceed at once to the generalissimo, seated in the centre, on the second bench, his arms folded over his breast. He is asleep, I suppose; he breathes with difficulty, his body being pressed in by the black coat closely buttoned; but they wake him; he takes off his hat hurriedly, and exposes his white hair cut close to his head. Observe that thick chin which protrudes itself and works without ceasing, those retreating lips, that great crooked nose, those brilliant and steady blue eyes, that face yellow and bronzed; is it not the very countenance of Punch, only not quite so rubicund? Does not that lank and bony body resemble some wooden automaton, some old jointed doll?

Who would not be seized with surprise at the sight of this man? Behold the man of the most extraordinary good fortune of the age! Behold the man who conquered Napoleon, and who has lived twenty years on his laurels! It is not only in war that he has succeeded; peace has not been less profitable to him; he has ruled in the council as in the camp; his caprice has, for a long time, governed an intelligent and free people. He is the king of the last aristocracy in the world. Happy man! what honors has he failed to obtain that he ever desired to possess? He finds himself suddenly a learned man, without having ever studied any thing. Law and theology have decreed him their honors—the universities have made him their chancellor. Even more, the exclusive circles of the West End themselves, have recognized his supremacy. He has seen generations of dandies decay and fall every autumn, while he, their patriarch, remains as firm as ever. The inconstant winds of fashion have not torn a single leaf from his crown; he has continued in fashion for the quarter of a century. If you follow him this evening to some *rout* in Grosvenor Square, you will see him throned on a couch. Around him a swarm of belles and grandams flutter, each one endeavoring to catch a word, or a smile, or a look from the hero. You will see, (for the hero is deaf, and there is no familiarity which is not permitted to him,) you will see the most favored among them in his arms, his black

wrinkled hands resting on their white shoulders. Happy man! It is true that you may read on the buckle of the garter that surrounds the leg of the Septuagenarian, in letters of diamond—"Honi soit qui mal y pense," the motto of his order. Happy man! and by what mysterious power have you been thus enabled to succeed every where and with all persons? Oh! I know not! Perhaps to the small share of patient prudence and of inert common sense, that a narrow ball-proof forehead may contain, your success may be due. Perhaps to the beneficent rays and the partiality of that capricious star which so mysteriously lights the way of the predestined!

But look—who speaks—it is the Duke of Wellington! What labor! he tosses about his head! he grasps with his withered fingers the back of the bench that is before him! he seems as if he would drag from every place around him ideas which he cannot otherwise possess himself of. At last he draws from his brain some fragments of incoherent phrases and unconnected reasoning. All this, good and bad, ends in a sort of speech not very unreasonable; he enables you to guess for yourself what he wished to say, though he has not himself said it. He is an orator and a statesman, as he is a great coxcomb and a great general,—by destiny.

The Tories of the House would be ungrateful if they forgot that it is the Duke of Wellington alone who has for a long time preserved them, by the vigorous and almost military discipline by which he has regulated their intemperate fury. He cannot be disobeyed with impunity. In the beginning of this very session Lord Londonderry was severely reprimanded for having engaged in a skirmish which the general had not authorized. At present, however, the evil spirits of the party seem to grow weary of the wise moderation of their chief. At least, if he does not quickly reduce them to obedience, they will, in spite of him, engage in a conflict with the people. But let his grace beware; should his soldiers induce him even to head his forces in this unequal combat, he will not find the same good luck that attended him at Waterloo.

An expression of silly and impotent ferocity characterizes the face on the left of the Duke of Wellington; not a hair upon his head, but on each side enormous whiskers perfectly white. One would say it was some old Turk of the carnival or the theatre, who had lost his turban; but you should see this

grotesque creature standing erect. It is so badly placed on its long legs, as to be unable to move without stumbling. You might upset it by your breath. Very constant in its attendance at the House, it is always busy when there. You are incessantly annoyed by the squeaking, scolding voice that proceeds from this great body: not that he often speaks, but excels all others in his applauses of tory speeches. He is the counterpart of Lord Holland, and it is his duty to counteract the ‘hears’ and ‘hurrahs’ of the latter. You would not have supposed that this was a very illustrious personage—illustrious at least by birth, as Lord Brougham once very irreverently remarked: nevertheless, it is a Royal Highness—it is the eldest brother of the king who plays the part of an impudent applauder of the incendiary speeches of an unpopular aristocracy. It is a prince of the blood who degrades his rank in this impotent farce. Truly, this Duke of Cumberland is badly advised; his military glory does not entitle him to play the tricks of a bully! and as his conscience must often recall to his memory certain private and public peccadilloes, he would be wise not to remind the world of them quite so often by his bravadoes. The public have not forgotten that strong suspicions of violent murder, of the basest seduction, and of incest, have stained an existence, which nothing but its adventitious rank has, perhaps, saved from the vengeance of the law. The Grand Master of the Orange Lodges is also sufficiently well known in Ireland. There is but little chance that he will ever have occasion to assert his rights to the throne. But would it not be wise to anticipate the possibility? In these times of popular sovereignty legitimacy does not always ensure a crown.

That fat Lord, with his chin graciously reposing on his well gloved hand, and a *bouquet* of red pinks in his button hole, is the father of Viscount Castlereagh, and was in his day a distinguished dandy. He retains all the elegance that is compatible with a large belly and sixty years. You can still admire his form in spite of his fatness, which threatens to burst at every point through his riding coat. The good taste which distinguishes his toilette, and contends even against the advances of old age, does not unfortunately characterize the legislative conduct of Lord Londonderry. He is the most indiscreet speaker in this House, in which all extravagance or violence is rare. The habit of interrogating ministers, and especially on all matters connected with Spain, in which country he formerly served as a colonel of huzzars, is almost a disease with him. Good a tory as he is, he

has too much zeal; and I am entirely of the opinion of M. de Talleyrand, that nothing can be more unfortunate than too much of that quality. This rashness of the old huzzar brings down upon him, now and then, severe rebuffs from the generalissimo. O'Connell has perfectly described the old marquis, when he called him half-maniac—half-idiot. He is not a bad man; but nature has rather liberally endowed him with that sort of broken eloquence which supplies the want both of language and thought, by the profusion and vehemence of gesture. He is always too much pleased to display his cambric handkerchief in public. In my opinion, the whigs would have gained as much as the tories, by suffering him to have departed on his embassy to St. Petersburg.

We must pass by Lord Aberdeen, Lord Wharncliffe and Lord Ellenborough, whom you see seated around the Duke of Wellington; they are his principal aids-de-camp, and were formerly ministers with him. They are prudent and cunning tories, if not moderate ones, and express themselves well; but we have not room to give full length portraits of them. An epic catalogue does not describe every soldier of the two armies, not even every officer; and our article is more modest than an Iliad. For the best reasons then, we must content ourselves with pointing out with the finger the chief heads of our assembly.

To complete the review, we must finish our tour of the Chamber, with the ranges of benches to our left. Do you observe up there on the third row of benches, with its back against the wall, that figure of a monkey dressed in a light colored wig, with its mouth awry, and looking as if it was employed in cracking nuts? Far as this noble Lord is seated from the head quarters of the tories, he is nevertheless one of their most important and redoubtable captains. He has been twice Lord High Chancellor, and held that office in the late cabinet of Sir Robert Peel; this person is Lord Lyndhurst. Like Lord Brougham, he passed from the bar, through the House of Commons, to the woolsack. His extreme ugliness has nothing about it that can be considered vulgar; on the contrary, he is the only lawyer I have ever seen who had the air of a man of the world, and the polished manner of one who had been a courtier. He is more than a lawyer; he is a most finished orator, always clear, pithy, skilful, well-disciplined, and never tedious, but concise and agreeable. His voice is full, grave, and generally calm, but always capable

of raising itself to the occasion; he only grows warm when some personal but secret vexation disturbs him. He is not troubled with a conscience; the privilege of dispensing with which, he retains as a lawyer, though he has in other respects managed to throw off the peculiarities of his profession. Formerly he was an ultra whig. At heart he is still only an advocate, though interested with the aristocracy, and affecting their polished good breeding. He is a tory just now, because toryism has paid him liberally for his pleadings. To-day, if the reformers could offer him higher distinctions, he would discover, I am afraid, in his bag, an abundance of arguments for reform.

Before turning the corner of the extreme left, let us pause a moment to observe three personages, who centre in themselves all the ultra toryism of the House. They are seated by the side of each other, at the end of the last bench on this side.

The first, with a long, rough body, with a white cravat, dressed in tawdry clothes, coarsely built, and looking like a clown, is the Duke of Newcastle. Observe that dull, sottish eye—those long, erect ears. See with what interest he listens! what attentive stupidity! Nevertheless, you may rest assured that he does not understand a word of what he hears. The words of a speaker have to knock a long while at the door of his dull brain; he never fully comprehends an idea but after a week's mature deliberation. Generally, at the end of a session, he begins to understand the speech of the king, pronounced at its opening. A sort of brutal and furious hatred against every thing that he conceives to savor of reform, serves him in lieu of any other understanding. The rough lessons which the indignation of the people have beaten into him, have not been able to teach any prudence to his blind instincts. All his recriminations are impressed with the dullness of his slow mind. The peerage might be killed and buried this winter—it would not be sooner than the next spring that his Lordship would order his horses, and drive to the House of Lords to argue against Catholic emancipation.

The other two persons, are those of two noblemen in great credit with the church, even more of fanatics than tories. Neither of them is deficient in a certain oratorical fury, which, however, savors much more of the pulpit than the Parliament.

In the first place, that fanatical looking figure which is watching you with a fiery black eye, playing with the ruffles of his shirt, with the knobs of his umbrella, is Lord Winchelsea; an honest man, probably, and a furious, but sincere protestant. There is an appearance of conviction in the intemperate homilies that he improvises for the House of Lords, or the columns of the Standard, which in some measure palliates their haughty intolerance. This noble zealot, even while he is preaching up the persecution of popery, persuades himself, I am confident, that his own apostleship will secure him martyrdom.

As to that other personage—that huge and deformed colossus, whom you would take for a chosen *cuirassier* discharged from service in consequence of excessive fatness—though his protestant mysticism may be of rather larger calibre, I should be inclined to put less faith in his relics. This Lord Roden—for it is Lord Roden—was in his youth a miscreant, who acknowledged neither God nor Devil, and worshipped only his dinners and his debaucheries. But in the middle of one of those nights of excess, he had a vision somewhat like that which cried out to Swedenbourg—*You eat too much*. From that moment, submissive to supreme advice, the Earl of Roden reformed his diet and his irregular habits, and he has become by degrees, the evangelical and political preacher that he is at the present time. In other respects this conversion has in no degree diminished his *embonpoint*; and his new piety does not prevent his being a most furious Orangist, ever ready, if permitted, to sacrifice to his monarch a magnificent hetacomb of Irish Catholics.

Let us, for the present, cross the chamber, in giving a *coup d'œil* to the benches ranged before the bar, and facing the throne. These are called the *independent* benches. The majority of the peers whom you observe seated there have been ministers. The greatest, both in personal appearance and public fame, is Lord Grey. Observe his tall person, how thin, frail, and bent it seems! After his seventieth year he was unable to give himself up any longer to public affairs; he wanted physical strength to continue the arduous labor of reform. He himself placed the load on shoulders which he had accustomed to bear it; and finally resigned both power and the active part he formerly took in parliamentary discussion. Let justice be rendered to him while still living; he has been a bold and loyal statesman; as soon as he

found the helm entrusted to his hands, he steered the ship of state on principles that he had for thirty years recommended. He has not proved a miserable traitor to his promises and his past history, as the perjured ministers of revolutionary origin in France, the worthless product of that gloriously useless revolution of July. He is the first whig who ever dared to carry into practice his own principles. Assuredly, it required something more than ordinary determination to open to reform that wide gate, which he knew could never again be closed.

In addition to this, he was no common speaker. The impression of his dignified, convincing and penetrating oratory, is still deeply impressed on the recollection of those who were accustomed to hear him; the air and manner of a great nobleman, which always distinguished him, gave additional force to his authority. The noble affability of his manners would remind you of the old Duke of Montmorency-Laval. There is this difference between them, that Lord Grey did not succeed in forming and supporting his ministry alone by the influence of his fine manners, as the *ci-devant* plenipotentiary of Charles X at Vienna, did in respect to his embassies.

The other nobleman of coarse appearance, still fresh and blonde, is the Earl of Ripon, politically better known by his second title of Viscount Goderich. He also was raised for a moment to the top of the ministerial ladder; but it does not appear that he has made up his mind to remain in private life, into which situation his incapacity made him so soon fall back. However, if he aspires to reascend, he has not taken the right road to accomplish his designs; it is no longer the period when one may balance between two opinions, or feed on two political parties. It would be a double mistake in him to persist in his attempts to reseize the reins of supreme authority. The confusion of his reasoning as well as of his ideas, when he attempts to speak, proves very clearly that he does not possess the clear and firm head necessary to manage the furious horses of the chariot of state.

The Duke of Richmond has never raised himself to the same sublime elevation; he is one of those poor nobles whose liberalism must be maintained by high and lucrative employments. He is one of those aristocratic worthies, always ready for any sort of military or civil work, and all sort of salaries. Lieutenant General and *aid-de-camp* of the king, his

grace has not hesitated to stoop to manage the mails, and to become a member of a whig cabinet. At the present moment, he has the bearing of one who flatters himself with the chimerical hope of a *juste-milieu* administration, of which he would be a member. Louis XVIII would have placed him in his upper house. The noble duke, remarkable for a false air of Parisian elegance, which distinguishes his carriage from that of our great men, usually so full of stiffness and formality; yet I do not think that any of the modern great men of France have ever, as the Duke of Richmond often does, crossed their legs and raised their feet higher than the level of their heads, in full session, for the purpose of better viewing themselves in their polished boots.

Excepting the Duke of Wellington, we have not yet met a single nobleman who can call himself truly fashionable. Ah! but see here is Lord Alvanley. Yes, this little man, erect, bloated, swollen, breathless, careless, ill-dressed, with nothing *recherché* about him but his yellow gloves, and looking as if he had just come from a debauch to which he was anxious to return, is one of the chief representatives of modern fashion in the House of Lords. Formerly he was a whig; now he is a tory, or rather he is a *bon convive*, and belongs to the party which gives the best dinners and suppers. As the tories are distinguished for their sumptuous entertainments—therefore he is a tory. He ought not to have waited until he was ruined to have become a conservative. No matter! having eaten up his own property, he now helps others to do the same thing; he pays with his company and his gaiety. He has, in fact, a rich vein of humor; one might make a large volume of his witticisms. He is always sober at the House. It was his evil genius which inspired him on one occasion to grapple with O'Connell; the contest was unequal; the agitator wields the most deadly *repartee*. Fashionable and witty as Lord Alvanley is, he will nevertheless retain, during his life, graved on his forehead, the title of *bloated buffoon*, inflicted on him by the rude adversary whom he so imprudently attacked.

This young man of a handsome form, gracious in his appearance, and of striking mien, going out of the House, is the Earl of Errol. He votes with the ministry, although he is almost a member of the royal family. He is, in fact, a son-in-law, *sous-officiel*, of William IV, having married one of the illegitimate daughters of his Majesty. I should be glad to show you his

brother-in-law, the Earl of Munster, the illegitimate issue of the same illustrious parent; but he rarely attends the sittings of Parliament. High and profitable sinecures have been showered upon these noble Earls. You see that in this age of constitutional governments, calling themselves moral and economical, sovereigns still shower, after the manner of Louis XIV, wealth and honors on their bastards.

You would hardly ask the name of that old man, so withered by age, whose slender legs are pushed into those old fashioned boots, with his twisted queue leaping about on the shining and powdered collar of an old blue frock. You would say it was some old French emigrant, forgotten in 1814 by the Restoration, and left on this side of the water. Observe how he moves to and fro; it is his constant motion. The eighty years of the Earl of Westmoreland do not prevent his being the most stirring and active tory in the House. He has been a member of the cabinet; and occasionally, at distinct intervals, he will still raise his old voice in defence of his old cause. Immediately on the adjournment of the House, you may see him mount an old horse, as lank as himself, and gallop off. It is perhaps a mere fancy, but it seems to me that on the day the old Earl and his horse fail to return, toryism will be no more. In spite of myself I am accustomed to embody in this old man, all that remains of energy and strength in that dying party. He looks like the last living and moving form in the midst of the inanimate skeletons of this aristocracy, so fast crumbling into dust.

If you have observed that other old man, so nimble and busy, with his spectacles thrown back on his forehead, and looking in every direction around him with his large fish-like eyes, you have remarked that he runs incessantly from bench to bench, finding something to whisper in every one's ear; and have doubtless taken him for one of the ushers of the House, for he has on the same dress that they are accustomed to wear—a black French coat, and a wig-bag of black *taffeta*. That is Lord Shaftesbury, a descendant of the celebrated earl of that name, one of the first essayists in the English language; a writer whose works are distinguished equally for the classical character of their style, and the wit and spirit that characterize them. The merits of the present Earl of Shaftesbury are not of the same exalted species; he is an active and industrious man. When toryism was in power (for he is a strong tory) he managed to secure the profitable office of

president of the committees, and in that situation he exhibited all the patient and practical intelligence which the office demanded. He is also one of the vice-speakers of the House, and occasionally he exhibits his little black person on the red woolsack; but as he is only allowed to figure in that situation in his ordinary, unimposing costume, the honor is a rare one; it is only in the last extremity that he enjoys it, when there is no other possible speaker. An English Chamber does not consider that it is presided over with sufficient dignity, or even legally, unless it be by a wig and gown.

Thanks to St. George, we are now beyond the crowd of tories, and have doubled the second angle of the bar; returning towards the throne, passing by the benches on the left, we find ourselves among the whigs, who will not delay very much our progress, for the ranks are not very close on this side. Alas! how many vacancies. A glance at some of these generous, solitary peers, and our tour will be ended: we shall then have finished our long voyage around the Chamber.

The Earl of Radnor is one of the small number of disinterested whigs, who advocate reform for itself, and not as a means of securing themselves a seat at the feast of power; he discharges his duties as a liberal peer, actively, conscientiously, and with that rectitude and firmness which you would anticipate from his erect, nervous, and inflexible bearing. He is not a very flowery speaker; but it is necessary to listen to him when he rises; he has the tone of hardy and vigorous honesty, which constrains the attention of an audience.

With more diffidence and timidity in his manner of speaking, the same virtues of sincere and free devotion to public liberty, distinguish the Marquis of Clanricarde. There is about this young nobleman a sort of mental grace, which veils the deformity of his features; his flat nose, sunken eyes, and cadaverous complexion, do not disgust you; you have never seen extreme ugliness so becoming; it is a death's head, smiling and perfectly agreeable. The Parisian world is sufficiently well acquainted with the Marquis of Clanricarde. Thanks to the caustic wit of his lady, the daughter of Canning, who amused herself the last year with so much cruelty, at the expense of its *bourgeois*, pedantic, and quasi-legitimate aristocracy.

We are now entering the head quarters of the little army of whigs. In the rear is Lord Plunket, a member of the administration, though without a seat in the cabinet. Truly, Ireland, of which he is Chancellor, has more than one cause of bitter complaint against her unnatural child. The ungrateful wretch! he betrayed his country to provide for himself and family; he preferred fortune to renown; and paid his own honor for the honors with which he has clothed himself! But Cobbett and the patriot Irish have chastised him rudely enough. Ireland is like all other mothers; she opens her arms to all her misled children that are disposed to return to her bosom.

Then let there be full pardon for the wealthy old lawyer; let his faults be forgotten, since he recalls his honorable youth, and once more volunteers in the service of the holy cause. The assistance of such an intellect as that of Plunket is not to be despised; age has not obscured in the least the matchless clearness of his powerful reason; there is not a dark corner in the most obscure question that he does not exhibit as clear as noonday; and it is not only by this power of lucid argument that he is distinguished. Weak and good natured, and crippled by the gout, as he appears, forced, whenever he rises to speak, to support himself with one hand on his cane, he has that fierce and sturdy determination which enables him to throw in the face of toryism all its humiliating truths, and is never disconcerted by even the most violent interruptions: his irony wounds and overwhelms the more that it is always concealed under an air of the most country-like simplicity.

At the extremity of this bench, which touches that of the ministers, you have recognized Lord Brougham; he is the very living caricature of whom the printshops in the Strand have shown you so many portraits. Observe his long face, his long legs, his long arms, the whole incoherent mass of his person. The expression of his countenance has something ferocious about it; there is certainly in this brain a small grain of madness; his small piercing eyes sparkle from the bottom of their sockets; a convulsive motion opens and shuts incessantly his enormous mouth; you would be alarmed did not the good nature of that thick, cocked-up nose, reassure you.

Do not be alarmed that the learned lord starts and appears so violently agitated—he is on a gridiron; he is tortured, because others are speaking,

and he is constrained to be silent. To speak is to do an injury to Lord Brougham.

But the speaker is now seated; Lord Brougham has leapt from his seat; he is on his feet; he has regained the floor; he retains it, and will not easily part with it; he has declared that he has but two words to say; if you have any business to attend to, go about it; at the end of two hours you may return, you will find him in the midst of his argument. It is much to be regretted that long experience of the bar and the parliament have not moderated a mind of this temper. He has just uttered a most cutting sarcasm—observe how he dulls its effect by reiterating and expanding it. He has perfectly established the impregnable strength of an argument; he proceeds to overthrow it himself, that he may build up others upon its ruins; it is thus his indiscretion injures the best cause and deforms his ablest discourses. Like an imprudent aeronaut, he bursts his balloon and falls with it to the earth, in consequence of having filled it too full. We who are hearers, like well enough to be convinced by an argument, or to smile at a piece of irony; but we can comprehend an allusion. We are mortified at having every thing explained so elaborately. The more you persist in it, the more weary we become. Your obstinacy in doubting our intelligence—wounds and vexes us.

This excess of pedantry is the principal defect in the oratory of Lord Brougham. He has been well called the school-master. I do not deny his extraordinary gifts as a learned debater, always caustic and indefatigable; but these extravagant discourses are out of all proportion, above all in the House of Lords, which treats all questions in a summary way, and in some degree after the fashion of the drawing room. It is a great want of tact not to suit oneself to one's audience. The manner of Henry Brougham was much more suitable to the House of Commons, where discussions are more full, and where one is less prepared to come to an early conclusion; he still retains the lawyer. He has never been able to throw off the violent and comic gestures of the gown, storming and thundering, in reciting a date or a section of a law. Without doubt his harangues fatigue him as much as they do those who listen to him; he does not spare himself, bawling and gesticulating without any regard to his own person; he bends and twists himself like a posture master; he dances and leaps with his words; he

perspires and grows heated, but he leaves the hearer cold; his is not the eloquence which inflames the blood.

I would censure Lord Brougham more severely as a writer than as a speaker; for Lord Brougham is also a writer, and a good deal too much of one. The melancholy activity which distinguishes him, pushes him on incessantly to fill the reviews with his economical, political, scientific, historical, and theological essays, and to heap up pamphlet on pamphlet; if his writings were characterized by a finished style or new ideas, the evil would not be half so great; there is, however, eternally the same excessive flood of words; and on paper, where they cannot evaporate, it becomes even more intolerable. Though on his own part it has not been an interested speculation, I cannot pardon him for having been the father of that leprous, cheap literature, which, pretending to diffuse useful knowledge, has only displayed false opinions, ignorance, and bad writing. In France, where this disastrous invention has been so quickly perfected, there is good cause to curse in all sincerity its author. It is not his fault however, that the French have permitted their worthless laborers to infect, as they have done, all their literary field, with these tares which threaten to choke the promising harvest of their young poetry.

Let us examine Lord Brougham as a politician. Here we find him still more imperfect. I acquit him of the charge of having offered his support to the conservatives, on the condition of their securing him his chancellorship; this is a calumny of his enemies. I wish he had never had any thing to do with toryism. It is not his fault however, that he has not again become a whig officer. It is said that it is the whigs who object to his joining their ministry, and who have refused him the seals. Experience has proved that he is less dangerous as an enemy than as a friend. He is neither tory nor whig; nor is he a radical; he is however at present among the radicals. He is of no party, if it be not his own, the party of Lord Brougham.

The case of Lord Brougham ought to afford a salutary example to M. Dupin, his friend. There are many curious analogies between these two celebrated lawyers; they resemble each other strikingly in their countenances, in their fortune, in their inconsistencies, and in their extravagancies. M. Dupin does not preside more soberly over the Chamber

of Deputies, than Lord Brougham did over that of the Lords. He is also a lawyer who fills the speaker's chair, and speaks himself much more willingly than he accords the permission to another. I grant you that his eloquence is of better metal, more powerful, more solid, more triumphant; that his blows are heavier and more mortal; but should he ever succeed in reaching the power after which he aspires, I doubt if his temperament will allow him to sustain himself half the time that the petulance of our c-devant chancellor remained seated on the woolsack.

IANTHE.

BY MORNA.

Oh! if to die in life's young hours,
Ere childhood's buds are burst to flowers;
While Hope still soars on tireless wing,
Where skies are bright with changeless Spring;
Ere Sorrow's tear has dimm'd the eye,
That late with rapture's glance was swelling;
Or Grief has sent the bursting sigh
In silence to its lonely dwelling:
Oh! if to part with this world only,
Where all is cold, and bleak, and lonely—
To welcome in those happier spheres,
The loved and lost of parted years;
If this give pain, or waken sadness,
Oh! who can tell the more than madness
Circling thro' life the hearts that bear
The chains that wounded spirits wear—
To live, and yet to feel thro' life
The aching wish, the ceaseless strife—
The yearnings of a bleeding breast,
To sink within the grave to rest;
To smile, when every smile must wear
The hue and coldness of despair;
To weep, or only strive in vain
To waken tears, that ne'er again
Shall cool the fever of that eye,
Whose fountains are forever dry:
When joys are gone, and hope has fled,
And friends are changed, and love is dead,
And we are doomed alone to wait,
And struggle with a bitter fate—
Left like some lone and towering rock,
To brave the ocean's battling shock,
'Till broken by some mightier wave,
That bears it to a lonely grave.
My early years, how coldly bright
The memory of their parted light
Falls round the heart, whose cords are broken,
Or only strung to suffering's power

Oh, only strong to suffering's power,
When struck in grief's o'erwhelming hour,
Give back to sorrow's touch a token.
My sire, alas! they say he died
When in the flower of manhood's pride:
I stood beside that parent's bier,
And wondered why the big bright tear
Was coursing down my mother's cheek;
She took my hand, but could not speak—
I kiss'd her then, and sadly smiled,
Nor felt I was an orphan child.
My Mother! how the thoughts of years,
With all their smiles, and all their tears,
Rush with the memory of her name
Upon me—and I seem the same
Bright, careless child she looked upon,
And joyed to call her fair-haired son:—
Oh, I remember well the time
She led me to our favorite bower;
It was in Spring's sweet, sunny prime,
And just at sunset's dying hour,
When woods, and hills, and waters seem
Wrapt in some soft, mysterious dream—
When birds are still, and folded flowers
Their dark green lids are peering through,
Waiting the coming evening hours,
Within each bright cup to renew
The wasted wealth of morning dew—
When spirit voices seem to sigh
In every breeze that wanders by—
And thoughts grow hushed in that calm hour,
Beneath its soft, subduing power.
She knelt, and breathed to heaven a prayer,
“That God would guard that orphan there”—
Then turned, and with a faltering tone,
She took my hand within her own,
And said, “I ne'er should find another
To love me as she loved me then”—

And I could only say, "my Mother!"
And fall upon her neck again,
And bathe it with my burning tears—
The bleeding heart's most precious rain—
That I had hoarded there for years,
And hoped to never shed again;
Nor knew, alas! how soon the heart,
When all its early ties are parted,
Will link it to some kindred heart—
That wounded bird and broken-hearted
Are soonest won, and cling the longest
To those who seek their ruined wealth.

* * * * *

She died, and then, alas! I thought
My cup of suffering was o'erfraught—
No voice to cheer, when sorrow's power
Assailed me in her darkest hour—
No lip to smile, when hope was bright,
No eye to glad me with its light—
No heart to meet my throbbing heart—
No prayer to lift my thoughts above,
When murmuring tears were forced to start—
No Father's care!—no Mother's love!

Ye, that have known in life's young spring,
The fondness of a Mother's love,
Oh guard it, 'tis an holy thing,
A priceless treasure from above!
And when, on life's tempestuous sea,
Thy shatter'd bark by storm is driven,
'Twill be a beacon-light to thee,
A guiding star, by memory given,
To lead thy wandering thoughts to Heaven.

The Spring renews the leafless tree,
And Time may check the bosom's grief—

And thus it wrought a change on me,
But oh! mine hour of Spring was brief.

They are who tell us, "love's a flower,
That only blooms in cloudless skies—
That gaily thrives in pleasure's bower,
But touched by sorrow, droops and dies."
Not so was ours! we never loved
'Till suffering had our spirits proved,
And then there seemed a strange communion,
Sinking our souls in deathless union:
Such power hath love to render dear
The hearts that grief hath made so near,
That we had loved each other less,
Save for our very loneliness.

Her gentler spirit was not formed
To war with stern misfortune's storm,
And soon we felt, that day by day
She yielded to a slow decay,
Wearing unseen her life away.
And yet so sweet the smile that played
On lips that ne'er a sigh betrayed—
So calm the light that lingering slept
In eyes that ne'er for pain had wept,
We could not grieve, but only pray,
That when that light should pass away,
The faint, sad smile might linger yet,
And vainly teach us to forget.

She died! I know not when or where—
I never knew—for silent there
I stood, unconscious, strange and wild,
In all save thought and tears, a child;
For sorrow's channels then were sealed,
Or flowed too deep to be revealed.

I stood beside her grass-grown grave,
And saw the boughs above it wave;
And then I felt that I was changed—
That reason, late so far estranged,
Had won me from my spirit's madness,
To settled grief and silent sadness:
I placed bright flowers above her grave,
And nursed them with my warmest tears,
And for my grief a balm they gave,
The memory of departed years.

Ianthe! o'er thine early tomb
The Summer's winds are gently blowing,
And fair white flowers, the first to bloom,
Around thy narrow home are growing;
And o'er it twines the changeless myrtle,
Fit emblem of thy spirit's love!
And near it mourns the gentle turtle,
And I, how like to that lone dove!
While every leaf, and flower, and tree
Is fraught with memory of thee.

And oh! if true, who tell us death
Can never quench its purer fires—
That not with life's last faltering breath,
The soul's immortal love expires;
If heart meets kindred heart above,
Shall we not greet each other there?
Say, was not ours a deathless love?
Too deep, too strong for life to bear!
Then let us hope to meet again,
Ere long, in guiltless transport there,
With bliss for all the grief and pain
We here on earth were doomed to share,
And love on, through unending years,
Uncheck'd by time, unchang'd by tears.

A TOUR TO THE ISTHMUS:

Filled in from the Pencillings of an English Artist.

BY A YANKEE DAUBER.

Painting is welcome;—
The painting is almost the natural man;
For since dishonor traffics with man's nature,
He is but outside. These pencilled figures are
Even such as they give out.

Timon of Athens.

III.

Chagres—The Castle—Mine Host—No English and no Spanish for two—Mule Riding—A
Fit-out for Panama—Up in the World—The Stone Ladder—A Yarn.

It is now some weeks since I opened my note book, and I confess the cause to be pure idleness alone. However, my pencil meanwhile has not lain dormant, as my portfolio will convince you. After all, *cui bono*? Why should a fellow be expected to write a journal on shipboard? The record of one day upon a voyage is the record of all others. This day we see “a booby,” (an animal not rare, you will say, on shore) the next, perhaps, a turtle, and on the next we may be amused with a short skirmish between a whale and a sword-fish, or a more deadly one between contending shoals of hostile sharks: then we see “Cape Fly-away,” and after that we see——nothing!

Our voyage to Chagres, instead of five days, was extended to fifteen. The pilots live on board, and make a point of lying out for a wind or a tide, until they have laid in sustenance enough to last them while another ship shall

demand their services, and then convoy their patient victims into port. But we got in at last, and were thankful.

The scenery here is surpassingly lovely, rich beyond any description of which my pen or pencil is capable. I found great delight in being once more on land, after my tedious passage—for I profess, without a blush, to be a determined land-lubber, you are aware—and began to look about me with as much greenness as a country boy on his first visit to the Metropolis. With the exception of the old Gothic castles of my own country, that at Chagres is the finest I have ever seen. It occupies a great space of ground, and is remarkable for its strong and massive walls, reaching to a great height, and commanding the whole town as well as the river and coast. The prospect from this castle's walls is full of the richest and most varied beauty.

Finding that our vessel was likely to be detained for some days at Chagres, I determined to cross the Isthmus, and visit Panama. Owing to the want of industry, or rather to the most consummate laziness, which is a characteristic of the natives, I was three whole days endeavoring to engage any one to carry me up the river. The consequence was that, the river, in the mean time, having risen prodigiously, I was four days and a half, including of course the four nights, on a route of about forty or fifty miles! During this time I went on shore at night, sleeping on the ground with a billet of wood for my pillow, and disturbed in my slumbers by droves of pigs, which as they rooted up the soil around me, paid no sort of attention to my convenience. Occasionally a horse would browse down to my couch, and reach his long neck over me as I lay, to nibble a cornhusk or a yam on the other side of my pillow—and as to the cows, they were perpetually snuffing at me. I say nothing, though I felt much, of the mosquitoes!

With what delight did I behold the landing place, which, after my rough journey, was pointed out to me by my conductor. They who are accustomed to travel in Europe and America, can have no idea of it. Here I hastened to present my letters to Signor P——, a gentleman who was to be my host while I staid. Our conversation was rather limited, as you may readily conceive, when I mention that he could not speak a word of my language, nor I a syllable of his, which was Castillaña—(they never say ‘*Spanish*’ there.) But the language of actions is often more eloquent than that of words

—at least so thought I, when my host ordered a comfortable repast to be placed before me, consisting of fricasseed fowl, and Vermicelli soup, with a magnum of generous claret. This was certainly a delightful exchange for my five days fast upon half boiled rice and plaintains, as were my soft pillow and quiet apartment a great improvement upon my nocturnal accommodations while on the route.

Early the next morning I found myself mounted on the back, or to be more exact, I should say something like a half mile *above* the back, of an animal which I had at first some difficulty in naming. In all my life, (albeit something of an equestrian, as *you* know,) I was never so put to it to take an advantage of my knowledge of horsemanship. Conceive me placed high above a tall raw-boned mule's back, (the saddle one of the old Saracenic or Moorish pattern, fastened by a multiplicity of strands, made of hair rope, to a ring tied to the saddle by a single loop of leather,) and at the mercy of this single string to guide not one of the gentlest of beasts, reminding the reader of Peter Pindar of the ass, “with retrograding rump and wriggling tail,” jumping alternately to each side of the street, and occasionally turning round and kicking sidewise, like a cat in search of her tail, or a dog vainly attempting to rid himself of the *addendum* of a tin-kettle! What a merry figure I must have cut!

My mule was a picture in himself. I have already called him raw-boned,—and you may deduce his *coup d'œil* from this attribute. Add, however, the details of the beast, and you shall acknowledge that he was *sui generis*. His ears stuck straight out to the front, sure sign of wicked intentions, and the nose was curled into a thousand ill-natured wrinkles. The horse-cloth was made like a hearth-rug, heavy, matted, and thick, and on the top of that was placed a straw pad about four inches thick, to prevent the pressure of the saddle from hurting him. Surmounting this mountainous ridge was the saddle itself, and such a one! It was the real demipique of the middle ages, and was doubtless two hundred years old itself. The leather was originally a bright tan-color, but was now grown black and glossy by age and wear, and as hard as if made of iron. So hard was it that I turned the edge of my knife, in endeavoring to cut a strap which gave way during my ride. On this pyramidal pinnacle, which I have described stone by stone, as it were, behold me seated. The reins are handed me by the groom, who undertakes

the whole guidance and direction of the process of mounting, as any departure from his regulations in this respect would result in the total overthrow of the whole mass upon which the rider is doomed to sit. Being mounted, I discovered that the stirrups were thrown over the saddle, and the strap connecting them tied in a knot, beside which was another, formed by the tying of the girth in a similar manner; this last being improved by the strap of the crupper brought through a hole behind in the saddle and made fast to the pommel. All these knots (reminding me of Obadiah's in "Tristram Shandy,") stood up in front and rear, and as there was no pad above as there was below, to prevent the manifold injuries that were like to result to the rider upon such an establishment, you may judge of the consequences of riding a hard trotting mule, thus caparisoned, for twenty seven miles. I shall carry the scars I got, to my grave, if I survive to the age of Methusalem. The bridle was a rope of hair, as was the halter beneath, and the bit—oh ye gods! what a bit! It weighed at the very least ten pounds avoirdupois, and hung down full twelve inches below the jaws of the mule. Lo, there was I, in a coarse straw hat, and a queer cotton travelling toggery, with a pair of spurs, such as John of Gaunt might have used, being made of brass, with a shank six inches long, tied by a strap which first went round the foot, and then three or four times round the leg, each spike in the rowel being an inch and a half long, the whole forming a *tout ensemble*, worthy of the pencil of George Cruikshank or Horace Vernet. As neither of them are at hand, take the accompanying sketch, rudely done to the life by my own pencil.

You will see by the foregoing description, the sort of animal and equipments with which Signor P—— favored me. I assure you it is not in the least caricatured, either as the figure or accompaniments are concerned. The pencilling will give you an idea of the sort of road upon which I travelled from Cruces, the residence of my host, to Panama. About halfway on, I stood upon a hill overlooking two oceans at once. I saw on the one side the bay of Panama, and the Caribbean sea on the other. As I proceeded, I came to a spot, where, for several yards, the ascent is up a kind of stone ladder. It is in a narrow pass, where, between two banks of twelve to eighteen feet in height, there is a continued face of black rock, worn so smooth by a constant run of water, as to afford the mules only the small holes made in the crevices by their predecessors, as the means of ascent. As they dragged themselves up in this manner by these rude steps, I could not

but admire the sure footedness of the animals. While on the open ground, they are full of tricks, and are constantly trying to displace their rider, but so soon as they find themselves in a difficult pass like that I have described, they seem to say to themselves—"Come, come, no fooling now—let's be steady," and in a moment they are the steadiest and soberest of animals.

This pass is called the Governor's Fall, from this circumstance. A governor of the territory, in the times of the early Spaniards, was ascending it, on his way to Panama, when his mule, less sure footed than my own, fell backward with him, and killed him instantly. The anecdote startled me a little, as may be easily imagined, related to me as it was on the very spot, and under circumstances precisely similar to those under which it occurred. However, vanity came to my aid, and prompted me to endeavor to perform what the governor had so fatally failed in accomplishing, and my attempt was successful.

IV.

Panama—A Scotsman—Architecture—A Gold Story—Tobago—A Beauty—The Sketcher in Love—The way to live on Pine Apples—Snakes—A Perilous Bath.

I arrived at Panama in eight hours, an astonishingly short time considering the roads, and as there are no boarding or lodging houses in the town, I made my way at once to the grand square, where I had a letter of introduction to a braw Scot, Mr. McK——, who received me like a brother Briton. His hospitality displayed itself in some novel ways. As my luggage was still on the road, I was stripped and bathed in brandy, to counteract the effects of a severe wetting I had received on my journey, and equipped *cap à pie* from the wardrobe of mine host. He was very tall, and his linen trowsers hung around me "as a purser's shirt upon a handspike," to use a nautical simile of more expressiveness than elegance. I was indebted to my new friend even for the loan of a hat, mine having been substituted at Cruces for a negro hat to ride in. This last article of my travelling equipments seemed to scandalize the good Panamians not a little.

It was a treat to me, living as I had been for six years in a new country, to find myself once more among such stately ruins and antique edifices, as the

churches, monasteries, colleges and nunneries, which, erected upon the first introduction of christianity into Southern America, are still standing either in part, or entire. My portfolio will show you with what warmth and enthusiasm I greeted them. The ruins of the monastery of St. Francesco, and the college of the Jesuits, are as beautiful specimens of architecture as can be imagined. They were built with all that taste of design and gorgeousness of finish, which the founders of them derived from the Moors of Grenada. I spent much time in wandering among their massive columns and fallen entablatures, their heavy lofty walls and sculptured ruins.

The wealth of the town is not great at present, although I heard many Panamians speak of the abundance which existed ten or fifteen years ago, when sacks of gold were wont to lie like any other heavy merchandize, all night in the principal street, with no one near to watch them. No one thought of stealing, for no one wanted aught. It was, in truth, “the golden age.” I, of course, as you will do, probably, received this legend with some few reserved doubts of its authenticity. As a *pendant* to it, I was also informed of a curious custom that at the same time prevailed in the Isthmus. In the dance, if a gentleman wished to make himself acceptable to a lady, he would take his hand full of small golden coin, and throw it among the circle of spectators, (every one is admitted to the dances,) so that it became a matter of fashionable boast among the fair ones, “I have had so many pieces thrown for me,” etc. etc. But things are not now “as they used to was,” and a Panamanian is now apt to consider the possession of a real regular immutilated doubloon a god-send: the currency being in what they call *cut money*—that is, the large coin cut or divided into bitts of the denomination of dollars, reals, &c. &c.

While at Panama I made a trip to some of the Pacific Islands in the neighborhood: the principal one I visited was Tobago, one of the most curious and striking spots I have ever seen. The island is about eight miles in length, and four or five in breadth, rising into a high hill in the centre, thickly wooded, and yet there is not a tree upon the island, that does not bear a fruit. I was there during a church festival, and there was uninterrupted dancing the whole week. Some of the women are very beautiful, and among them there was one to whom I had nearly lost my heart during the short time I was at Tobago, so transcendant was her beauty.

I do not call it loveliness—it was passion, (and so my fit was soon over.) She had no face—do you know what I mean? it was all *feature*. Excuse a dauber's smacking of “the shop.” And then what a model was she for the sculptor! A fine though not a high forehead, upon which the jetty hair was most simply yet tastefully parted; eyes large and dark as the hair; but with *such* a fire in them! Her nose was beautifully chiselled, and her parted lips disclosed teeth more white than pearl. Her form, so youthful was she, was not developed, and figure, as such, she had none. But what passion was in that soul! She crossed my path in the dance, at church, on the island's beach, and every where it was the same—she was all soul. I saw her angry, and I thought I would not rouse her for the world; and then, *reverted* I, what must she be, if in love! The thought threw me into a brown study, out of which I awoke, and I soon began to feel completely in love—but it was with the *pine* apples of Tobago! Never ate I such delicious fruit before as this, the abundant product of the island I have described. For my own part I quite forgot my Katinka, and gave myself up to the fascinations of a cheaper and more easily accessible luxury. I used to consume, upon an average, eight pine apples *per diem*, without fear of cholera, dyspepsia, or any of the train of “ills that flesh is heir to.” There was a place they called “The Bishop's Bath,” formed in a rock by the constant running of a stream of pure water, and sufficiently deep for a bath. Here several of us were wont to meet every day and refresh ourselves with the delicious coolness of the water—our host always despatching a servant with a hamper of pines, as an accompaniment of our bath. Upon our return a profusion of fruits awaited us: melons, pines, cocoas, mangoes, &c &c. These we would eat from the table, or as we lay upon our beds. All this was too luxurious for me, and I began to feel sure that if I were to give myself up unyieldingly to the fascinations around me, while at this island of Pomona, I should never be fit for any thing else again as long as I lived.

I enjoyed my rambles about the island very much at first, but soon began to learn the old lesson of the thorn under the rose, the bitter mingled with the sweet, the drop of poison in the cooling cup, &c. Throughout New Grenada, there are thousands of snakes, the bite of almost all of which is fatal. That of the black snake, the species so common and so innocent in the United States, is as poisonous here as the rattlesnake is there. So I soon began to confine myself to the coast, and gave up rambling. I remember one

occasion, upon which I got a deuse of a fright. I had been bathing, and had left the water but about five minutes, when a gentleman, who was undressing to go into the same bath, perceived and pointed out to me a small snake swimming about in it, very much at his ease. We took the reptile out and killed it on the margin of the basin. It was a small red snake, marked with black rings, and its bite is instant death. It is a common opinion that island snakes are harmless. It may be so—but I had rather take the theory for granted without a practical illustration of it in my own person.

We returned to Panama in time to witness the bull fights, which last three or four days, in August, the anniversary of the revolution which resulted in the independence of New Grenada. I must sharpen my pencil, and nib my pen afresh to tell you of my amusement during those three or four days.

* * * * *

SACRED SONG.

“Where are now the blooming bowers.”

Where are now the blooming bowers
That I saw in early May?
Where are all those fairest flowers
That were soon to pass away?
And the Loves my bosom nourished,
And the Joys that still came on?
Like those flowers, once they flourished,
Like those flowers, they are gone.

Fancy now no more shall borrow
Beams of beauty from the skies;
Hope no more, to soothe my sorrow,
Whisper, "brighter suns shall rise."
Yet one thought my soul shall cherish,
For the word of God is sure,
And the heavens and earth shall perish,
But his mercy shall endure.

THE TWO SISTERS.

BY MADAME JULIE DELAFAYE-BRÉHIER.

[Translated from the French.]

... On a peu de temps à l'être (belle,)
Et de temps à ne l'être plus!

Madame Deshoulières.

In a parlor furnished with much taste, and from the half-opened windows of which were seen the winding walks, and "alleys green," of a park, filled

with magnificent and shady trees, two young ladies were employing themselves in those delicate works, which have become the portion of our sex, and which, whilst they appear to occupy the fingers only, serve also to divert the mind in a pleasant manner, and even to give a greater facility to the current of thought. One of the females, either by chance or design, had placed herself opposite a mirror, where she could not lift her eyes from her work, without seeing herself reflected therein, adorned in all the brightness of a beauty of seventeen years, who might have served as a model to the sculptor, as a study to the painter. A rich profusion of black hair, in the tasteful adjustment of which, Art had so nicely seconded the gift of Nature, that it was scarcely possible to say to which its elegance was owing, set off the snowy whiteness of the neck and face; and I would add, (if I may once more be permitted to avail myself of the superannuated comparison,) that the freshest rose could alone compare its beauty with the carnation of her cheek and lip; to these charms were added, a form of the most graceful proportions; and, all that the youthful may borrow, with discernment, from the art of the toilette, had been employed to increase, still farther, beauty already so attractive.

Half concealed beneath the draperies of the window, near which she had placed herself to obtain a more favorable light, the other female pursued her occupation with undistracted attention; a certain gravity appeared in her dress, in her countenance, and in her physiognomy altogether. Her eyes were beautiful, but calmness was their chief expression; her smile was obliging, but momentary; the brilliant hues of youth, now evidently fading on her cheeks, less rounded than once they were, appeared but as the lightest shadings of a picture; sometimes, indeed, deepened by sudden and as transient emotion, like the colors which meteors throw on the clouds of the heavens in the evening storms of summer. The gauzes, the rubies, the jewels, with which the young adorn themselves, were not by her employed merely as ornaments; she availed herself of them, to conceal with taste, the outrages of years; for the weight of more than thirty years was already upon her; and the ingenious head dress with which she had surmounted her hair, served to hide, at the same time, some silvery tell-tales, which had dared thus prematurely, to mingle with her long tresses of blond.

“There's broken again! look at that detestable silk!” said the younger female, throwing her work on to a sofa; “I will not do another stitch to day.”

She rose, and approaching the mirror before her, amused herself by putting up afresh the curls of her hair.

“You want patience, Leopoldine,” answered her sister, looking on her affectionately, “and without that will accomplish nothing. You will require patience as well to conduct you through the world, as to enable you to finish a purse.”

“I know the rest, my sister,” replied the younger, smiling. “Do you forget that a certain person has charged himself with the duty of teaching me the lesson? Ten purses, like that which I am embroidering, would not put me out of patience so much as this silence of M. de Berville. Can you conceive what detains him thus?” added she, seating herself near her sister, “for, in fact, he loves me, that is certain, and nothing remains but for him to avow the fact to my aunt Dorothée.”

“This looks very like presumption,” my dear Leopoldine, pursued the elder sister, “and that is not good; what can it signify to you what he *thinks*! I hope your happiness does not depend on him.”

“My happiness? oh! doubtless not, but, in a word, Stephanie, he is a suitable person, and if he will explain himself——”

“It will then be time to think of him; until then, my sister, I beg of you to see in M. de Berville but an estimable friend of our family, an amiable man whose society we honor. A young person should never hasten to give up her heart—above all, to one who has not asked it.”

“Be easy on that subject, sister; I mean to keep a good watch over mine; the venture of your heroine of romance will never tempt me; but this is the fact, sister, I do not wish to remain an *old maid*.”

At these words, which Leopoldine spoke inconsiderately, the countenance of Stephanie was flushed with a sudden crimson, and for a moment shone with as beautiful a brightness as that of her young sister.

“There is a condition worse than that,” answered the former, with lively emotion; “it is, to have formed an ill-assorted union.”

“Indeed, my sister, I did not dream I should give you offence,” replied the young female, much embarrassed, “but the world is so strange! you know this yourself. Thus I cannot conceive how it is that you have remained single.”

“If no one has wished to espouse me,” added Stephanie, smiling.

“What! In reality? Can such a thing be possible?”

“Assuredly, although I believe it is a case which rarely happens, and I grant did *not* happen to me, for I found many opportunities of entering the married state, but not one which was suitable.”

“You were, perhaps, difficult to please?”

“I think not. Whilst yet young, about your age, my hand was sought by one who lacked nothing but a fortune, or at least, an estate, capable of supporting him in respectable society. Our parents, at that time, deprived of the rich heritage which they have recovered since your birth, refused him my hand, for a motive, which I have since, though by slow degrees, learnt to appreciate, but which then rent my heart. My thwarted inclination left me with an indifference as to marriage; it was the way in which my youth resented its injury. I would have none but a husband after my own heart; not finding such a one, I resigned myself to be no more than an *old maid*, finding it more easy to bear the unjust scorn and ridicule of frivolous people, than to drag on to my tomb under a yoke, troublesome and oppressively heavy.”

“Do you not sometimes feel regret?”

“No, Leopoldine; that condition, which appears to you so frightful, has its happinesses, as well as the other states of life. I have shaped my resolution with a regard to the wounds of self-love, which I have had to endure; I have called into my aid the arts and letters, which it is so difficult for married females to cultivate with constancy, without prejudice to their domestic

duties; and lastly, when by the death of our dear parents, I found myself in charge of your childhood, in concert with our worthy aunt, my liberty became doubly dear to me. Had I been a wife and mother, I should not have been able to devote myself to you as I have done. Have I not had reason, then, to remain unmarried?"

"Well, if I should tell the truth, Stephanie, after all you have said, I should better like to be ill matched, than not matched at all."

"This perverseness gives me pain, my child," replied the elder sister, "but I will believe that it is for want of reflecting on the matter that you talk thus."

An aged lady, the aunt of the two sisters, came in at this moment, holding in her hand a closed parasol, which she used as a support. She seated herself in an arm chair, resting her feet on a footstool, which Leopoldine placed for her. After regarding for a while both her nieces, with a look of complacency, she thus addressed them.

"They tell me that M. de Berville is at the entrance of the avenue. For which of your sakes is it he honors us with so frequent visits? For my own part, I am quite at a loss to say. The more I observe him, the less I can divine his intentions."

"You would be jocular with us, aunt," answered Stephanie, "there can be no doubt as to his choice; it is as if any one could hesitate between a mother and her daughter."

"But he has not explained his views," rejoined the aunt, "and it is very fine for you to make out you are old, my niece; I find you still very young, compared with me."

"You forget too, aunt," added Leopoldine, in a lively tone, "that M. de Berville is, to the full, as old as my sister. If merit alone was sufficient, I should have reason to fear in her a dangerous rival; but my amiable sister is without pretensions; she knows that youth is an all-powerful advantage, although in reality a very frivolous one, perhaps——"

“Good heavens!” exclaimed the aunt, “take heed, my child; reckon not too much upon that youth, nor even on the beauty which accompanies it; I have seen strange things in my time; and a man capable of holding himself neutral so long, is not one of those who may be subjugated with a ruby, or caught by a well-disposed bouquet of flowers.”

A smile of incredulity passed upon the lips of Leopoldine, who was about to make an answer in accordance with that smile, when M. de Berville was announced. Although of an age somewhat too mature for a *very* young man, his dignified and elegant manners, his fine figure, his distinguished intellect, his reputation as a man of honor, together with his fortune, made him “a match” which no young lady could deem unworthy; and I have made the reader already acquainted with the favorable sentiments entertained towards him by the beautiful Leopoldine. Stephanie entertained full as high an opinion of his merits as her younger sister; it may be even, that being best able to appreciate the estimable character of M. de Berville, she rendered to it the most justice; but she received him simply as a mother who believes she has met the future protector of her daughter, and endeavored, by innocent means, to bring to a successful issue the plan of happiness which she had secretly conceived. The aunt, piquing herself on her skill in finesse, sat observant of the actors in that scene, hoping to penetrate from their behavior, into their most secret thoughts. As to Leopoldine, the veil of modesty, beneath which she sought to conceal her real feeling, was not sufficient entirely to conceal the joy of the coquette, rejoicing in the triumph of her charms. Yet that joy and that triumph received some checks; for she did not appear, even during that visit, to occupy exclusively the attention of M. de Berville, as though she alone was the object he came to visit. The conversation took a serious and instructive turn—one little suited to the taste of the young and frivolous. They discoursed of the sciences, the arts, and of literature: I have said that Stephanie had made these things a source of comfort and recreation—that she had occupied her mind in such pursuits, not for the purpose of display, but as a charm to her leisure hours; such a companion as M. de Berville was well adapted to value rightly the mind and the knowledge of Stephanie. She suffered herself to be drawn into the current of the various topics of conversation with a pleasure very natural; and Madame Dorothée plainly perceived that de Berville was even more pleased than her amiable niece.

Proud of her youth and beauty, Leopoldine had disdained instruction—neglecting, for childish gaiety, the lessons of her masters and the recommendations of her sister; music and dancing were the only arts that she would consent to cultivate; those, because they might serve to make her shine in the world. Incapable of taking part in the interesting conversation which was going on before her, ennui began to show its effects on her charming figure—moodiness took possession of her spirits, and fits of yawning, ill suppressed, threatened each moment to betray her. M. de Berville, altogether occupied in the pleasure he was enjoying, perceived it not, but Stephanie, guessing the misery of her sister, contrived adroitly to introduce the subject of music; and, thereupon, begged of her sister to sit down to the piano. She knew that her sister's voice was considered remarkably fine by M. de Berville, and hoped by this means to recall his attention to her, but the old aunt thought she could perceive that M. de Berville found need to task all his politeness to hide the disagreement he felt to the proposition; and Stephanie herself discerned much of coldness in the compliments which he addressed to the pretty songstress.

Botany is a science peculiarly suitable to females who reside in the country; it is a source of ingenious discoveries, and of pleasures equally elevated and delightful. Under the shade of trees, or the fresh greensward, on the banks of the river and the brook, and on the sides of the rock, are its charming lessons inscribed. M. de Berville loved the science, and offered to teach it to the two sisters; they accepted the offer, the elder from taste, the young Leopoldine from coquetry, seeing no more in it than an opportunity of displaying her lightness and her gracefulness, in running here and there over the grass, to gather the flowers. She insisted upon one condition, however, which was, that they should only go out in the mornings and evenings, so as not to expose their complexions to the heat of the sun. Stephanie approved of these precautions. The care taken by a female to preserve her personal advantages has in it nothing blameable, and Stephanie was the first in setting the example of this to her sister; but on more than one occasion, the desire to possess herself of some flower, rare or curious, carried her above the fear of darkening her skin a little; whilst Leopoldine, the miserable slave of her own beauty, could not enjoy any of the pleasure freely and without fear. One circumstance—and it is of a grave character—

will show to what an extent she was capable of sacrificing every thing to her frivolous vanity.

A burning state of the atmosphere was scorching up all nature; the sun at its highest point of splendor, presented the image of that celestial glory, before which the angels themselves bow down and worship; the withered plants bent beneath the solar ray; the birds were silent in the depth of the wood; the locust alone, interrupted by his shrill cry, the silence of creation. Bathed in sweat, the reaper slept extended on the sheaf, whilst the traveller, in a like repose by the side of some shaded fountain, awaited the hour when the sun, drawing nearer to the horizon, should permit him to continue his journey.

In an apartment, from which the light and heat were half excluded, surrounding a table covered with plants, Stephanie and Leopoldine were listening to M. de Berville, whilst he explained to them the ingenious system of Linnæus, or the more easy system, the “great *families*” of Tournefort, when a letter was brought in for Madame Dorothée, who was engaged in reading.

“Sad news! sad news!” she exclaimed, addressing her nieces. “Our excellent neighbor, Madame Rével, has met with a horrible accident; it is feared that her leg is broken.”

“Good heavens! can such an accident have happened?” cried Leopoldine. “And yesterday she was so well! We will go to see her to-morrow morning. Shall we not, Stephanie?”

“To-day rather, Leopoldine, to-day. Let us not defer for an instant the consolation which it may depend on us to impart to her.”

“Well, then, this evening, after the sun has set.”

“No, no, let us set out immediately, and we will pass, beside her, the rest of the day; M. de Berville will, I know, excuse us.”

“Impossible!” answered Leopoldine, “go out, so hot as it is! it would be wilfully to seek a *coup de soleil*, which would make us perfect blacks for the rest of the summer.”

“We can shield ourselves with a veil—with our parasols——”

“I should not feel myself safe in a sack; and for nothing in this world would I leave this house till the day is over.”

“You forget, Leopoldine, with what courage Madame Rével came from her house alone, on foot, in the middle of a December night, in spite of the frost and the snow, to attend you when you had the measles, because they told her you had expressed a wish to see her instantly.”

“Well, sister, I would sooner confront a cold north wind than the sun.”

“The heat can no more be stopped than the cold, Leopoldine.”

“Nothing is so frightful as a black skin.”

“Sister, though I knew I should become as black as an African, I would not leave our friend without consolation at such a time; I will go with our servant girl; believe me, you will hereafter be sorry you did not follow my example.”

“Permit *me* to accompany you, Miss,” said M. de Berville, taking his hat.

“Really,” answered Stephanie, “I do not know that I ought to consent to it; an hour's walk beneath a burning sun——”

“I fear not the sun any more than yourself,” interrupted de Berville, “and perhaps the support of my arm may not be altogether unserviceable to you.”

Leopoldine permitted them to depart, in spite of the reproaches with which her conscience now addressed her. She remained at home, sad and humiliated, arguing within herself, that M. de Berville ought to have joined her in endeavoring to prevent Stephanie from going, whom, for the first time, she secretly accused of wishing to appear virtuous at her expense. Madame Dorothée very shortly added to her discontent, by reflections which her niece was far from wishing to hear.

“Don't reckon, Leopoldine, upon having made any impression on M. de Berville,” said she; “decidedly, the more I observe him, the more I am

assured he does not dream of marrying *you*.”

“With all the respect which I owe to your sagacity, aunt,” responded Leopoldine, in a peevish tone, “permit me to be of a different opinion: it is impossible but that the assiduities of M. de Berville must have some object, and as to that object there cannot be any doubt. If he delays to make it known, it is because he wishes to *study* me, as my sister says. I do not think I have any cause for alarm on the subject.”

“Suppose it should be of your sister he thinks——”

“She would be nearly the last he would think of,” exclaimed the young maiden, breaking out into a fit of immoderate laughter. “What! a *young* damsel of thirty-two, who has gray hairs, wrinkles, (for she has wrinkles round the eyes—I have seen them plain enough;) a young lady in fact, whom people take to be my mother! what an idea! But I see what has suggested it; it is that promenade at noonday—a mere act of politeness, at which M. de Berville was, I doubt not, enraged at heart.”

“Not so; that circumstance has only weight from that which preceded it. I grant, my dear niece, that there is between you and your sister a difference of fifteen years; and that certainly is a great difference; you dazzle at first sight; but only whilst they regard her not. M. de Berville was in the beginning charmed by your graces; but if I am not deceived, it is not those which retain him here. You have been to him as the flambeau which conducts into the well illuminated hall, which instantly makes pale, by outshining, the light of the flambeau. Pardon me for the comparison.”

“That is to say, it is by me he has been drawn to my sister, and now she has eclipsed me.”

“She cannot eclipse you in beauty, nor youthfulness; but her mind, her knowledge, the qualities of her heart, appear perhaps advantages sufficiently precious to cause to be forgotten those which she lacks; and I shall not be astonished to hear that M. de Berville had taken a liking to, and had actually espoused her, in spite of her thirty-two years.”

“If he is fool enough to prefer my sister to me, I——Away with such an absurd thought; it is impossible,” added Leopoldine, casting at the same time, a glance towards a mirror.

In spite, however, of the very flattering opinion which she entertained of herself, a jealous inquietude had crept into her heart, and she examined more attentively her sister and M. de Berville when they returned together. The accident which had befallen Madame Rével was found to be less serious than it was at first thought to be; the limb was not broken; but through the satisfaction which she felt on this account, Stephanie exhibited in her countenance an expression of uneasiness which was not usual with her. The two sisters were at length alone together, when Leopoldine questioned Stephanie as to the cause of her apparent agitation.

“I feel, I confess, a surprise, mixed with chagrin,” she replied. “M. de Berville, whom I so sincerely desired to see you accept as a husband—who appeared to come here only on your account——”

“Well, sister!”

“He has offered me his hand.”

“I don't see any thing that there is so *very* sad in all this,” responded Leopoldine, dissimulating, (for she was choking with rage) “if M. de Berville likes *old maids*, it is not me, certainly, that he should choose.”

“This it is, which is to me a matter of sadness,” continued Stephanie, “that rivalry, which was as little wished for as foreseen, will, I fear, alienate your affection from your sister, since you can already address me in words of such bitterness.” And the tears suddenly inundated her face.

At sight of this, Leopoldine, more frivolous than insensible, convinced of her injustice, threw herself into the arms of Stephanie.

“Pardon me, my kind sister, I see well that it is not your fault, but you must also agree that this event is humiliating to me; for, in truth, I was the first object of his vows: that man is inconstant and deceitful.”

“No, Leopoldine, that is unreasonable. Attracted by the advantages which you have received from Nature, he had hoped to have found in you, those also which you would have acquired, if my counsels could have had power to persuade you. Your want of information, your coquetry, the ridiculous importance you attach to your beauty, have convinced him that you could not be happy together. What do I say? You never can be happy with any one, unless you come to the resolution to count as nothing those charms so little durable, which sickness may destroy at once, and which time, in its default, is causing every instant to disappear. To adorn her mind, mature her reason, form her heart, are all things which the young female should not neglect to do, whether homely or handsome. That beauty, on which you have reckoned with so much confidence—to which you have sacrificed the sacred duties of friendship—in what way has it benefitted you? One who is neither young nor beautiful has carried away your conquest, although she, perhaps precisely, *because* she dreamed not of doing it. Profit by this lesson, so as, during the beautiful years which remain to you, to instruct and correct yourself. Another Berville will, I hope, present himself, who, won like the first, by your external graces, shall recognize, on viewing you more nearly, those good qualities, more surpassingly beautiful.”

Leopoldine opened her soul to her sister's persuasions; she followed her counsels with docility, and soon reaped the benefits. Stephanie became Madame de Berville, and continued to act as a mother to her sister till she too was married. The sufferings and the fatigues of maternity were not slow, when they came, in effacing the remarkable beauty of Leopoldine; but there remained to her so many precious qualities, so much of solid virtue—of the graces of the mind, that the loss of personal charms were scarcely perceived, and the young wife was neither less cherished by her family, nor less courted by the world, than if her beauty had been an abiding charm.

THE BARD'S FAREWELL.

BY JOHN C. McCABE.

Sweet Muse, I remember, when first to thy spell
My young heart submitted—how bright was the dream!
How I trembled with joy as thy murmurings fell
On my ear, like the flow of a star-litten stream!

This world is too cold for the spirit of song,
'Tis the child of a purer and holier sphere;
It should live where oppression, nor malice, nor wrong,
Dare wring from the dim eye of misery a tear.

It should dwell where 'twas born—in the deeply blue skies,
When from chaos our world sprang to beauty and light;
When the “stars of the morning” in joyous surprise,
Struck their harp strings of fire so holy and bright.

It should dwell where the Cherubim strike their bold lyres—
It should live where the Seraphim songs find their birth;
It should breathe where the presence of Godhead inspires,
But never, oh never, be dweller on earth.

For the heart where it lives is cold poverty's slave,
And those whom it blesses, are curst by the world;
And its votary unhonored is borne to that grave
At whose mound are the dark shafts of calumny hurl'd.

Then, farewell, dear soother of many an hour!
And, farewell sweet visions indulged in so long,
Like the banish'd bird quitting its favorite bower,
I leave yet lament thee, sweet spirit of song!

Richmond, Va. 1836.

MY BOOKS.

On the south side of my house, and communicating with my chamber, is a little room about twelve feet square. The two windows in its southern wall open a pleasant prospect to the eye. Immediately below lies my little garden; beyond are the grounds of my richer neighbors, presenting an agreeable medley of woods and meadows; about half a mile farther, a small river meanders through a fertile valley, beyond which a beautiful stretch of rich and thickly settled country is bounded at the distance of three or four miles by a range of low hills. This little apartment, which is one of the most cheerful in the house, is my favorite resort. Here are my books, and it passes by the various names of the Library, the Study, and the Book Room. The greater part of three sides of the room is hidden by the shelves containing my literary treasures; and perhaps I rather underrate their number when I say that I own two thousand volumes. This is a great number for a man of my limited means to possess, but upwards of forty years have been spent in their collection. About fifty or sixty of the most valuable I am indebted for to several departed friends, who have thus remembered me. These which I have placed upon three shelves in a corner, are amongst those I prize most highly. Many of them I have picked up at auctions at sundry times, for sometimes not a tenth of their value, and the stalls which are to be found in the streets of some of our principal cities have supplied not a few. They are of all sizes, shapes, and ages, and a regiment of Fantastics has more pretensions to the title of an uniformed body than they have. I have not attempted classifying them according to their subject matter, thinking their numbers too few to need it. They are rather grouped, as indeed the shelves require, according to their sizes. There are, however, few of them upon which I could not lay my hands as readily as if assisted by a formal arrangement. Sundry gaps here and there, which have existed for many long months, and some of them for years, show that my acquaintances (I will not call them my friends,) have been equally expert in laying their hands upon them. Who has the first volume of my

Knox's Essays? Why does he not call for the second? I can assure him that I at least do not think, to borrow the auctioneer's phrase, that "each volume is complete in itself."

Whilst I am proud of calling myself master of many rare and curious tomes, on the other hand, I must confess, that many works of what are entitled the British Classic Authors are not to be found upon my shelves. I do not possess a single volume of Sterne's works, looking upon him as a disgrace to his cloth, and a hypocritical whiner concerning a sensibility which his life testified that he was far from really feeling; nor do I think that there is enough Attic salt in his writings to preserve his grossnesses from being offensive. For the same reason I have not a complete copy of Swift. Of those selections from the works of popular authors commonly styled their "Beauties," I have not, I think, half a dozen volumes; and I have very few of the works of the minor poets, being somewhat of Horace's opinion concerning middling poets. But such as it is, my little stock of books is dear to me, and I purpose in the present paper to say something of a few of the volumes.

That quarto standing in the corner of one of the lower shelves, which time has deprived of half its cover and the greater part of a frontispiece representing the Council of Trent, is a work published in the year 1692, and entitled the "*Young Student's Library*, containing extracts and abridgements of the most valuable books published in England, and in the foreign journals, from the year sixty-five to this time; to which is added, a new essay upon All Sorts of Learning, wherein the use of the Sciences is distinctly treated on—by the Athenian Society. Also, a large Alphabetical Table, comprehending the contents of this volume, and of all the Athenian Mercuries and Supplements, &c. Printed in the year 1691. London: printed for John Dunton, at the Raven in the Poultry." This may be looked upon as one of the oldest specimens of the periodical review. The essay upon All Sorts of Learning, is divided into sections treating of Divinity, History, Philosophy, Law, Physic and Surgery, Arithmetic, Poetry, Painting, Geometry, Astronomy, Navigation, &c. &c.—each section followed by a copious list of the most approved works upon the subject more particularly treated of. An arrangement somewhat similar to that of the subjects above enumerated, appears to have been followed in the *Young Student's Library*,

which opens with reviews of the works of Dr. Lightfoot, Dr. Barrow, and Bishop Usher. Near the beginning of the volume, is a notice of a work published in Rotterdam, and entitled “The Accomplishment of Prophecies, or the Deliverance of the Church Near at Hand,” by a Mr. Jurieu, the first sentences of which will give us an idea of the paucity of readers one hundred and fifty years ago compared with their number at present. “*This work has made such a noise, that there are two thousand copies disposed of in four or five months*, and yet there are but a very few gone into France, which would have taken off a great many if it were suffered that it might be disposed of there, this considerable part of Europe being almost nothing, by report, in respect of the bookseller's trade: *one would think that the first edition should have sufficed*—nevertheless, there was soon occasion for the second, and it is that which occasioned Mr. Jurieu to add to this work the additions which are to be marked.” If we suppose that only one hundred copies went to France, there remain nineteen hundred copies for the readers of the rest of Europe, and the disposal of these in four or five months is evidently looked upon as a great sale, and one which was likely to suffice. How would the Athenian Society have stared, to learn that in a century and a half a book would not be considered popular if two thousand copies were not sold in a week in the city where it was published. There is an interesting paper near the close of the book, concerning a work entitled “The Education of Daughters, by Mr. Feuelon, *Abbot*, according to the copy printed at Paris. Md. by Peter Alouin, 1687, in twelves.” The Abbot seems to have been a man of much good sense, as will appear from a few extracts from the review. “This is a matter of one of the most grave and important concerns of life. Mr. Abbot Feuelon concerned at the negligence wherewith virgins are educated, thought he could not better consecrate his cares than to the instruction of this fair sex. Fathers, in reference to public good, or by a blind inclination to young men, abandon their daughters almost without giving them any education—*notwithstanding*, saith he, *they are destined to fulfil the duties which are the foundations of human life, and which decide that which most nearly concerneth mankind*. There is then nothing more important than the precepts that are given us here. And indeed the source of men cannot be too pure. But the difficulty of succeeding is greater than is imagined. For if to give a good education to young women be to be removed entirely from the world, to apply them to what concerneth housewifery and house-government, it is to be feared that their restlessness

and natural curiosity will push them upon other impertinent accomplishments.... Some pretend also that it is not less dangerous to let maids take pleasure in reading and frequent conversation, fearing they should fall into the extremities of the learned and knowing women, who never come down from heroism and refined wit.” Blue-stockings ladies were not more popular formerly than now. Mr. Feuelon recommends the *suaviter in modo* as follows. “After that, coming to a more advanced age, he saith, that nothing backwards young women so much as the bad humors of those mothers who make perpetual lessons, and render virtue odious by too much preaching on’t: Wisdom ought not to be shewn to this age but under a smiling countenance, and under a pleasant image. The most serious occupation ought to be seasoned with some honest pastimes; and a familiar and open conduct makes more progress than a more severe education, and a dry and absolute authority. Notwithstanding it’s the common injustice of mothers, who taking always an austere and imperious countenance, judge not of pleasures but by the sorrow and care of their age, instead of judging thereof by the joy and sportings they had in times past. It falleth out often, that they cry out against pleasures because they themselves cannot taste of them. Howbeit, we cannot be old as soon as we come into the world; and Mr. Abbot Feuelon condemneth these constraining formalities, and these dim ideas of virtue, which render it sad and tedious to young women. Notwithstanding, continueth our author, as they are destined to moderate exercises, it is good to give them a slight imploy, for idleness is an unfathomable source of troublesomeness; and besides, the wandering imagination of a young woman turns itself easily towards dangerous objects. Therefore also he will not have them to accustom themselves so much to sleep, because that mollifies the body, and exposes the mind to the rebellion of the senses.

“Mr. Abbot Feuelon condemns utterly romances, because, according to him, young women fall into passions for chimerical intrigues and adventures. Being charmed with what they find tender and marvellous in them, what a distaste is it to them to abase themselves unto the lowest part of housewifery, and to this ordinary life we lead? He is not yet altogether against their learning some languages, but he rejects the Italian, because it’s only proper to read dangerous books, and he prefers the Latin tongue by reason of the DIVINE OFFICE. But without mentioning other inconveniences,

he forgot that Ovid and Martial are poisoners far more pernicious than Amintas and Pastor Fido; for besides the obscenity of Martial, there is in Ovid all that love can inspire most tender, most ingenious, and most delicate. In truth, it were a thing to be wished for, that the modesty of a young woman should make her ignorant of all things that concern love; but it is convenient enough to know it in order to prevent it as much as possible. At least it was the advice of Madame de Chartres, a grave authoress in these matters, and which well may be opposed to Mr. Abbot Feuelon. The greatest part of mothers imagine (saith the author of the Princess of Cleves) that it is sufficient not to speak of gallantry before young persons, to make them keep from it. On the contrary, Madame de Chartres often depainted love to her daughter. She would tell her what there was pleasing in it, the more easily to persuade her of the misfortunes whereinto engagements lead us.

“This conduct hath something in it very acute. For nothing is more dangerous than to expose a young woman to know love by an interested person's mouth, who far from making her observe the troubles that follow this passion, hath no greater care than to hide them from her. So that it is very hard that a young person should resist love, whilst never hearing mention made of it, she begins to know it by that which is taking in it: and how shall she defend herself from a passion which only promisseth sweetnesses, and which offers such pleasing baits!”

It appears that there is a chapter devoted to the faults of young women. “Mr. Abbot Feuelon says that they must be corrected for those tears they shed so cheap,” and that “they have always been reproached with a marvellous talent of speaking;” but he endangers the cure of the first offence, by admitting that “a handsome woman, when she is in tears, is by the half more handsome.” The reviewer states that the Abbot does not spare them for those “precipitate decisions of the curious ladies, which so much displease men of good judgment. A poor man of a Province, saith he, will be the ridicule of five or six *a-la-mode* ladies, because his peruke is not of the best make, or because he wants a good grace, though he hath an upright heart, and a mind just and solid: when a courtier is preferred, whose whole deserts consist in fashions and cooks, and who hideth a low heart and false mind under an exterior politeness.

“Finally, he inveighs mightily against the vanity of women, their violent desire of pleasing, and the passion of dressing themselves, which they make their most important business. He pretends that this haughtiness draws after it the ruin of families, and the corruption of manners; and he neatly decides *that Beauty is noisome, if it doth not advantageously serve, to marry a young woman*”—which sentence the reviewer pronounces to be a little rigorous, and refutes at considerable length.

Farther on is a notice of a work entitled “A Treatise of the Excellency of Marriage; of its Necessity, and the Means of Living happily therein: where is an Apology made for Women against the Calumnies of Men. By James Chausse, Master of the Court Rolls. Printed at Paris—1685,” a work which might be advantageously republished at the present day. Mr. Chausse appears to have had a very exalted opinion of the married state, as the following passage must testify. He says, that “the most favorable judgment of the wisest about a single life is, that 'tis a virtue neither good nor bad, and that being without action, it is a kind of vice. He maintains that God made two sexes in nature, to shew they cannot subsist without being joined together; he sends us to learn of the animals, amongst which the mutual love of males for females, and females for males, is common to every individual. After this he considers men as men in a state, in a family, and in a church, and he says that in all these regards they are obliged to marry—because, adds he, 'tis necessary to endeavor to preserve their own kind, as they are citizens to the republic, successors to their families, and servants to the church; he speaks very large upon these three duties, and considering the beauty and perfections of man, he is wrapped up in admiration, and says, can there be any thing more noble than the ambition of producing creatures so perfect? He asks, if it is possible that we should be so much moved with the glory of making a fine book, drawing a beautiful picture, or a handsome statue, and should not be sensible of the glory of making a man? This appears so noble and admirable, that all men that we read of in Scriptures have thought themselves very happy in it, as Ibstan and Abdan, of which the first had thirty sons and thirty daughters, and as many sons and daughters in law; and the second had forty sons, and thirty grandsons, whom he saw altogether on horseback. ‘O God, (cries he out) can any thing be added more to the happiness of a father—can any thing be seen more memorable in the life of man!’ In my opinion, it exceeds all the acts of

Cæsar and Alexander—such an increase is more noble than any act that can be found in history. Hence he supposes that Augustine had acquired more glory, if instead of leaving so many books, he had furnished the world with thirty children; and he would persuade us that the invention of Archimedes and Des Cartes are trifles in comparison of the exploits of a simple country fellow, who helps to people the world by lawful means; I say lawfully, for the author thinks no offspring good that is not from marriage. He fortifies his proofs as much as possible, and goes back to the ancient Jews, observing that marriage being one of these things that generally happen sooner or later, it is better to engage ourselves in happy time, than after a thousand declamations against it, whilst we are hurrying on to old age, when marriage can produce nothing but vexatious consequences.”—Then follows a dissertation upon the second marriages of widows, too long for me to quote.

The work of Mr. Chausse was written to persuade a gentleman, for whom he had a high regard, to marry; and he takes up all the possible objections he could think of in the following order. First, all those founded upon the conduct of women; second, those upon the nature of marriage itself; and third, the objection that marriage is an unsupportable yoke. Under the last head, the author gives the following directions for making a good marriage. “First, after having recommended ourselves to God, who presides in a more particular manner over that state, we make a choice of such a person as pleases us, and who has an agreeable temper. It would not be displeasing to have her handsome; but since 'tis not very common to find such a one, we ought to be contented if she please us, whether she does others or no; and that 'tis not always advantageous for the wife to please all the world: but 'tis not sufficient to be pleased with her beauty, except there be a sympathy in humors. The author advises us to study the genius of those we design to marry, that we may the better succeed, in spite of the address that some make use of to hide their weakness; he adds, for the better security, that we may choose one that is young, and resides near our own habitation. In the first place, he advises to a choice in a well ordered family, and to observe the equality of condition and fortune, and to take care that she has no such pre-engagements as may make her marry him by constraint.” (This latter matter the young ladies now take care of themselves.)

The following is the conclusion of the review. "'Tis a good observation that the author, who in his book exhorted men to marry, says not a word to persuade virgins to the same. He well foresaw that this silence would surprise some of his readers—therefore he has put them out of pain in the preface, by acquainting them that virgins are sufficiently convinced of the necessity of marriage, therefore want no exhortations thereto; 'tis certain, says he, that though a virgin never proposes marriage, because of her modesty, there is nothing she so passionately wishes for; her heart often gives her mouth the lie; she often says I will not, when sometimes she dies for desire."

My limits will not permit my quoting from any other reviews in the work, though much instructive and entertaining matter might be culled therefrom. I must, however, give a few specimens of the Alphabetical Table at the end of the work, which will give us some idea of the questions which "the wisdom of our ancestors" was occupied with:

Adam and Eve, whether they had navels?
Apprentice, whether loses his gentility?
Angels, why painted in petticoats?
Adam and Eve, where had they needles?
Ark, what became of it after the flood?
Babel Tower, &c. what was the height of it?
Bugs, why bite one more than another?
Born with Cawls, what signifies it?
Brothers born two in one, had they two souls?
Balaam a Moabite, how could he understand his Ass?
Clergy's Wives and Children, why unhappy?
Females, if went a courting more marriages than now?
Hairs, an equal number on any two men's head?
Husband, whether lawful to pray for one?
Kings of England, can they cure the evil?
Lion, whether it won't prey upon a virgin?
Mermen and Mermaids, have they reason?
Marriage of a young man and an old woman wholesome?
Marry, which best a good temper or a shrew?
Negroes, shall they rise so at the last day?

Phoenix, why but one?
Peter and Paul, did they use notes?
Queen of Sheba, had she a child by Solomon?
Queen of Sheba, if now alive, whither she?
Salamander, whether it lives in the fire?
Swoon, where is the soul then?
Wife, whether she may beat her husband?
Women, if mere machines?
Women, whether not bantered into a belief of being angels?
Women, whether they have souls?
Women, when bad, why worse than men?

Here is a volume of Almanacs—poor Richard's Almanacs, published by Dr. Franklin for so many years, and enriched with his moral and economical maxims. Many of the prefaces are amusing, and I shall give you three or four. Here is that to the Almanac for 1744.

“*Courteous Reader*—This is the twelfth year that I have in this way labored for the benefit—of whom?—of the public, if you'll be so good natured as to believe it; if not, e'en take the naked truth—'twas for the benefit of my own dear self—not forgetting in the meantime our gracious consort and dutchess, the peaceful, quiet, silent lady Bridget. But whether my labors have been of any service to the publick or not, the publick I acknowledge has been of service to me. I have lived comfortably by its benevolent encouragement, and I hope I shall always bear a grateful sense of its continued favor.

“My adversary, J——n J——n, has indeed made an attempt to *outshine* me by pretending to penetrate *a year deeper* into futurity, and giving his readers *gratis* in his Almanack for 1743, an eclipse of the year 1744, to be beforehand with me. His words are, ‘The first day of *April* next year, 1744, there will be a GREAT ECLIPSE of the sun; it begins about an hour before sunset. It being in the sign Aries, the House of Mars, and in the Seventh, shows heat, difference, and animosities between persons of the highest rank and quality,’ &c. I am very glad, for the sake of those persons of rank and quality, that there is *no manner of truth* in this prediction: they may, if they please, live in love and peace; and I caution his readers (they are but few

indeed, and so the matter's the less) not to give themselves any trouble about observing this imaginary great eclipse; for they may stare till they are blind without seeing the least sign of it. I might on this occasion return Mr. J——n the name of *Baal's false prophet* he gave me some years ago in his wrath, on account of my predicting his reconciliation with the *Church of Rome*, (though he seems now to have given up that point) but I think such language between old men and scholars unbecoming; and I leave him to settle the affair with the buyers of his Almanack as well as he can, who perhaps will not take it very kindly that he has done what in him lay, (by sending them out to gaze at an invisible eclipse on the first of April) to make *April fools* of them all. His old threadbare excuse, which he repeats year after year about the weather, 'that no man can be infallible therein, by reason of the many contrary causes happening at or near the same time, and the unconstancy of the summer showers and gusts,' &c. will hardly serve him in the affair of *eclipses*, and I know not where he'll get another.

"I have made no alteration in my usual method, except adding the rising and setting of the planets, and the lunar conjunctions. Those who are so disposed, may thereby very readily learn to know the planets and distinguish them from each other.

"I am, dear reader, thy obliged friend,

R. SAUNDERS."

The Almanack for 1746 opens with the following poetical preface.

Who is poor Richard? people oft inquire
Where lives? what is he—never yet the higher.
Somewhat to ease your curiositie
Take these slight sketches of my dame and me.

Thanks to kind readers and a careful wife,
With plenty blessed I lead an easy life;
My business writing; hers to drain the mead
Or crown the barren hill with useful shade;
In the smooth glebe to see the ploughshare worn
And fill my granary with needful corn;
Press nectarous cider from my loaded trees,
Print the sweet butter, turn the drying cheese.
Some books we read, though few there are that hit
The happy point where wisdom joins with wit,
That set fair virtue naked to our view
And teach us what is decent, what is true.
The friend sincere and honest man with joy,
Treating or treated oft our time employ.
Our table neat, meal temperate, and our door
Opening spontaneous to the bashful poor.
Free from the bitter rage of party zeal
All those we love who seek the public weal,
Nor blindly follow Superstition's lore,
Which cheats deluded mankind o'er and o'er.
Not over righteous, quite beyond the rule,
Conscience-perplexed by every canting tool,
Nor yet where folly hides the dubious line,
Where good and bad their blended colors join,
Rush indiscreetly down the dangerous steep,
And plunge uncertain in the darksome deep.
Cautious if right; if wrong, resolved to part
The innate snake that folds around the heart;
Observe the mean, the motive and the end,
Mending ourselves or striving still to mend.
Our souls sincere, our purpose fair and free
Without vain-glory or hypocrisy:
Thankful if well, if ill we kiss the rod,
Design with hope and put our trust in God

resign with hope and put our trust in God.

The preface for 1747 is as follows.

Courteous Reader,—This is the fifteenth time I have entertained thee with my annual productions; I hope to thy profit as well as mine. For besides the astronomical calculations and other things usually contained in Almanacks, which have their daily use indeed while the year continues, but then become of no value, I have constantly interspersed *moral* sentences, *prudent* maxims, and *wise* sayings, many of them containing *much good sense in very few words*, and therefore apt to leave *strong* and *lasting* impressions on the memory of young persons, whereby they may receive benefit as long as they live, when the Almanack and Almanack maker have been long thrown by and forgotten. If I now and then insert a joke or two that seem to have little in them, my apology is, that such may have their use, since perhaps for their sake light airy minds peruse the rest and so are struck by somewhat of more weight and moment. The verses on the heads of the months are also generally designed to have the same tendency. I need not tell thee, that not many of them are of my own making. If thou hast any judgment in poetry, thou wilt easily discern the workman from the bungler. I know as well as thou, I am no *poet born*, and indeed it is a trade I never learnt nor indeed could learn. If I make verses, 'tis in spite of nature and my stars I write. Why then should I give my readers *bad lines* of my own, when good ones of other people are so plenty? 'Tis, methinks, a poor excuse for the bad entertainment of guests, that the food we set before them, though coarse and ordinary, is *of one's own raising*, *off one's own plantation*, etc. when there is plenty of what is ten times better to be had in the market. On the contrary, I assure ye, my friends, that I have procured the best I could for ye, and much good may't do ye.

I cannot omit this opportunity of making honorable mention of the late deceased ornament and head of our profession, MR. JACOB TAYLOR, who, for upwards of forty years, (with some few intermissions only) supplied the good people of this and the neighboring colonies with the most complete Ephemeris and most accurate calculations that have hitherto appeared in America. He was an ingenious mathematician, as well as an expert and skilful astronomer, and moreover no mean philosopher, but what is more than all, he was a PIOUS and HONEST man. *Requiescat in pace.*

I am thy poor friend to serve thee,

R. SAUNDERS.”

The *science* of astrology is very happily ridiculed in an ironical commendation of it in the Almanack for 1751.

“*Courteous Reader*,—Astrology is one of the most ancient sciences, held in high esteem of old by the wise and great. Formerly no prince would make war or peace, nor any general fight a battle; in short, no important affair was undertaken without first consulting an Astrologer, who examined the aspects and configurations of the heavenly bodies, and marked the lucky hour. Now the noble art (more shame to the age we live in) is dwindled into contempt; the great neglect us; empires make leagues and parliament laws without advising with us; and scarce any other use is made of our learned labors, than to find out the best time of cutting corns and gelding pigs. This mischief we owe in a great measure to ourselves; the ignorant herd of mankind, had they not been encouraged to it by some of us, would never have dared to depreciate our sacred dictates; but Urania has been betrayed by her own sons; those whom she had favored with the greatest skill in her divine art, the most eminent Astronomers among the moderns, the *Newtons*, *Halleys* and *Whistons*, have wantonly contemned and abused her contrary to the light of their own consciences. Of these, only the last named, *Whiston*, has lived to repent and speak his mind honestly. In his former works he had treated *judicial astrology* as a chimera, and asserted that not only the fixed stars, but the planets (sun and moon excepted) were at so immense a distance as to be incapable of any influence on this earth, and consequently nothing could be foretold from their positions; but now, in the memoirs of his life, published 1749, in the eighty-second of his age, he foretells, page 607, the sudden destruction of the Turkish Empire and of the House of Austria, German Emperors, &c. and Popes of Rome; the Restoration of the Jews and commencement of the Millenium, all by the year 1766, and this not only from Scriptural prophecies, but (take his own words) ‘from the remarkable *Astronomical* signals that are to alarm mankind of what is coming, viz. the Northern Lights since 1715, the six comets at the Protestant Reformation in four years, 1530, 1531, 1533, 1534, compared with the seven comets already seen in these last eleven years, 1737, 1739, 1742, 1744, 1746, and 1748—from the great annular eclipse of the sun July

14, 1748, whose centre passed through all the four monarchies from Scotland to the East Indies—from the occultation of the Pleiades by the moon each periodical month after the eclipse last July, for above three years visible to the whole Roman Empire—from the comet of A.D. 1456, 1531, 1607 and 1682, which will appear again about 1757 ending, or 1758 beginning, and will also be visible through that Empire—from the Transit of Venus over the Sun May 26, 1761, which will be visible over the same Empire: and lastly, from the annular eclipse of the sun March 11, 1764, which will be visible over the same Empire.’ From these Astronomical signs he foretold those great events—that within sixteen years from this time, ‘the Millenium or 1000 years reign of Christ shall begin; there shall be *a new heaven* and *a new earth*; there shall be no more an infidel in Christendom, nor a gaming table at Tunbridge!’ When these predictions are accomplished, what glorious proofs will they be of the truth of our art! And if they happen to fail there is no doubt that so profound an Astronomer as Mr. Whiston, will be able to see *other* signs in the heavens, foreshowing that the conversion of the infidels was to be postponed and the Millenium adjourned. After these great things, can any man doubt our being capable of predicting a little rain or sunshine? Reader, farewell, and make the best use of your years and your Almanacks, for you see that according to *Whiston*, you may have at most but sixteen more of them.

R. SAUNDERS.

Patowmack, July 30, 1750.”

“*Great Events from Little Causes*,” is the title of a translation from a French work, published in Dublin in 1768. We may easily imagine how interesting such a work well executed must prove. It contains between fifty and sixty anecdotes from ancient and modern history. Had I room, I could copy nearly half the book without fearing to tire my readers, so true is it that “truth is strange, stranger than fiction.” From Roman history, we have the overthrow of the regal government of Tarquin traced back to Collatinus’ praise of his wife Lucretia, the abolition of the Decemvirate to the passion of Appius Claudius for Virginia, and the raising of the Plebeians to the Consular Dignity to the jealousy of a woman against her sister. We are reminded that the discovery of Cataline’s conspiracy was owing to the

disgust of Fulvia towards her lover, and that the ugliness of another Fulvia occasioned a civil war between Antony and Octavius. Among the passages from modern history are the following.

“A quarrel which arose between two men of mean condition, the one a Genoese and the other a Venitian, occasions a terrible war between the Republics of Venice and Genoa, about the year 1258.

“Genoa withdrew itself from the dominion of the successors of Charlemagne, and in spite of all the troubles and divisions with which she was agitated, as well as intestine civil wars, she preserved her liberty. Europe, then peopled by Barbarians, was ignorant of the advantages of commerce; Genoa built ships and brought into Europe the productions of Asia and Africa; she amassed immense riches and became one of the most flourishing cities of the world. Venice followed her example and became her rival.

“These two republics, whom commerce made known to all nations, soon had establishments in all parts of the known world. They had a considerable one in the city of Acre, which, on account of its situation and largeness of its harbor, was very commodious to those who traded along the coast of Syria. The Genoese and Venitians had between them more than one-third of the city, where they lived subject to the laws of their respective countries.

“Neither the difference of customs nor even interest itself, which among merchants is an astonishing circumstance, occasioned any discord between them. They lived many years in as perfect an union as if they had been of the same nation and of joint interests. But if the ordinary motives of division among men were not capable of disturbing these two nations, we shall see them in arms against each other from a trifling and at the same time a very singular cause. Two men of the very lowest condition, the one a Genoese and the other a Venitian, who were no other than porters to the merchants fell out about a bale of goods which were to be carried. From words they came to blows. The merchants who at first gathered round them only by way of amusement to see the battle, at length took part in the quarrel, each assisting their countrymen. They grew warm and fought together; so that much blood was spilt and a deal of damage done on both sides. Complaints were soon carried to Genoa and Venice. The magistrates

of each republic agreed that satisfaction should be made for the damage, according to the estimation of several arbitrators appointed for that purpose. The Genoese being condemned to make a more considerable reparation than the Venitians, delayed to furnish what was demanded of them. The Venitians piqued at the unfaithfulness of the Genoese, resolved to do themselves justice; and having surprised all the Genoese vessels which were in the port of Acre, set them on fire. The Genoese would have retaliated this injury on the Venitians, but the latter were on their guard and prevented them; a battle however ensued much more bloody than the first. Genoa and Venice resolved to support their merchants; they each fitted out a considerable fleet; that of the former was beaten, and the Genoese were obliged to abandon their settlements at Acre: the Venitians razed their houses and forts and destroyed their magazines. The Genoese irritated at this defeat, used their utmost efforts to put their fleet again into a condition to attack the Venitians. Every citizen offered to venture his person and fortune to revenge the outrage committed against his country. The Venitians informed of these preparations neglected no precautions to oppose them. The sea was covered with ships, an engagement ensued, much blood was spilt, and many brave citizens lost on both sides. In short, after a long and cruel war, in which the two republics reaped nothing but shame for having entered into it, they made peace.”

“The boldness with which wine inspired a shoemaker at Genoa, occasioned the government of that republic to be changed.

“All republics have been torn by civil wars: ambition hath ever kindled discord therein. In the history of those states we see continually the nobles assuming more than their rights, and by their injustice exhausting the patience of the people, who arming themselves at the instigation of an ambitious person and guided by rage alone, brave the laws and commit the most terrible disorders.

“Genoa was not exempt from these evils; we meet with nothing in the writers who have transmitted its history, but troubles and calamities: it is a chain of revolutions. Towards the middle of the fourteenth century, the people, impatient under the tyranny of the nobility, murmured. There were some among them who sacrificed the welfare and tranquillity of the public

to their ambition and to their interest: they took advantage of the discontent of the people, and irritated them by seditious discourses; they took up arms, and the nobility, to avoid the blows with which they were threatened, promised to grant whatever should be demanded of them.

“The populace were desirous that an *Abbé of the People* should be elected. His office was to sustain the interests and liberties of the people, and to counterbalance, in a great measure, the authority of the *captains*, who were then the magistrates of the republic.

“An assembly was accordingly held for the election of an *Abbé of the People*. Vast numbers went to the place of meeting, and every one gave his voice; but as they all spoke at once nobody was understood. The tumult increased, the people began to grow warm, and were ready to proceed to blows; when a shoemaker, who at that instant was just come from a drinking house, passing by the assembly, mixed among the crowd, and getting upon a little eminence that fell in his way, being emboldened by the fumes of the wine, he bawled out as loud as he was able, ‘Fellow citizens, will you hearken to me?’ This invocation struck their ears, and immediately all eyes were fixed upon him; and the Genoese who were about to tear each other to pieces, all joined in a hearty laugh. Some bade him hold his peace, others encouraged him to speak on, and others again threw dirt at him; all laughed. This orator, without being in the least disconcerted, said, ‘I think myself obliged to tell you that you ought to nominate to the dignity of *Abbé of the People*, an honest man; and I know of none more so than Simon Boccanegra. You ought to appoint him.’

“Simon Boccanegra was a perfectly honest man; the amiableness of his character, his generosity and many other virtues had procured him the love and esteem, both of the nobility and commonalty. He was one of the principal families among the citizens, and his relations had filled with universal applause the dignities of the republic. The person who first occupied the place of *Captain of the People* was one of his ancestors.

“In short, his merit occasioned them to pay attention to the shoemaker's harangue. The name of Boccanegra became the general cry; every one insisted upon his being elected *Abbé of the People*, and they presented him with the sword, which was the mark of his dignity: but he returned it,

saying, that he thanked the people for the good will they had shown him, and that as none of his ancestors had been Abbé of the People, he would not be the first who should introduce that office into his family. He was willing to avail himself of the humor into which he found the speech of the shoemaker had thrown the people to attain the lead in the republic.

“The people who are seldom moderate in their affection any more than in their hatred, immediately cried out, ‘Boccanegra, Lord of Genoa.’ This artful ambitious man said he was ready to submit to the will of the people, to be *Abbé* or *Lord* according as they should ordain. This feigned humility pleased the people, as he expected; they repeated Lord Boccanegra! and he was proclaimed perpetual Doge. So that the speech of a drunken shoemaker occasioned the government of Genoa to be transmitted from nobles to the people, and a single man to become sole master in the state.”

With the headings of a few other examples I shall conclude.

“The severity of an Empress to her daughter was the occasion of Attila's ravaging Gaul and Italy, and of the foundation of the city of Venice.”

“The inability of a person who had lost a considerable sum at dice to pay the same immediately, was the cause that the Vandals settled in Africa, went to ravage Italy and sack Rome.”

“The assassination of Chilperic, king of France, was occasioned by his giving Fredegonde his wife, a blow with a switch in play.”

“A repartee of the Empress Sophia, consort of Justinian II, is the cause of the Lombards invading Italy and establishing themselves there.”

“The kingdoms of Naples and Sicily were established in consequence of a duel fought by two Norman barons.”

“The beauty of a young Turk who lived at Antioch is the occasion of cruel wars between England and France.”

“A yellow goat occasions the death of three Khans of the Tartars, and the destruction of several cities.”

“Francis I, king of France, having promised a lady, of whom he was enamored, to meet her at Lyons in the month of March, occasions him to lose the battle of Pavia, himself to be made prisoner and reduces France to the brink of ruin.”

“The love of Margaret, duchess dowager of Burgundy, for a young Jew, occasions Brittany to be re-united to France, and England to be rent by civil wars.”

“A blow with a cane, being given by a German to a Genoese, who was looking at the carriage of a mortar-piece, which was broken in one of the streets of Genoa, occasions the Austrians to be driven from that city, and the republic of Genoa to recover its liberty.”

In view of such things, may we not say with a poet whose name I have forgotten—

“Think naught a *trifle* though it small appear,
Small sands the mountain, minutes make the year,
And trifles life; your care to trifles give,
Else you may die ere you have learned to live.”

Editorial.¹

¹ Some misapprehensions having arisen, it may be as well to state that *all after* this word “Editorial,” is strictly what it professes to be.

To the Editor of the Southern Literary Messenger.

Sir,—In your August number (page 573) is a quotation from Mr. Burke's speech to the Electors of Bristol, upon the subject of instructions from constituents to their representatives. Will you oblige me by giving another passage or two from that speech, which will show how inapplicable Mr. Burke's remarks are to our country. Immediately after the word “arguments,” at the end of your last quotation, Mr. Burke proceeds thus:

“To deliver an opinion is the right of all men; that of constituents is a weighty and respectable opinion, which a representative ought always to rejoice to hear, and which he ought always most seriously to consider. But *authoritative* instructions, *mandates* issued, which the member is bound blindly and implicitly to obey, to vote and to argue for, though contrary to the clearest conviction of his judgment and conscience, these are things utterly unknown to the laws of THIS LAND, and which arise from a fundamental mistake of the whole order and tenor of our CONSTITUTION.

“Parliament is not a *congress* of ambassadors from different and hostile interests, which interests each must maintain as an agent, and advocate against the other agents and advocates; but Parliament is a deliberative assembly of *one* nation, with *one* interest, that of the whole; where, not local purposes, not local prejudices ought to guide, but the general good, resulting from the general reason of the whole. You choose a member indeed, but when you have chosen him, he is not a member of Bristol, but he is a member of *Parliament*.”

This theory of each member's representing not those who chose him, but the whole nation, gave rise to what was called *virtual* representation, when the people of America complained that they had no representatives in Parliament. Is it not evident, that under our CONSTITUTION, if every member represents his own constituents, *all* will be represented? It was different indeed under the rotten borough system of England, now happily exploded. Mr. Burke was elected to Parliament, but having voted, under pretence of consulting the general good, for many measures obnoxious to the people of Bristol, he was defeated when he attempted to be re-elected. The making of loud professions of interest in the public welfare, and desire for the general good, accompanied by a neglect of immediate duties, reminds one of professions of universal philanthropy from the lips of a bad husband and a bad father.

Yours respectfully,

Q. V. Z.

[Our correspondent, in supposing Mr. Burke's remarks "inapplicable to this country," seems to be misled by the word "congress." Had not this term been appropriated to our National Assembly the paragraph would have escaped attention. The whole is applicable, we think, fully, even to "Congress" itself. Write "our General Legislature" in place of "Parliament," "assembly" instead of "congress," for "Bristol" read "Virginia," and we see no difficulty whatever.

Our general legislature is not an assembly of ambassadors from different and hostile interests, which interests each must maintain as an agent, and advocate against the other agents and advocates; but our general legislature is a *deliberative* [Mr. B. has italicized deliberative] assembly of *one* nation, with *one* interest, that of the whole. You choose a member indeed, but when you have chosen him, he is not a member of Virginia, but a member of our general legislature.

We can see no inapplicability here, nor is a word of the paragraph to be denied, when made referrible to us. Mr. Burke, we apprehend, wished simply to place a representative and *deliberative* assembly, consisting of delegates from various sections of *one* nation, in contradistinction to a meeting of ambassadors from a number of distinct and totally hostile powers. In the former case, supposing the judgment, rather than the will of the people, to be *represented*, he allows of no "authoritative mandates" from the constituent to the representative—in the latter instance, and in such instance alone, he can imagine the binding power of letters of instruction from home, upon the ambassadors assembled.

In regard to the "making of loud professions of interest in the public welfare, and desire for the general good, accompanied by a neglect of immediate duties"—we conceive that, in the case of Burke, or in any similar case, if the passage of a law is to operate for the general good, yet for the individual harm of the Senator's constituents, then the Senator has but one "immediate duty"—to vote for it.]

CRITICAL NOTICES.

PHILOTHEA.

Philothea: A Romance. By Mrs. Child, Author of the Mother's Book, &c. Boston: Otis, Broaders & Co. New York: George Dearborn.

Mrs. Child is well known as the author of "Hobomok," "The American Frugal Housewife," and the "Mother's Book." She is also the editor of a "Juvenile Miscellany." The work before us is of a character very distinct from that of any of these publications, and places the fair writer in a new and most favorable light. *Philothea* is of that class of works of which the *Telemachus* of Fenelon, and the *Anarcharsis* of Barthelemi, are the most favorable specimens. Overwhelmed in a long-continued inundation of second-hand airs and ignorance, done up in green muslin, we turn to these pure and quiet pages with that species of gasping satisfaction with which a drowning man clutches the shore.

The plot of *Philothea* is simple. The scene is principally in ancient Athens, during the administration of Pericles; and some of the chief personages of his time are brought, with himself, upon the stage. Among these are Aspasia, Alcibiades, Hippocrates, Anaxagoras of Clazomenæ, Plato, Hermippus the comic writer, Phidias the Sculptor, Artaxerxes of Persia, and Xerxes his son. *Philothea*, the heroine of the tale, and the grand-daughter of Anaxagoras, is of a majestic beauty, of great purity and elevation of mind. Her friend, Eudora, of a more delicate loveliness, and more flexible disposition, is the adopted daughter of Phidias, who bought her, when an infant, of a goat-herd in Phelle—herself and nurse having been stolen from the Ionian coast by Greek pirates, the nurse sold into slavery, and the child delivered to the care of the goat-herd. The ladies, of course, have lovers. Eudora is betrothed to Philæmon. This Athenian, the son of the wealthy Cherilaus, but whose mother was born in Corinth, has incurred the dislike of Aspasia, the wife of Pericles. She procures the revival of an ancient law subjecting to a heavy fine all citizens who married foreigners, and declaring all persons, whose parents were not both Athenians, incapable of voting in the public assemblies, or of inheriting the estates of their fathers. Philæmon,

thus deprived of citizenship, prevented from holding office, and without hope of any patrimony, is obliged to postpone, indefinitely, his union with Eudora. The revival of the obnoxious law has also a disastrous effect upon the interests of Philothea. She is beloved of Paralus, the son of Pericles, and returns his affection. But in marrying, she will bring upon him losses and degradation. Pericles, too, looks with an evil eye upon her poverty, and the idea of marriage is therefore finally abandoned.

Matters are thus situated, when Philothea, being appointed one of the *Canephoræ*, (whose duty it is to embroider the sacred peplus, and to carry baskets in the procession of the *Panathenaia*,) is rigidly secluded by law, for six months, within the walls of the *Acropolis*. During this time, Eudora, deprived of the good counsel and example of her friend, becomes a frequent visitor at the house of *Aspasia*, by whose pernicious influence she is insensibly affected. It is at the return of Philothea from the *Acropolis* that the story commences. At the urgent solicitation of *Aspasia*, who is desirous of strengthening her influence in Athens by the countenance of the virtuous, *Anaxagoras* is induced to attend, with his grand-daughter, a symposium at the house of *Pericles*. Eudora accompanies them. The other guests are *Hermippus*, *Phidias*, the Persian *Artaphernes*, *Tithonus* a learned Ethiopian, *Plato*, *Hipparete* the wife of *Alcibiades*, and *Alcibiades* himself. At this symposium Eudora is dazzled by the graces of *Alcibiades*, and listens to his seductive flattery—forgetful of the claims of *Hipparete*, the wife of *Alcibiades*, and of *Philæmon*, her own lover. The poison of this illicit feeling now affects all the action of the drama. Philothea discovers the danger of her friend, but is sternly repulsed upon the proffer of good advice. *Alcibiades* is appointed a secret interview by Eudora, which is interrupted by Philothea—not however before it is observed by *Philæmon*, who, in consequence, abandons his mistress, and departs, broken-hearted, from Athens. The eyes of Eudora are now opened, too late, to the perfidy of *Alcibiades*, who had deceived her with the promise of marriage, and of obtaining a divorce from *Hipparete*. It is *Hipparete* who appeals to the *Archons* for a divorce from *Alcibiades*, on the score of his notorious profligacy; and, in the investigations which ensue, it appears that a snare has been laid by *Aspasia* and himself, to entrap Eudora, and that, with a similar end in view, he has also promised marriage to *Electra*, the Corinthian.

Pericles seeks to please the populace by diminishing the power of the Areopagus. He causes a decree to be passed, that those who denied the existence of the Gods, or introduced new opinions about celestial things, should be tried by the people. This, however, proves injurious to some of his own personal friends. Hermippus lays before the Thesmothetæ Archons an accusation of blasphemy against Anaxagoras, Phidias, and Aspasia; and the case is tried before the fourth assembly of the people. Anaxagoras is charged with not having offered victims to the Gods, and with having blasphemed the divine Phœbus, by saying the sun was only a huge ball of fire,—and is condemned to die. Phidias is accused of blasphemy, in having carved the likeness of himself and Pericles on the shield of heaven-born Pallas, of having said that he approved the worship of the Gods merely because he wished to have his own works adored, and of decoying to his own house the maids and matrons of Athens, under the pretence of seeing sculpture, but in fact, to administer to the profligacy of Pericles. He is also adjudged to death. Aspasia is accused of saying that the sacred baskets of Demeter contained nothing of so much importance as the beautiful maidens who carried them; and that the temple of Poseidon was enriched with no offerings from those who had been wrecked, notwithstanding their supplications—thereby implying irreverent doubts of the power of Ocean's God. Her sentence is exile. Pericles, however, succeeds in getting the execution of the decrees suspended until the oracle of Amphiaraus can be consulted. Antiphon, a celebrated diviner, is appointed to consult it. He is absent for many days, and in the meantime Pericles has an opportunity of tampering with the people, as he has already done with Antiphon. The response of the oracle opportunely declares that the sentences be reconsidered. It is done—Phidias and Anaxagoras are merely banished, while Aspasia is acquitted. These trials form perhaps the most interesting portion of the book.

Chapter XI introduces us to Anaxagoras, the contented resident of a small village near Lampsacus in Ionia. He is old, feeble, and in poverty. Philothea watches by his side, and supports him with the labor of her hands. Plato visits the sage of Clazomenæ in his retreat, and brings news of the still-beloved Athens. The pestilence is raging—the Piræus is heaped with unburied dead. Hipparete has fallen a victim. Pericles was one of the first sufferers, but has recovered through the skill of Hippocrates. Phidias who,

after his sentence of exile, departed with Eudora to Elis, and grew in honor among the Eleans—is dead. Eudora still remains at his house, Elis having bestowed upon her the yearly revenues of a farm, in consideration of the affectionate care bestowed upon her illustrious benefactor. Philæmon is in Persia instructing the sons of the wealthy Satrap Megabyzus. Alcibiades is living in unbridled license at Athens. But the visiter has not yet spoken of Paralus, the lover of Philothea. “Daughter of Alcimenes,” he at length says, (we copy here half a page of the volume, as a specimen of the grace of the narrative)—

“Daughter of Alcimenes, your heart reproaches me that I forbear to speak of Paralus. That I have done so, has not been from forgetfulness, but because I have with vain and self-defeating prudence sought for cheerful words to convey sad thoughts. Paralus breathes and moves, but is apparently unconscious of existence in this world. He is silent and abstracted, like one just returned from the cave of Trophonius. Yet beautiful forms are ever with him in infinite variety; for his quiescent soul has now undisturbed recollection of the divine archetypes in the ideal world, of which all earthly beauty is the shadow.”

“He is happy, then, though living in the midst of death,” answered Philothea. “But does his memory retain no traces of his friends?”

“One—and one only,” he replied. “The name of Philothea was too deeply engraven to be washed away by the waters of oblivion. He seldom speaks; but when he does you are ever in his visions. The sound of a female voice accompanying the lyre is the only thing that makes him smile; and nothing moves him to tears save the farewell song of Orpheus to Eurydice. In his drawings there is more of majesty and beauty than Phydias or Myron ever conceived; and one figure is always there—the Pythia, the Muse, the Grace, or something combining all these, more spiritual than either.”

The most special object of Plato's visit to Anaxagoras is the bearing of a message from Pericles. Hippocrates has expressed a hope that the presence of Philothea may restore, in some measure, the health and understanding of Paralus, and the once ambitious father has sent to beg the maiden's consent to a union with his now deeply afflicted son.

“Philothea would not leave me even if I urged it with tears,” replied Anaxagoras, “and I am forbidden to return to Athens.”

“Pericles has provided an asylum for you, on the borders of Attica,” answered Plato, “and the young people would soon join you after their marriage. He did not suppose that his former proud opposition to their loves would be forgotten; but he said hearts like yours would forgive it all, the more readily because he was now a man deprived of power, and his son suffering under a visitation of the gods. Alcibiades laughed aloud when he heard of this proposition; and said his uncle would never think of making it to any but a maiden who sees the zephyrs run, and hears the stars sing. He spoke truth in his profane merriment. Pericles knows that she who obediently listens to the inward voice, will be most likely to seek the happiness of others, forgetful of her own wrongs.”

“I do not believe the tender hearted maiden ever cherished resentment against any living thing,” replied Anaxagoras. “She often reminds me of Hesiod's description of Leto:

Placid to men and to immortal gods;
Mild from the first beginning of her days;
Gentlest of all in Heaven.

She has indeed been a precious gift to my old age. Simple and loving as she is, there are times when her looks and words fill me with awe, as if I stood in the presence of divinity.”

“It is a most lovely union when the Muses and the Charities inhabit the same temple,” said Plato. “I think she learned of you to be a constant worshipper of the innocent and graceful nymphs, who preside over kind and gentle actions. But tell me, Anaxagoras, if this marriage is declined, who will protect the daughter of Alcimenes when you are gone?”

The philosopher replied, “I have a sister Heliadora, the youngest of my father's flock, who is Priestess of the Sun, at Ephesus. Of all my family, she has least despised me for preferring philosophy to gold; and report bespeaks her wise and virtuous. I have asked and obtained from her a promise to protect Philothea when I am gone; but I will tell my child the wishes of Pericles, and leave her to the guidance of her own heart. If she enters the home of Paralus, she will be to him, as she has been to me, a bounty like the sunshine.”

Philothea assents joyfully to the union, although Chrysippus, the wealthy prince of Clazomenæ, has made her an offer of his hand. Anaxagoras dies. His grand-daughter, accompanied by Plato, and some female acquaintances, takes her departure for Athens, and arrives safely in the harbor of Phalerum. No important change has occurred in Paralus, who still shows a total unconsciousness of past events. The lovers are, however, united. Many long

passages about this portion of the narrative are of a lofty and original beauty. The dreamy, distraught, yet unembittered existence of the husband, revelling in the visions of the Platonic philosophy—the anxiety of the father and his friends—the ardent, the pure and chivalric love, with the uncompromising devotion and soothing attentions of the wife—are pictures whose merit will not fail to be appreciated by all whose good opinion is of value.

Hippocrates has been informed that Tithonus, the Ethiopian, possesses the power of leading the soul from the body, “by means of a soul-directing wand,” and the idea arises that the process may produce a salutary effect upon Paralus. Tithonus will be present at the Olympian Games, and thither the patient is conveyed, under charge of Pericles, Plato and his wife. On the route, at Corinth, a letter from Philæmon, addressed to Anaxagoras, is handed by Artaphernes, the Persian, to Philothea. At the close of the epistle, the writer expresses a wish to be informed of Eudora's fate, and an earnest hope that she is not beyond the reach of Philothea's influence. The travellers finally stop at a small town in the neighborhood of Olympia, and at the residence of Proclus and his wife Melissa, “worthy simple-hearted people with whom Phidias had died, and under whose protection he had placed his adopted daughter.” The meeting between this maiden and Philothea is full of interest. The giddy heart of Eudora is chastened by sorrow. Phidias had desired her marriage with his nephew Pandœnus—but her first love is not yet forgotten. A letter is secretly written by Philothea to Philæmon, acquainting him with the change in the character of Eudora, and with her unabated affection for himself. “Sometimes,” she writes, “a stream is polluted in the fountain, and its waters are tainted through all its wanderings; and sometimes the traveller throws into a pure rivulet some unclean thing, which floats awhile and is then rejected from its bosom. Eudora is the pure rivulet. A foreign strain floated on the surface, but never mingled with its waters.”

The efforts of Tithonus are inadequate to the effectual relief of Paralus. We quote in full the account of the Ethiopian's attempt. Mrs. Child is here, however, partially indebted to a statement by Clearchus, of an operation somewhat similar to that of Tithonus, performed either by the aid, or in the presence of Aristotle. It will be seen that even the chimeras of animal

magnetism were, in some measure, known to the ancients. The relation of Clearchus mentions a diviner with a spirit-drawing wand, and a youth whose soul was thereby taken from the body, leaving it inanimate. The soul being replaced by the aid of the magician, the youth enters into a wild account of the events which befell him during the trance. The passage in “Philothea” runs thus.

Tithonus stood behind the invalid and remained perfectly quiet for many minutes. He then gently touched the back part of his head with a small wand, and leaning over him, whispered in his ear. An unpleasant change immediately passed over the countenance of Paralus. He endeavored to place his hand on his head, and a cold shivering seized him. Philothea shuddered, and Pericles grew pale, as they watched these symptoms; but the silence remained unbroken. A second and a third time the Ethiopian touched him with his wand, and spoke in whispers. The expression of pain deepened; insomuch that his friends could not look upon him without anguish of heart. Finally his limbs straightened, and became perfectly rigid and motionless.

Tithonus, perceiving the terror he had excited, said soothingly, “O Athenians, be not afraid. I have never seen the soul withdrawn without a struggle with the body. Believe me it will return. The words I whispered, were those I once heard from the lips of Plato. ‘The human soul is guided by two horses—one white with a flowing mane, earnest eyes, and wings like a swan, whereby he seeks to fly; but the other is black, heavy, and sleepy-eyed—ever prone to lie down upon the earth.’ The second time I whispered, ‘Lo, the soul seeketh to ascend!’ And the third time I said, ‘Behold, the winged separates from that which has no wings.’ When life returns, Paralus will have remembrance of these words.”

“Oh, restore him! restore him!” exclaimed Philothea, in tones of agonized intreaty.

Tithonus answered with respectful tenderness, and again stood in profound silence several minutes, before he raised the wand. At the first touch, a feeble shivering gave indication of returning life. As it was repeated a second and a third time, with a brief interval between each movement, the countenance of the sufferer grew more dark and troubled, until it became fearful to look upon. But the heavy shadow gradually passed away, and a dreamy smile returned, like a gleam of sunshine after storms. The moment Philothea perceived an expression familiar to her heart, she knelt by the couch, seized the hand of Paralus, and bathed it with her tears.

When the first gush of emotion had subsided, she said in a soft low voice, “Where have you been, dear Paralus?” The invalid answered, “A thick vapor enveloped me, as with a dark cloud; and a stunning noise pained my head with its violence. A voice said to me, ‘The human soul is guided by two horses; one white, with a flowing mane, earnest eyes, and wings like a swan, whereby he seeks to fly; but the other is black, heavy, and sleepy-eyed—ever prone to lie down upon the earth.’ Then the darkness began to clear away. But there was strange confusion. All things seemed rapidly to interchange their colors and their forms—the sound of a storm was in mine ears—the elements and the stars seemed to crowd upon me—and my breath was taken away. Then I heard a voice saying, ‘Lo, the soul seeketh to ascend!’ And I looked and saw the chariot and horses, of which the voice had spoken. The beautiful white horse gazed upward, and tossed his mane, and spread his wings impatiently; but the black horse slept upon the ground. The voice again said, ‘Behold, the winged separates from that which hath no wings!’ And suddenly the chariot ascended, and I saw the white horse on light, fleecy clouds, in a far blue sky. Then I heard a pleasing silent sound—as if dew-drops made music as they fell. I breathed freely, and my form seemed to expand itself with buoyant life. All at once I was floating in the air, above a quiet lake, where reposed seven beautiful islands, full of the sound of harps; and Philothea slept at my side, with a garland on her head. I asked, ‘Is this the divine home whence I departed into the body?’ And a voice above my head answered, ‘It is the divine home. Man never leaves it. He ceases to perceive.’ Afterward, I looked downward, and saw my dead body lying on a couch. Then again there came strange confusion—and a painful clashing of sounds—and all things rushing together. But Philothea took my hand, and spoke to me in gentle tones, and the discord ceased.”

The mind of Paralus derives but a temporary benefit from the skill of Tithonus, and even the attendance of the patient upon the Olympian games (a suggestion of Pericles) fails of the desired effect. A partial revival is indeed thus brought about—but death rapidly ensues. The friends of the deceased return to Athens, accompanied by the adopted daughter of Phidias. Philothea dies. Not many days after the funeral ceremonies, Eudora suddenly disappears. Alcibiades is suspected (justly) of having entrapped her to his summer residence in Salamis. The pages which follow this event detail the rescue of the maiden by the ingenuity of two faithful slaves, Mibra and Geta—the discovery of her father in Artaphernes the Persian, whom she accompanies to the court of Artaxerxes—her joyful meeting there, and marriage with Philæmon, after refusing the proffered hand of Xerxes himself.

In regard to the species of novel of which "*Philothea*" is no ignoble specimen, not any powers on the part of any author can render it, at the present day, popular. Nor is the voice of the people in this respect, to be adduced as an evidence of corrupted taste. We have little of purely human sympathy in the distantly antique; and this little is greatly weakened by the constant necessity of effort in conceiving *appropriateness* in manners, costume, habits, and modes of thought, so widely at variance with those around us. It should be borne in mind that the "*Pompeii*" of Bulwer cannot be considered as altogether belonging to this species, and fails in popularity only in proportion as it does so belong to it. This justly admired work owes what it possesses of attraction for the mass, to the stupendousness of its leading event—an event so far from weakened in interest by age, rendered only more thrillingly exciting by the obscurity which years have thrown over its details—to the skill with which the mind of the reader is prepared for this event—to the vigor with which it is depicted—and to the commingling *with this event* human passions wildly affected thereby—passions the sternest of our nature, and common to all character and time. By means so effectual we are hurried over, and observe not, unless with a critical eye, those radical defects or difficulties (coincident with the choice of epoch) of which we have spoken above. The fine perception of Bulwer endured these difficulties as inseparable from the groundwork of his narrative—did not mistake them for facilities. The plot of "*Philothea*," like that of the *Telemachus*, and of the *Anarcharsis*, should be regarded, on the other hand, as the mere vehicle for bringing forth the antique "manners, costume, habits, and modes of thought," which we have just mentioned as at variance with a popular interest to-day. Regarding it in this, its only proper light, we shall be justified in declaring the book an honor to our country, and a signal triumph for our country-women.

Philothea might be introduced advantageously into our female academies. Its purity of thought and lofty morality are unexceptionable. It would prove an effectual aid in the study of Greek antiquity, with whose spirit it is wonderfully imbued. We say wonderfully—for when we know that the fair authoress disclaims all knowledge of the ancient languages, we are inclined to consider her performance as even wonderful. There are some points, to be sure, at which a scholar might cavil—some perversions of the character of Pericles—of the philosophy of Anaxagoras—the trial of Aspasia and her

friends for blasphemy, should have been held before the Areopagus, and not the people—and we can well believe that an erudite acquaintance of ours would storm at more than one discrepancy in the arrangement of the symposium at the house of Aspasia. But the many egregious blunders of Barthelemi are still fresh in our remembrance, and the difficulty of avoiding errors in similar writings, even by the professed scholar, cannot readily be conceived by the merely general reader.

On the other hand, these discrepancies are exceedingly few in Philothea, while there is much evidence on every page of a long acquaintance with the genius of the times, places, and people depicted. As a mere tale, too, the work has merit of no common order—and its purity of language should especially recommend it to the attention of teachers.

SHEPPARD LEE.

Sheppard Lee: written by himself. New York: Harper and Brothers.

Like Philothea, this novel is an original in *American Belles Lettres* at least; and these deviations, however indecisive, from the more beaten paths of imitation, look well for our future literary prospects. Thinking thus, we will be at the trouble of going through briefly, in detail, the plot and the adventures of Sheppard Lee.

The hero relates his own story. He is born “somewhere towards the close of the last century,” in the State of New Jersey, in one of the oldest counties that border upon the Delaware river. His father is a farmer in good circumstances, and famous for making good sausages for the Philadelphia market. He has ten children besides Sheppard. Nine of these die, however, in six years, by a variety of odd accidents—the last expiring in a fit of laughter at seeing his brother ridden to death by a pig. Prudence, the oldest sister, survives. The mother, mourning for her children, becomes melancholy and dies insane. Sheppard is sent to good schools, and afterwards to the College at Nassau Hall, in Princeton, where he remains three years, until his father's decease. Upon this occurrence he finds himself in possession of the bulk of the property; his sister Prudence, who had

recently married, receiving only a small farm in a neighboring county. After making one or two efforts to become a man of business, our hero hires an overseer to undertake the entire management of his property.

Having now nothing to do, and time hanging heavily on his hands, Sheppard Lee tries many experiments by way of killing the enemy. He turns sportsman, but has the misfortune to shoot his dog the first day, and upon the second his neighbor's cow. He breeds horses and runs them, losing more money in a single hour than his father had ever made in two years together. At the suggestion of his overseer he travels, and is robbed of his baggage and money, by an intelligent gentlemanly personage from Sing-Sing. He thinks of matrimony, and is about coming to a proposal, when his inamorata, taking offence at his backwardness, casts her eyes upon another wooer, who has made her an offer, and marries him upon the spot.

Upon attaining his twenty-eighth year, Mr. Lee discovers his overseer, Mr. Aikin Jones, to be a rogue, and himself to be ruined. Prudence, the sister, tells our hero moreover, that he has lost all the little sense he ever possessed, while her husband is so kind as to inform him that "he is wrong in the upper story." A quarrel ensues and Mr. Lee is left to bear his misfortunes alone.

In Chapter V, we have a minute description of the state of the writer's affairs at this epoch, and it must be owned that his little property of forty acres presented a sufficiently woe-begone appearance. One friend, however, remains steadfast, in the person of our hero's negro servant, Jim Jumble—an old fellow that had been the slave of his father and was left to him in the will. This is a crabbed, self-willed old rascal, who will have every thing his own way. Having some scruples of conscience about holding a slave, and thinking him of no value whatever, but, on the contrary, a great deal of trouble, our hero decides upon setting him free. The old fellow, however, bursts into a passion, swears he will *not* be free, that Mr. Lee is his master and shall take care of him, and that if he dares to set him free he will have the law of him, "he will by ge-hosh!"

At length, in spite of even the services of Jim Jumble, our hero is reduced to the point of despair. His necessities have compelled him to mortgage the few miserable acres left, and ruin stares him in the face. He attempts many

ingenious devices with a view of amending his fortune—buys lottery tickets which prove all blanks—purchases stock in a southern gold mining company, is forced to sell out at a bad season, and finds himself with one-fifth the sum invested—gets a new coat, and makes a declaration to a rich widow in the neighborhood, who makes him the laughing stock of the country for his pains—and finally turns politician, choosing the strongest party, on the principle that the majority must always be right. Attending a public meeting he claps his hands and applauds the speeches with so much spirit, that he is noticed by some of the leaders. They encourage him to take a more prominent part in the business going on, and at the next opportunity he makes a speech. Being on the hurrah side he receives great applause, and indeed there is such a shouting and clapping that he is obliged to put an end to his discourse sooner than he had intended. He is advised to set about converting all in the neighborhood who are not of the right way of thinking, and the post office in the village is hinted at as his reward in case the county is gained. Mr. Lee sets about his task valiantly, paying his own expenses, and the hurrahs carry the day. His claim to the post-officeship is universally admitted, but, in some way or other, the appointment is bestowed upon one of the very leaders who had been foremost in commending the zeal and talents of our author, and in assuring him that the office should be his. Mr. Lee is enraged, and is upon the point of going over to the anti-hurrahs, when he is involved in a very remarkable tissue of adventure. Jim Jumble conceives that money has been buried by Captain Kid, in a certain ugly swamp, called the Owl-Roost, not many rods from an old church. The stories of the negro affect his master to such a degree that he dreams three nights in succession of finding a treasure at the foot of a beech-tree in the swamp. He resolves to dig for it in good earnest, choosing midnight, at the full of the moon, as the moment of commencing operations. On his way to the Owl-Roost at the proper time, he passes by the burial ground of the old church, and the wall having fallen down across his path, he strikes his ankle against a fragment—the pain causing him to utter a groan. To his amazement this interjection of suffering is echoed from the grave yard; a voice screaming out in awful tones, O Lord! O Lord! and, casting his eyes around, our hero beholds three or four shapes, whom he supposes to be devils incarnate, dancing about among the tomb-stones. The beech-tree, however, is finally reached in safety, and by dint of much labor a large hole excavated among the roots. But in his agitation of mind the adventurer

plants an unlucky blow of the mattock among the toes of his right foot, and sinking down upon the grass, “falls straightway into a trance.”

Upon recovering from this trance, Mr. Lee finds himself in a very singular predicament. He feels exceedingly light and buoyant, with the power of moving without exertion. He sweeps along without putting his feet to the ground, and passes among shrubs and bushes without experiencing from them any hindrance to his progress. In short, he finds himself to be nothing better than a ghost. His dead body is lying quietly beside the excavation under the beech-tree. Mr. Lee is entirely overcome with horror at his unfortunate condition, and runs, or rather flies, instinctively to the nearest hut for assistance. But the dogs, at his approach, run howling among the bushes, and the only answer he receives from the terrified family is the discharge of a blunderbuss in his face. Returning in despair to the beech-tree and the pit, he finds that his body has been taken away. Its disappearance throws him into a phrenzy, and he is about to run home and summon old Jim Jumble to the rescue, when he hears a dog yelping and whining in a peculiarly doleful manner, at some little distance down in the meadow. Coming to a place in the edge of the marsh where are some willow trees, and an old worn fence, he there discovers to his extreme surprise, the body of a certain well-to-do personage, Squire Higginson. He is lying against the fence, stone dead, with his head down, and his heels resting against the rails, and looking as if, while climbing, he had fallen down and broken his neck.

Our hero pities the condition of Mr. Higginson, but being only a ghost, has no capacity to render him assistance. In this dilemma he begins to moralize upon the condition of Mr. H. and of himself. The one has no body—the other no soul. “Why might not I”—says, very reasonably, the ghost of Mr. Lee, “Why might not I—that is to say my spirit—deprived by an unhappy accident of its natural dwelling—take possession of a tenement which there remains no spirit to claim, and thus, uniting interests together, as two feeble factions unite together in the political world, become a body possessing life, strength, and usefulness? Oh, that I might be Squire Higginson!”

The words are scarcely out of his mouth, before our hero feels himself vanishing, as it were, into the dead man's nostrils, “into which his spirit

rushes like a breeze,” and the next moment he finds himself John Hazlewood Higginson, Esquire, to all intents and purposes—kicking the fence to pieces in a lusty effort to rise upon his feet, and feeling as if he had just tumbled over it. We must here give a couple of pages in the words of the author.

“God be thanked,” I cried, dancing about as joyously as the dog, “I am now a respectable man with my pockets full of money. Farewell then, you poor miserable Sheppard Lee! you raggamuffin! you poor wretched shote! you half-starved old sand-field Jersey Kill-Deer! you vagabond! you beggar! you Dicky Dout! with the wrong place in your upper story! you are now a gentleman and a man of substance, and a happy dog into the bargain. Ha! ha! ha!” and here I fell a laughing out of pure joy; and giving my dog Ponto a buss, as if that were the most natural act in the world, and a customary way of showing my satisfaction, I began to stalk towards my old ruined house, without exactly knowing for what purpose, but having some vague idea about me, that I would set old Jim Jumble and his wife Dinah to shouting and dancing; an amusement I would willingly have seen the whole world engaged in at that moment.

I had not walked twenty yards, before a woodcock that was feeding on the edge of the marsh, started up from under my nose, when clapping my gun to my shoulder, I let fly at him, and down he came.

“Aha, Ponto,” said I, “when did I ever fail to bring down a woodcock? Bring it along, Ponto, you rascal—Rum-te, ti, ti! rum-te, ti, ti!” and I went on my way singing for pure joy, without pausing to recharge or to bag my game. I reached my old house, and began to roar out, without reflecting that I was now something more than Sheppard Lee, “Hillo! Jim Jumble, you old rascal! get up and let me in.”

“What you want, hah?” said old Jim, poking his head from the garret window of the kitchen, and looking as sour as a persimmon before frost. “Guess Massa Squire Higginson drunk, hah? What you want? Spose I’m gwyin to git up afo sunrise for notin, and for any body but my Massa Sheppard?”

“Why you old dog,” said I, in a passion, “I am your Master Sheppard; that is, your Master John Hazlewood Higginson, Esquire; for as for Sheppard Lee, the Jersey kill-deer, I’ve finished him, you rascal; you’ll never see him more. So get down and let me into the house, or I’ll——”

“You will hah?” said Jim, “you will *what*?”

“I’ll shoot you, you insolent scoundrel!” I exclaimed in a rage—as if it were the most natural thing in the world for me to be in one; and as I spoke I raised my piece; when “bow-wow-wow!” went my old dog Bull, who had not bitten a man for two years, but who now rushed from his kennel under the porch, and seized me by the leg.

“Get out Bull, you rascal,” said I, but he only bit the harder; which threw me into such a fury, that I clapped the muzzle of my gun to his side, and having one charge remaining, blew him to pieces.

“Golla-matty!” said old Jim, from the window, whence he had surveyed the combat; “golla-matty!—shoot old Bull!”

And with that the black villain snatched up the half of a brick, which I suppose he kept to daunt unwelcome visitors, and taking aim at me, he cast it so well as to bring it right against my left ear, and so tumbled me to the ground. I would have blown the rascal’s brains out, in requital of this assault, had there been a charge left in my piece, or had he given me time to reload; but as soon as he had cast the brick, he ran from the window, and then reappeared, holding out an old musket, that I remembered he kept to shoot wild ducks and muskrats in the neighboring marsh with. Seeing this formidable weapon, and not knowing but that the desperado would fire upon me, I was forced to beat a retreat, which I did in double quick time, being soon joined by my dog Ponto, who had fled, like a coward, at the first bow-wow of the bull-dog, and saluted in my flight by the amiable tones of Dinah, who now thrust her head from the window, beside Jim’s, and abused me as long as I could hear.

Our hero finds that in assuming the body of Squire Higginson, he has invested himself with a troublesome superfluity of fat—that he has moreover a touch of the asthma—together with a whizzing, humming, and spinning in the head. One day, while gunning, these infirmities prove more than usually inconvenient, and he is upon the point of retreating to the village to get his dinner, when a crowd of men make their appearance, and setting up a great shout, begin to run towards him at full speed. Hearing them utter furious cries, and perceiving a multitude of dogs in company, he is seized with alarm and makes for the woods. He is overtaken however, charged with the murder of Sheppard Lee, and committed by Justice Parkins—a mass of evidence appearing against him, among which that of Jim Jumble is not the least important, who swears that the prisoner came to

As I. Dulmer Dawkins, our friend finds himself beset by the duns, whom he habitually puts off by suggestions respecting a rich uncle, of whose very existence he is sadly in doubt. Having ceased to pay attention to Miss Smith, upon hearing the rumors about the mortgages, it appears that he was jilted in turn by a Miss Betty Somebody, and thus threw himself into the river in despair. His adventures are now various and spirited, but his creditors grow importunate, and vow they will be put off no longer with the old story of the rich uncle, when an uncle, and a rich one, actually appears upon the tapis. He is an old vulgar fool, and I. Dulmer Dawkins, Esquire, is in some doubts about the propriety of allowing his claim to relationship, but finally consents to introduce the old quiz, son and daughter, into fashionable society, upon considering the pecuniary advantages to himself. With this end he looks about for a house, and learns that the residence of Periwinkle Smith is for sale. Upon calling upon that gentleman however, he is treated very civilly indeed, being shown the door, after having sufficiently ascertained that the rumors about the mortgages should have been construed *in favor* of Mr. Smith—that he is a richer man than ever, and that his fair heiress is upon the point of marriage with a millionaire from Boston. He now turns his attention to his country cousin, Miss Patty Wilkins, upon finding that the uncle is to give her forty thousand dollars. At the same time, lest his designs in this quarter should fail, he makes an appointment to run off with the only daughter of a rich shaver, one Skinner. The uncle Wilkins has but little opinion of I. Dulmer Dawkins, and will not harken to his suit at all. In this dilemma our hero resorts to a trick. He represents his bosom friend and ally, Mr. Tickle, as a man of fashion and property, and sets him to making love to Miss Patty, in the name of himself, I. Dulmer. The uncle snaps at the bait, but the ally is instructed to proceed no farther without a definite settlement upon Miss Patty of the forty thousand dollars. The uncle makes the settlement and matters proceed to a crisis—Mr. Tickle pleasing himself with the idea of cheating his bosom friend I. Dulmer, and marrying the lady himself. A farce of very pretty finesse now ensues, which terminates in Miss Patty's giving the slip to both lovers, bestowing her forty thousand dollars upon an old country sweetheart, Danny Baker, and in I. Dulmer's finding, upon flying, as a dernier resort, to the broker's daughter, that she has already run away with Sammy, Miss Patty Wilkins' clodhopper brother.

Driven to desperation by his duns, our hero escapes from them by dint of hard running and takes refuge, without asking permission, in the sick chamber of old Skinner, the shaver. Finding the old gentleman dead, he takes possession of his body forthwith, leaving his own carcase on the floor.

The adventures in the person of Abram Skinner are full of interest. We have many racy details of stock-jobbing and usury. Some passages, of a different nature are well written. The miser has two sons, and his parsimony reduces them to fearful extremity. The one involves him deeply by forgery; and the other first robs his strong box, and afterwards endeavors to murder him.

It may be supposed that the misery now weighing me to the earth was as much as could be imposed upon me; but I was destined to find before the night was over that misery is only comparative, and that there is no affliction so positively great, that greater may not be experienced. In the dead of the night, when my woes had at last been drowned in slumber, I was aroused by feeling a hand pressing upon my bosom; and starting up I saw, for there was a taper burning upon a table hard by, a man standing over me, holding a pillow in his hand, which, the moment I caught sight of him, he thrust into my face, and there endeavored to hold it, as if to suffocate me.

The horror of death endowed me with a strength not my own, and the ruffian held the pillow with a feeble and trembling arm. I dashed it aside, leaped up in the bed, and beheld in the countenance of the murderer the features of the long missing and abandoned son, Abbot Skinner.

His face was white and chalky, with livid stains around the eyes and mouth, the former of which were starting out of their orbits in a manner ghastly to behold, while his lips were drawn asunder and away from his teeth, as in the face of a mummy. He looked as if horror-struck at the act he was attempting; and yet there was something devilish and determined in his air that increased my terror to ecstasy. I sprang from the bed, threw myself on the floor, and, grasping his knees, besought him to spare my life. There seemed indeed occasion for all my supplications. His bloated and altered visage, the neglected appearance of his garments and person, and a thousand other signs, showed that the whole period of his absence had been passed in excessive toping, and the murderous and unnatural act which he meditated, manifested to what a pitch of phrenzy he had arrived by the indulgence.

As I grasped his knees, he put his hand into his bosom, and drew out a poniard, a weapon I had never before known him to carry; at the sight of which I considered myself a dead man. But

the love of life still prevailing, I leaped up, and ran to a corner of the room, where I mingled adjurations and entreaties with loud screams for assistance. He stood as if rooted to the spot for a moment; then dropping his horrid weapon, he advanced a few paces, clasped his hands together, fell upon his knees, and burst into tears, and all the while without having uttered a single word. But now, my cries still continuing, he exclaimed, but with a most wild and disturbed look—"Father I won't hurt you, and pray dont hurt *me!*"

Horrors such as these induce our hero to seek a new existence. Filling his pockets with money, he sets off in search of a corpse of which to take possession. At length, when nearly exhausted, a drunken fellow, apparently dead, is found lying under a shed. Transferring the money from his own person to that of the mendicant, he utters the usual wish, once, twice, thrice—and in vain. Horribly disconcerted, and dreading lest his charm should have actually deserted him, he begins to kick the dead man with all the energy he has left. At this treatment the corpse suddenly becomes animated, knocks our hero down with a whiskey jug, and makes off with the contents of his pockets, being a dozen silver spoons, and four hundred dollars in money. This accident introduces us to the acquaintance of a genuine philanthropist, Mr. Zachariah Longstraw, and this gentleman being at length murdered by a worthy ex-occupant of Sing-Sing, to whom he had been especially civil, our hero reanimates his body with excessive pleasure at his good fortune. The result is that he finds himself cheated on all sides, is arrested for debt, and is entrapped by a Yankee pedlar and carried off to the South as a tit-bit for the anti-abolitionists. On the route he ascertains (by accidentally overhearing a conversation) that the missing body of Sheppard Lee, which disappeared in so mysterious a manner from the side of the pit at the Owl-Roost, was carried off by one Dr. Feuerteufel, a German, who happened to be in search of subjects for dissection, and whose assistants were the dancing spectres in the church yard, which so terribly disconcerted our hero when on his way to the beech-tree. He is finally about to be hung, when a negro who was busied in preparing the gallows, fortunately breaks his neck in a fall, and our adventurer takes possession of his body forthwith.

In his character of Nigger Tom, Mr. Lee gives us some very excellent chapters upon abolition and the exciting effects of incendiary pamphlets and pictures, among our slaves in the South. This part of the narrative closes

with a spirited picture of a negro insurrection, and with the hanging of Nigger Tom.

Our hero is revived, after execution, by the galvanic battery of some medical students, and having, by his sudden display of life, frightened one of them to death, he immediately possesses himself of his person. As Mr. Arthur Megrim, he passes through a variety of adventures, and fancies himself a coffee-pot, a puppy, a chicken, a loaded cannon, a clock, a hamper of crockery ware, a joint stock, a Greek Demi-God and the Emperor of France. Dr. Feurteufel now arrives in the village with a cargo of curiosities for exhibition—among which are some mummies. In one of them our hero recognizes the identical long missed body of Sheppard Lee.

The sight of my body thus restored to me, and in the midst of my sorrow and affliction, inviting me back, as it were, to my proper home, threw me into an indescribable ferment. I stretched out my arms, I uttered a cry, and then rushing forward, to the astonishment of all present, I struck my foot against the glass case with a fury that shivered it to atoms—or at least the portion of it serving as a door, which, being dislodged by the violence of the blow, fell upon the floor and was dashed to pieces. The next instant, disregarding the cries of surprise and fear which the act occasioned, I seized upon the cold and rigid hand of the mummy, murmuring “Let me live again in my own body, and never—no! never more in another's!” Happiness of happiness! although, while I uttered the word, a boding fear was on my mind, lest the long period the body had remained inanimate, and more especially the mummifying process to which it had been subjected, might have rendered it unfit for further habitation, I had scarcely breathed the wish before I found myself in that very body, descending from the box which had so long been its prison, and stepping over the mortal frame of Mr. Arthur Megrim, now lying dead on the floor.

Indescribable was the terror produced among the spectators by this double catastrophe—the death of their townsman, and the revival of the mummy. The women fell down in fits, and the men took to their heels; and a little boy who was frightened into a paroxysm of devotion, dropped on his knees, and began fervently to exclaim

Now I lay me down to sleep,
I pray the Lord my soul to keep.

In short, the agitation was truly inexpressible, and fear distracted all. But on no countenance was this passion (mingled with a degree of amazement) more strikingly depicted than on that

of the German Doctor, who, thus compelled to witness the object of a thousand cares, the greatest and most perfect result of his wonderful discovery, slipping off its pedestal and out of his hands, as by a stroke of enchantment, stared upon me with eyes, nose and mouth, speechless, rooted to the floor, and apparently converted into a mummy himself. As I stepped past him, however, hurrying to the door, with a vague idea that the sooner I reached it the better, his lips were unlocked, and his feelings found vent in a horrible exclamation—"Der tyfel!" which I believe means the devil—"Der tyfel! I have empalm him too well!"

Sheppard Lee now makes his way home into New Jersey (pursued however the whole way by the German Doctor, crying "Mein Gott! Ter Tyfel! and stop mine mummy!") and is put to bed and kindly nursed after his disaster by his sister Prudence and her husband. It now appears (very ingeniously indeed) that, harassed by his pecuniary distress, our hero fell into a melancholy derangement, and upon cutting his foot with the mattock, as related, was confined to bed, where his wonderful transmigrations were merely the result of delirium. At least this is the turn given to the whole story by Prudence. Mr. Lee, however, although he partially believes her in the right, has still a shadow of doubt upon the subject, and has thought it better to make public his own version of the matter, with a view of letting every body decide for himself.

We must regard "Sheppard Lee," upon the whole, as a very clever, and not altogether unoriginal, *jeu d'esprit*. Its incidents are well conceived, and related with force, brevity, and a species of *directness* which is invaluable in certain cases of narration—while in others it should be avoided. The language is exceedingly unaffected and (what we regard as high praise) exceedingly well adapted to the varying subjects. Some fault may be found with the conception of the metempsychosis which is the basis of the narrative. There are two general methods of telling stories such as this. One of these methods is that adopted by the author of Sheppard Lee. He conceives his hero endowed with some idiosyncrasy beyond the common lot of human nature, and thus introduces him to a series of adventure which, under ordinary circumstances, could occur only to a plurality of persons. The chief source of interest in such narrative is, or should be, the contrasting of these varied events, in their influence upon a character *unchanging*—except as changed by the events themselves. This fruitful field of interest, however, is neglected in the novel before us, where the

hero, very awkwardly, partially loses, and partially does not lose, his identity, at each transmigration. The sole object here in the various metempsychoses seem to be, merely the depicting of seven different conditions of existence, and the enforcement of the very doubtful moral that every person should remain contented with his own. But it is clear that both these points could have been more forcibly shown, without any reference to a confused and jarring system of transmigration, by the mere narrations of seven different individuals. All deviations, especially wide ones, from nature, should be justified to the author by some specific object—the object, in the present case, might have been found, as above-mentioned, in the opportunity afforded of depicting widely-different conditions of existence actuating *one* individual.

A second peculiarity of the species of novel to which Sheppard Lee belongs, and a peculiarity which is *not* rejected by the author, is the treating the whole narrative in a jocular manner throughout (inasmuch as to say “I know I am writing nonsense, but then you must excuse me for the very reason that I know it”) or the solution of the various absurdities by means of a dream, or something similar. The latter method is adopted in the present instance—and the idea is managed with unusual ingenuity. Still—having read through the whole book, and having been worried to death with incongruities (allowing such to exist) until the concluding page, it is certainly little indemnification for our sufferings to learn that, in truth, the whole matter was a dream, and that we were very wrong in being worried about it at all. The damage is done, and the apology does not remedy the grievance. For this and other reasons, we are led to prefer, in this kind of writing, the *second* general method to which we have alluded. It consists in a variety of points—principally in avoiding, as may easily be done, that *directness* of expression which we have noticed in Sheppard Lee, and thus leaving much to the imagination—in writing as if the author were firmly impressed with the truth, yet astonished at the immensity, of the wonders he relates, and for which, professedly, he neither claims nor anticipates credence—in minuteness of detail, especially upon points which have no immediate bearing upon the general story—this minuteness not being at variance with indirectness of expression—in short, by making use of the infinity of arts which give verisimilitude to a narration—and by leaving the result as a wonder not to be accounted for. It will be found that *bizzarreries*

thus conducted, are usually far more effective than those otherwise managed. The attention of the author, who does not depend upon explaining away his incredibilities, is directed to giving them the character and the luminousness of truth, and thus are brought about, unwittingly, some of the most vivid creations of human intellect. The reader, too, readily perceives and falls in with the writer's humor, and suffers himself to be borne on thereby. On the other hand what difficulty, or inconvenience, or danger can there be in leaving us uninformed of the important facts that a certain hero *did not* actually discover the elixir vitæ, *could not* really make himself invisible, and *was not* either a ghost in good earnest, or a bonâ fide Wandering Jew?

HAZLITT'S REMAINS.

Literary Remains of the Late William Hazlitt, with a Notice of his Life by his Son, and Thoughts on his Genius and Writings, by E. L. Bulwer, M. P. and Mr. Sergeant Talfourd, M. P. New York: Saunders and Otley.

There is a piquancy in the personal character and literary reputation of Hazlitt, which will cause this book to be sought with avidity by all who read. And the volume will fully repay a perusal. It embraces a Biographical Sketch of Mr. H. by his son; "Some Thoughts on his Genius" by Bulwer; "Thoughts on his Intellectual Character," by Sergeant Talfourd; a few words of high compliment contained in a Letter to Southey from Charles Lamb; a Sonnet, by Sheridan Knowles, on Bewick's portrait of the deceased; six other sonnets to his memory, by "a Lady;" and twenty-two Essays by Hazlitt himself, and constituting his "Literary Remains." The volume is embellished with a fine head of the Essayist, engraved by Marr, from a drawing by Bewick.

William Hazlitt, upon his decease in 1830, was 52 years old. He was the youngest son of the Reverend William Hazlitt, a dissenting Minister of the Unitarian persuasion. At the age of nine he was sent to a day-school in Wern, and some of his letters soon after this period evince a singular thirst for knowledge in one so young. At thirteen, his first literary effort was made, in the shape of an epistle to the "Shrewsbury Chronicle." This epistle

is signed in Greek capitals *Eliason*, and is a decently written defence of Priestley, or rather an expression of indignation at some outrages offered to the Doctor at Birmingham. It speaks of little, however, but the school-boy. At fifteen, he was entered as a student at the Unitarian College, Hackney, with a view to his education as a dissenting minister, and here his mind first received a bias towards philosophical speculation. Several short essays were written at this time—but are lost. Some letters to his father, however, which are printed in the present volume, give no evidence of more than a very ordinary ability. At seventeen, he left College (having abandoned all idea of the Ministry) and devoted himself to the study of painting as a profession—prosecuting his metaphysical reading at spare moments. At eighteen, he commenced the first rough sketch of a treatise “On the Principles of Human Action.” At twenty, accident brought him acquainted with Coleridge, whose writings and conversation had, as might be expected, great influence upon his subsequent modes of thought. At twenty-four, during the short peace of Amiens, he visited Paris with a view of studying the works of art in the Louvre. Some letters to his father written at this period, are given in the volume before us. They relate principally to the progress of his own studies in art, and are not in any manner remarkable. After spending a year in Paris he returned to London, abandoned, in despair, the pencil for the pen, and took up his abode temporarily, with his brother John, in Great Russell Street, Bloomsbury. His treatise “On the Principles of Human Action,” a work upon which he seems to have greatly prided himself, (perhaps from early associations) was now completed, after eight years of excessive labor. He was not, however, successful in finding a publisher until a year afterwards—he being then twenty-eight. This was in 1805. In 1806, he published a pamphlet with the title of “Free Thoughts on Public Affairs.” In 1807, he abridged to one volume Tucker's large work in seven—the “Light of Nature,” and wrote for Messrs. Longman and Co. a “Reply to Malthus's Works on Population.” In 1808, he married Miss Stoddart, sister of the present Chief Justice of Malta. By this lady, who still lives, he had several children, all of whom died in early childhood, except the Editor of these “Remains.” Shortly after his marriage, he went to live at Winterslow, in Wiltshire. An English Grammar, written about this period, was published some years afterwards. In 1808, he also published a compilation, entitled “The Eloquence of the British Senate, being a selection of the best Speeches of the most distinguished Parliamentary

Speakers, from the beginning of the reign of Charles I to the present time.” We are told also, that in the autumn of this same year he was “engaged in preparing for publication his ‘Memoirs of Holcroft’”—the first seventeen chapters of this work were written by Holcroft himself. In 1811, Mr. Hazlitt removed to London and “tenanted a house once honored in the occupation of Milton.” In 1813, he delivered at the Russell Institution, a series of “Lectures upon the History and Progress of English Philosophy.” Shortly after this he became connected with the public press. For a short time he was engaged with the “Morning Chronicle” as a Parliamentary Reporter—but relinquished the occupation on account of ill health. He afterwards wrote political and theatrical criticisms for the “Champion,” the “Morning Chronicle,” the “Examiner,” and the “Times.” It was about this period, if we understand his biographer, that the collection of Essays appeared called “The Round Table.” Of these, forty were written by Mr. Hazlitt, and twelve by Leigh Hunt. In 1818, his Theatrical Criticisms were collected and published under the title of “A view of the English Stage.” In this year also, he delivered at the Surrey Institution a series of Lectures on the “Comic Writers, and the Poets of England,” and on the “Dramatic Literature of the age of Elizabeth.” These were subsequently published in single volumes under their respective titles. In 1819, the whole of his Political Essays appeared in one volume. His next published work was the “Characters of Shakspeare's Plays.” In 1823, Mr. Hazlitt was divorced from his wife under the law of Scotland—shortly before this epoch having given to the world “Liber Amoris,” a publication for many reasons to be regretted. In this same year appeared a “Critical Account of the Principal Picture Galleries of England”—also the first series of “Table-Talk,” in two volumes, consisting of Essays on various subjects, a few of which had previously appeared in the “London Magazine.” In 1824, Mr. H. married Isabella, widow of Lieut. Col. Bridgewater, a lady of some property; proceeding, after the wedding, on a tour through France and Italy. “Notes” of this journey appeared in the “Morning Chronicle,” and were afterwards collected in a volume. In 1825, appeared the second series of “Table-Talk,” and the “Spirit of the Age,” a series of criticisms on the more prominent literary men then living. In 1826, the “Plain Speaker” was published, and another edition of the “Table-Talk.” At this period, and for some years previous, Mr. Hazlitt was a frequent contributor to the “Edinburgh Review,” the “New Monthly,” “Monthly,” and “London” Magazines, and other periodicals. In 1829, he published

“Selections from the British Poets,” and in 1830, “Northcote's Conversations,” the “Life of Titian,” (in which Mr. Northcote had a large share, and whose name, indeed, appeared as author on the title-page) and his chief work, “The Life of Napoleon,” in four volumes. In August of this year he was attacked by a species of cholera, and on the 18th of September he died. We are indebted for the facts in this naked outline of Mr. Hazlitt's life, principally to the memoir by his son in the volume before us. The Memoir itself bears upon its face so obvious and indeed so very natural an air of the most enthusiastic filial affection and admiration, that we are forced to place but little reliance upon the critical opinions it advances.

The “Thoughts on the Genius of William Hazlitt,” by Mr. Bulwer, differ in many striking points from the “Thoughts” by Sergeant Talfourd, on his “Intellectual Character.” We give the preference unhesitatingly to the noble paper of Talfourd—a brilliant specimen of accurate thinking and fine writing. The article of Bulwer, indeed, seems to be a compulsory thing—an effort probably induced by earnest solicitation—and no labor of love. Hazlitt, moreover, was personally unknown to him. Sergeant Talfourd, on the contrary, appears to write with a vivid interest in the man, and a thorough knowledge of his books. Nothing more fully than is here said, need be said, on the character, on the capacities, or on the works of Hazlitt, and nothing possibly *can* be said more happily or more wisely.

Of the Essays which constitute the body of the book before us, all have a relative—most of them a very high positive value. To American readers Hazlitt is principally known, we believe, as the Dramatic Critic, and the Lecturer on the Elder Poetry of England. Some of the papers in the present volume will prove the great extent and comprehensiveness of his genius. One on the “Fine Arts” especially, cannot fail of seizing public attention. Mr. Hazlitt discourses of Painting, as Chorley of Music. Neither have been equalled in their way. A fine passage of Hazlitt's on the *ideal* commences thus—

The *ideal* is not a negative, but a positive thing. The leaving out the details or peculiarities of an individual face does not make it one jot more ideal. To paint history is to paint nature as answering to a general, predominant, or preconceived idea in the mind, of strength, beauty, action, passion, thought, &c.; but the way to do this is not to leave out the details, but to

incorporate the general idea with the details; that is, to show the same expression actuating and modifying every movement of the muscles, and the same character preserved consistently through every part of the body. Grandeur does not consist in omitting the parts, but in connecting all the parts into a whole, and in giving their combined and varied action; abstract truth or ideal perfection does not consist in rejecting the peculiarities of form, but in rejecting all those which are not consistent with the character intended to be given, and in following up the same *general idea* of softness, voluptuousness, strength, activity, or any combination of these, through every ramification of the frame. But these modifications of form or expression can only be learnt from nature, and therefore the perfection of art must always be sought in nature.

“The Fight” will show clearly how the writer of true talent can elevate even the most brutal of themes. The paper entitled “My first acquaintance with Poets,” and that headed “Of Persons one would wish to have seen,” have a personal interest apart from the abilities of the writer. The article “On Liberty and Necessity,” that “On Locke's Essay on the Human Understanding,” and that “On the Definition of Wit,” bear with them evidence of a truth but little understood, and very rarely admitted—that the reasoning powers never exist in perfection unless when allied with a very high degree of the imaginative faculty. In this latter respect, Hazlitt (who knew and acknowledged the fact) is greatly deficient. His argumentative pieces, therefore, rarely satisfy any mind, beyond that of the mere logician. As a critic—he is perhaps unequalled. Altogether he was no ordinary man. In the words of Bulwer, it may justly be said—that “a complete collection of his works is all the monument he demands.”

The illness of both Publisher and Editor will, we hope, prove a sufficient apology for the delay in the issue of the present number, and for the omission of many promised notices of new books.

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